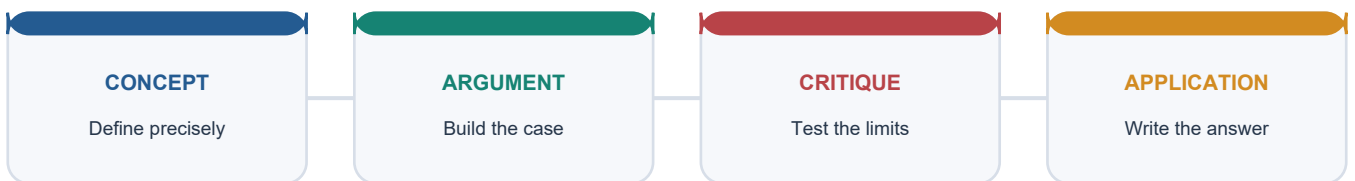


COMPLETE LEARNING SESSION

Sovereignty - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Sovereignty - Complete Learning Session

Syllabus, verbatim: *Sovereignty* : Austin, Bodin, Laski, Kautilya. - UPSC Philosophy Paper II, Section A, item 2. □ The printed paper carries a space before the colon; it is preserved only inside a verbatim quotation of the syllabus. Four thinkers are printed and only four: **Austin, Bodin, Laski, Kautilya**. Hobbes, Rousseau, Kelsen and Hart enter as clearly-marked bridges because owned previous-year parts cannot be answered without them; Locke, Hegel, Dworkin, rights, political obligation, the forms of democracy and the detailed institutions of international politics belong to later owners and are routed, not developed. **Evidence discipline:** FACT: marks doctrine on which the standard sources converge, ANALYSIS: marks analytical reconstruction for exam use, and CAUTION: marks a live scholarly dispute or a contested attribution. Model answers in this package are independent learner practice and are **never** official UPSC keys: UPSC publishes no descriptive model answer for Philosophy Paper II. Works are cited by author, title and - where the repository verifies it - year only: **Kelsen, General Theory of Law and State, first English edition 1945; Hart, The Concept of Law, 1961; Kesavananda Bharati v. State of Kerala, Supreme Court judgment, 1973**. No page, chapter, edition or verbatim wording is asserted for any of them. **Terminology rule:** the English concept leads and the technical term follows immediately in parentheses - *supreme, final and authoritative power within a political community (sovereignty), supremacy over persons and associations inside the state (internal sovereignty), independence from outside control in the society of states (external sovereignty), the authority the law recognises as competent to make law (legal sovereignty), the real power that can compel or shape the law-maker (political sovereignty), lawful in title (de jure sovereignty), actually obeyed in practice (de facto sovereignty), formally vested in an office or symbol (titular sovereignty), effectively exercised by those who really govern (actual sovereignty), the people in their corporate capacity as the source of public authority (popular sovereignty), a national community's claim to govern itself (national sovereignty), freed from the ordinary positive laws (legibus solutus), the fundamental constitutive laws of the realm (leges imperii), an identifiable person or body (determinate human superior), regular compliance by the bulk of society (habitual obedience), an order backed by the threat of an evil (command and sanction), the presupposed apex of the hierarchy of validity (basic norm, Grundnorm), the accepted official test of what counts as law (rule of recognition), the participant's attitude of treating a rule as a reason (internal point of view), the seven-limbed state (saptāṅga), the ruler (svāmī), ministers and officials (amātya), territory with its people (janapada), fortified defence (durga), treasury (kośa), coercive force (daṇḍa), ally (mitra), calibrated coercion (daṇḍanīti), the circle of states (maṇḍala), the six-fold policy (ṣaḍguṇya), security and welfare (yogakṣema), the happiness of subjects (prajā-sukha). A technical term may sharpen an English explanation; it may never replace one.*

What this package contains

Component	Count
Progressive teaching sessions in the Basic block	20
Original diagnostic MCQs - 24 core plus 8 remedial drills	32
Question-specific option explanations	128
Unique examiner traps	32
Directly owned verified PYQs solved in full, 2018-2025	11
Original solved Mains models - two each at 10, 15 and 20 marks	6
Consolidated register parts	13 (A-M)
ASCII master flow panels authored	19

BASIC LEARNING SESSION

CONCEPT SPINE - ENGLISH FIRST, TECHNICAL TERM IMMEDIATELY AFTER

THE ONE THING THIS CLAUSE IS ABOUT
EVERY POLITICAL ORDER MUST BE ABLE TO DECIDE FINALLY -- TO MAKE BINDING
RULES, SETTLE DISPUTES, KEEP ORDER AND SPEAK OUTWARD. "SOVEREIGNTY" NAMES
THAT CAPACITY. THE WHOLE SYLLABUS ITEM IS A DISPUTE OVER THREE QUESTIONS
ABOUT IT: *WHERE* IS IT LOCATED, *HOW* IS IT STRUCTURED, *HOW FAR* IS IT
LIMITED. THE FOUR PRINTED NAMES ARE FOUR ANSWERS, NOT FOUR SUMMARIES.

+-----+-----+ THE THREE STANDING QUESTIONS +-----+-----+		
WHERE? 'WHO OR WHAT HOLDS FINAL AUTHORITY?'	HOW? 'IS FINAL AUTHORITY ONE AND UNDIVIDED, OR SHARED?'	HOW FAR? 'WHAT MAY LIMIT THE FINAL AUTHORITY -- HIGHER LAW, MORALITY, ASSOCIATIONS, WELFARE, OR OTHER STATES?'
BODIN: the commonwealth's supreme law- giving power	BODIN: indivisible -- shared finality means civil war	BODIN: divine law, natural law, the fundamental laws of the realm (leges imperii)
AUSTIN: a determinate human superior	AUSTIN: indivis- ible, illimitable, inalienable	AUSTIN: no LEGAL limit inside the order; moral limits fall outside the definition
LASKI: nowhere single -- plural associations	LASKI: authority must be DIVIDED and SHARED	LASKI: morality, liberty, associational autonomy, earned allegiance
KAUTILYA: the ruler (svami) inside a seven- limbed state	KAUTILYA: organic -- seven limbs interdependent, not simply one	KAUTILYA: dharma, welfare (yogaksema), prudence, counsel and interstate necessity

THE MOVE THAT CARRIES MARKS IN ALMOST EVERY QUESTION HERE
DO NOT ASK 'IS SOVEREIGNTY GOOD OR BAD?'. ASK WHICH *DIMENSION* THE STEM IS
TESTING -- INTERNAL/EXTERNAL, LEGAL/POLITICAL, DE JURE/DE FACTO, TITULAR/
ACTUAL, MONIST/PLURALIST -- FIX THAT AXIS FIRST, AND ONLY THEN GRADE THE
THINKERS AGAINST IT. THE AXIS IS THE ANSWER'S SPINE.

THE NAMES YOU CANNOT AVOID AND WHAT EACH IS FOR
BODIN absolute and perpetual power (2020 Q1(d), 2022 Q2(a))
AUSTIN ... determinate human superior (2019 Q3(a), 2021 Q1(c))
LASKI the state is one association among many (2018, 2023)
KAUTILYA. saptanga, dandaniti, mandala (2018, 2019, 2021, 2024, 2025 -- five of the eleven owned parts)
+ Kelsen hierarchy of norms; basic norm (Grundnorm), 1945
+ HART .. primary and secondary rules; rule of recognition, 1961
+ HOBBS the absolutist foil the owner itself names
+ ROUSSEAU the general will as the popular-sovereignty rival

Caption: the whole clause on one screen. Three questions, four printed answers, two internal repairs, and the axis-fixing move that lifts almost every answer in this cluster.

ANSWER-WORTHINESS - WHAT EARNS MARKS AND WHAT DOES NOT

Move	Earns marks	Loses marks
Opening the answer	Naming the dimension the stem tests - <i>legal against political, internal against external, monist against pluralist</i> - inside the first three lines	"Sovereignty is the most important attribute of the state since time immemorial..."
Defining a thinker	The thinker's own vocabulary: <i>absolute and perpetual power, determinate human superior, one association among many, saptaṅga and daṇḍanīti</i>	Four paraphrases of the single word "supreme"
Handling Bodin	Absolute and bound - supreme over ordinary positive law, restrained by divine law, natural law and the fundamental laws of the realm (<i>leges imperii</i>)	Writing Bodin as Hobbes, or as a theorist of lawless despotism
Handling Austin	Command, sanction, habitual obedience and the five attributes, followed by the criticisms grouped - internal repairs first, external objections second	A random list of five criticisms with no reply and no ordering
Handling Laski	Pluralism as a doctrine of liberty , with the mature qualification that he limits the state rather than abolishing it	Calling Laski an anarchist, or reducing pluralism to administrative decentralisation
Handling Kautilya	The organism: seven limbs, calibrated coercion, security and welfare, and the circle of states - strong because duty-bound	Reducing Kautilya to foreign policy, or to "Indian Machiavelli"
Using India	One dated instrument or judgment, classified accurately, with the caution that legal status is not philosophical proof	Calling Parliament, the Supreme Court or the Constitution "the Austinian sovereign"
Closing	A graded verdict separating what survives (final legal authority) from what does not (the determinate personal sovereign)	"Thus sovereignty is important but has some limitations."

HOW TO READ THIS SESSION

1. **Every session opens with a picture.** Read the diagram or table before the prose; the visual carries the argument's shape, and the prose only names its parts.
2. **Read the Basic block straight through.** It is deliberately answer-complete: after Session 20 you can write any of the eleven owned previous-year parts without the Advanced block.
3. **Do not import the Advanced block into a core answer.** It sits at the end, clearly fenced, and exists for one added debate or one sharper objection in a 15- or 20-marker.
4. **Treat the answer-grabbing line and the paragraph demonstration as drills.** Copy the demonstration's four-move shape - claim -> named evidence -> analysis -> qualification - and refill it in your own words until the shape is automatic.
5. **The consolidated register notes come last on purpose.** They are compressed recall, not a second reading of the teaching.

ORIGIN AND CHRONOLOGY - THE MINIMUM NEEDED TO AVOID ANACHRONISM

Sovereignty is a doctrine with a datable modern origin, and several standing traps in this clause are simply anachronisms or swapped attributions. ANALYSIS: The rail below fixes the sequence of positions and the two provenance dates the paper can punish; it is not a history of institutions.

ANCIENT INDIA -----	EARLY MODERN EUROPE -----	19th CENTURY -----	20th CENTURY -> -----
KAUTILYA Arthashastra: seven-limbed state (saptanga); calibrated coercion (dandaniti); circle of states (mandala); six-fold policy (sadgunya); security and welfare (yogaksema) the ruler (svami) is head of an organism, not an unlimited master	BODIN Six Books of the Commonwealth: sovereignty is the ABSOLUTE and PERPETUAL power of a commonwealth; INDIVISIBLE; bound by divine law, natural law and the leges imperii HOBBS security-first absolutism -- the foil Bodin is NOT ROUSSEAU sovereignty stays with the PEOPLE as the general will; government is only their agent	AUSTIN The Province of Jurisprudence Determined: law = command backed by sanction; sovereign = DETERMINATE HUMAN SUPERIOR MAINE Ranjit Singh counter-example against the neat Austinian formula FIGGIS / COLE / MacIVER the supported pluralist lineage behind and beside Laski	LASKI A Grammar of Politics; Studies in the Problem of Sovereignty: the state is ONE ASSOCIATION among many KELSEN 1945 General Theory of Law and State: hierarchy of norms -> basic norm (Grundnorm) HART 1961 The Concept of Law: primary + secondary rules; RULE OF RECOGNITION

Caption: the order of the positions, not a history of states. Three anachronism traps and one date-swap trap live on this rail.

ANALYSIS: **The four errors this rail prevents.** (i) **Bodin is not Hobbes:** Bodin's sovereign is above ordinary positive law yet bound by divine law, natural law and the fundamental laws of the realm, so "Bodin = unlimited despotism" is false. (ii) **Kautilya is not Austin in Sanskrit:** the *Arthasāstra* precedes the modern doctrine by many centuries and makes authority duty-bound, so reading Austinian illimitability into the *svāmī* is an anachronism. (iii) **Kelsen and Hart repair Austin from inside legal positivism;** they are not additional external critics standing beside Laski, and merging the three into one "modern critique" destroys the answer's structure. (iv) **WRONG: Never date Kelsen's General Theory of Law and State to 1961.** 1945 is the first English edition of Kelsen; 1961 is Hart's *The Concept of Law*. This adjacent pair is the most commonly swapped provenance in the whole clause; if unsure in the hall, name the works in sequence without years.

EXACT OWNERSHIP BOUNDARY AND INDISPENSABLE BRIDGES

The printed owner is a dispute about **final authority**: where it sits, whether it can be one and unlimited, and what constrains it. Doctrines from neighbouring clauses enter only where an owned previous-year part cannot be answered without them.

Concept	What this owner must teach	Canonical boundary
Hobbes	The security-first absolutist bridge that shows how far Bodin is <i>not</i> an unlimited despot, and what a genuinely unlimited sovereign would look like	The social contract, the state of nature and political obligation belong to Individual and State
Rousseau	The general will as the popular-sovereignty counterpoint to Austin's determinate superior, used to show why "the people" resist Austinian determinacy	Rousseau's account of natural against artificial inequality belongs to Social and Political Ideals ; the origin of contract theory belongs to Individual and State
Locke and Hegel	Named only as routed comparisons - Locke for limited government under known law, Hegel for the ethical-statist view of the state	Both are developed by Individual and State and, for Hegel, by the Paper I Western owner; do not expound either here
Kelsen and Hart	The two <i>internal</i> repairs of Austin - the hierarchy of norms terminating in a basic norm, and the union of primary and secondary rules with a rule of recognition	Dworkin's principles-and-hard-cases objection is named and routed to Individual and State , never developed here

Concept	What this owner must teach	Canonical boundary
Rights and political obligation	Rights as limits on absolutism, and allegiance as Laski's test of legitimate authority	The full rights-duties-obligation architecture belongs to Individual and State
Democracy	Only the compatibility question the papers actually ask, of Austin in 2021 and of Kautilya in 2021	The positive theory and forms of democracy belong to Forms of Government
Equality, justice and liberty	Only as the normative test applied to Bodin in the 2022 part	The ideals themselves belong to Social and Political Ideals
International institutions	What treaty, delegation, pooling and material dependence do to external sovereignty	Institutional design and current diplomatic detail belong to International Relations
Indian constitutional law	One jurisdiction-safe illustration of competence-distributed authority	Article-by-article doctrine and the federal lists belong to Polity

The internal and the external face of each question

Question	Internal face	External face	Controlling warning
Where is authority?	Which person, body, norm or practice decides finally inside the state	Which unit is recognised as independent in the society of states	Recognition abroad and obedience at home can come apart
How is it structured?	One undivided legal source, or distributed competences	Treaty capacity, delegation, pooling and alliance	Distributing competence is not the same as alienating sovereignty
How far is it limited?	Higher law, constitutional rules, morality, associations, welfare duty	Interdependence, conditionality and asymmetric power	Constraint is not extinction; say <i>reconfigured</i> , never <i>abolished</i>

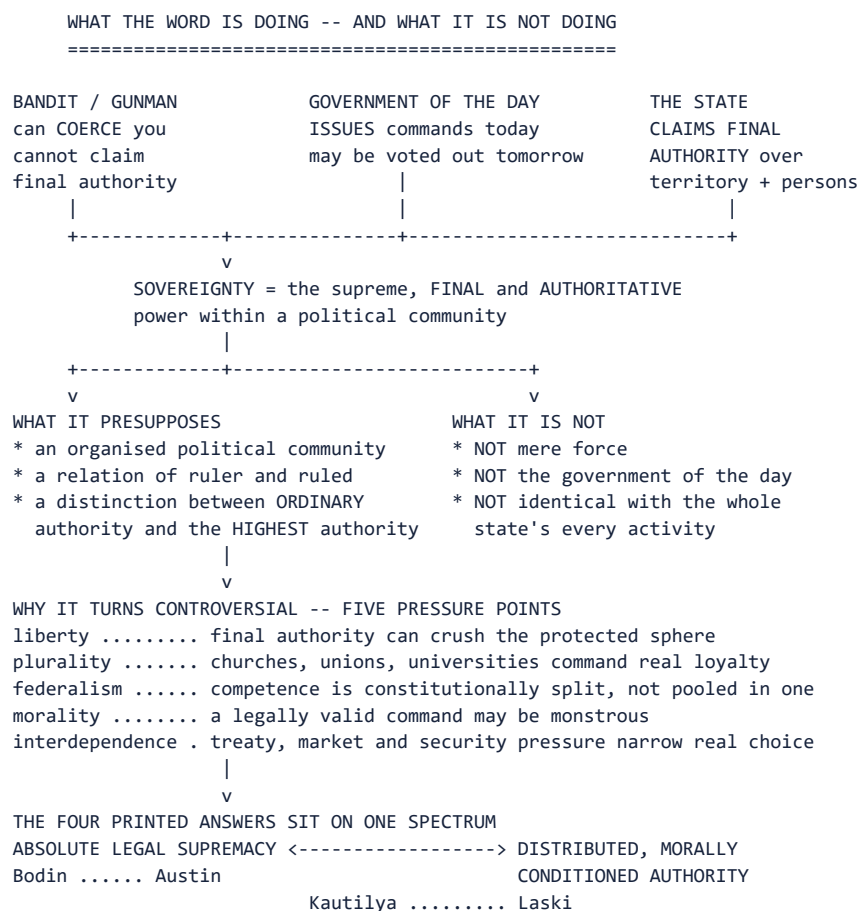
ONE-SCREEN ROUTE MAP

Unit	Session	What it settles	Previous-year part it directly serves
1	The clause, the concept and the controversy	What sovereignty asserts and why it is disputed	every part
2	Inside and outside, and the five classical attributes	Internal/external; absoluteness, permanence, universality, inalienability, indivisibility	2020 Q4(b); 2022 Q2(a)
3	Legal against political sovereignty	The divergence Austin sharpens and Laski exploits	2021 Q1(c); 2023 Q2(a)
4	Lawful title against actual obedience; office against wielder	De jure/de facto and titular/actual	2019 Q3(a)
5	Popular and national sovereignty; the Rousseau bridge	Why "the people" resist Austinian determinacy	2021 Q1(c)
6	Bodin I - civil war, the definition, the two words	Absolute and perpetual power of a commonwealth	2020 Q1(d); 2022 Q2(a)
7	Bodin II - indivisibility, the limits, and why he matters	<i>Legibus solutus</i> only of ordinary law; <i>leges imperii</i>	2022 Q2(a); 2020 Q1(d)
8	Austin I - the analytical project and the determinate superior	The three-part definition	2021 Q1(c); 2019 Q3(a)
9	Austin II - command, sanction and the five attributes	Determinate, absolute, indivisible, illimitable, inalienable	2019 Q3(a)
10	Austin III - federalism, international law, custom	The three structural criticisms	2021 Q1(c)
11	Austin IV - democracy, parliamentary sovereignty, Maine	The compatibility verdict and the jurisdiction control	2021 Q1(c)

Unit	Session	What it settles	Previous-year part it directly serves
12	Kelsen - the hierarchy of norms and the basic norm	The first internal repair, 1945	2019 Q3(a); 2023 Q2(a)
13	Hart - primary and secondary rules, rule of recognition	The second internal repair, 1961	2021 Q1(c); 2023 Q2(a)
14	Laski I - pluralism and the supported lineage	One association among many; Figgis, Cole, MacIver	2018 Q2(b); 2023 Q2(a)
15	Laski II - the threefold rejection, allegiance, assessment	Philosophically false, politically dangerous, sociologically unrealistic	2023 Q2(a); 2018 Q2(b)
16	Kautilya I - the seven-limbed state and the ruler	<i>Saptāṅga</i> ; the <i>svāmī</i> as head, not unlimited master	2019 Q3(a); 2024 Q4(b)
17	Kautilya II - calibrated coercion	<i>Daṇḍanīti</i> as ordered, proportionate force	2018 Q1(d)
18	Kautilya III - circle of states, six-fold policy, welfare, relevance	<i>Maṇḍala</i> , <i>śādgūṇya</i> , <i>yogakṣema</i> , democratic applicability	2025 Q2(c); 2021 Q3(c); 2024 Q4(b)
19	Sovereignty under globalisation	Treaty, delegation, pooling, dependence	2020 Q4(b)
20	Synthesis - debates, criticisms, traps, answer spine	The comparison grid and the graded verdicts	every part

SESSION 1 - THE PRINTED CLAUSE, THE CONCEPT OF SOVEREIGNTY AND WHY IT BECOMES CONTROVERSIAL

The picture first



Caption: sovereignty is a claim about finality, not about force. The five pressure points are the whole reason the syllabus prints four rival names rather than one definition.

In plain words

Somebody, somewhere, has to be able to say "this is now settled" - otherwise every dispute reopens forever and collective life dissolves into rival commands. That capacity to settle finally is what the word *sovereignty* names. Notice at once what this does **not** mean. A gunman can make you hand over your wallet; he cannot make the transfer *lawful*, and nobody treats his order as a reason. A government can issue commands today and be dismissed tomorrow; its authority is real but derived. Sovereignty is the claim standing behind both: the claim to be the last word in the political community.

The moment you state the claim, you can see why four thinkers fight over it. Final authority is exactly the thing that liberty fears, that plural associations resist, that federal constitutions split up, that morality may condemn and that international life constrains. So the syllabus item is not "define sovereignty"; it is "adjudicate a dispute about how final authority may be located, structured and limited".

The doctrine, exactly

FACT: The core statement. Sovereignty means the **supreme, final and authoritative power within a political community**. A state is distinguished from other associations because it claims a power of ultimate decision: to issue binding rules, adjudicate disputes, maintain order and represent the community externally.

ANALYSIS: The supporting argument. Without some form of final authority, collective life would fragment into competing commands; every unresolved dispute would generate a rival claimant, and the community would have no procedure for closure.

ANALYSIS: What the concept presupposes. Three things: an organised political community; a relation of ruler and ruled; and a distinction between **ordinary** authority and the **highest** authority. Remove any of the three and the word loses its work.

FACT: The controlling distinction. Sovereignty is **not identical with mere force**. A bandit may coerce, but sovereignty implies recognised or effective final authority within a political order. This single distinction is what allows the whole clause to be a *philosophical* dispute rather than a description of who has the biggest army.

ANALYSIS: Where the constitutional example fits. A constitution may distribute functions among legislature, executive and judiciary and still embody a structure for final decision. Distribution of function is not, by itself, the absence of finality - and noticing that is what stops the beginner's objection below from being decisive.

ANALYSIS: Why the concept becomes controversial. Because the need for final authority clashes with **liberty, plurality, federalism, morality and global interdependence** - and because each printed thinker writes from inside a different one of those pressures. Bodin writes amid civil war and seeks unity; Austin seeks juristic clarity; Laski fears absolutism; Kautilya ties power to welfare and strategic necessity. The controversy is therefore not merely semantic; it is a dispute about order, freedom and statecraft.

Named evidence you can cite

- **Bodin FACT:** - sovereignty is the **absolute and perpetual power of a commonwealth**; the first systematic modern statement, framed against religious civil war.
- **Austin FACT:** - the sovereign is a **determinate human superior**, habitually obeyed by the bulk of a society and habitually obeying no one; the sharpest legal formulation.
- **Laski FACT:** - the state is **one association among many**; absolute sovereignty is philosophically false, politically dangerous and sociologically unrealistic.
- **Kautilya FACT:** - sovereignty is centred on the ruler (*svāmī*) but the state is an organism of **seven limbs (saptāṅga)** oriented to **security and welfare (yogakṣema)**.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Sovereignty is a claim about **finality, not about force**: the question the paper actually sets is never whether a political order needs a last word, but whether that last word must be single, legally unlimited and morally self-justifying.

MUST-WRITE KEYWORDS

final and authoritative power · not reducible to force · ordinary against highest authority · the five pressure points · monist-pluralist spectrum · located, structured, limited · finality, not omnipotence

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Sovereignty names the capacity for final decision within a political community, and is therefore distinct from the mere ability to coerce. **Named evidence.** Bodin defines it as the absolute and perpetual power of a commonwealth, and Austin as the determinate human superior habitually obeyed by the bulk of society - two very different formulations, but both are answers to the question "who or what decides last?", not to the question "who is strongest?". **Analysis.** That is why a bandit is excluded by definition while a constitutionally limited legislature is not: the criterion is recognised or effective **finality of decision**, and a constitution that distributes functions may still contain a structure of finality. **Qualification.** The concept nevertheless becomes contested the moment it is stated, because finality is precisely what liberty, associational plurality, federal division, moral judgement and international interdependence each resist - which is why the syllabus prints four rival names rather than a single definition.

Objection -> reply -> residual limit

- **Objection FACT:.** In modern constitutional democracies power is so dispersed - between houses, levels, courts and electorates - that speaking of one "supreme" authority is misleading.
- **Reply ANALYSIS:.** The objection weakens **monistic** theories, but not the broader inquiry. The concept remains useful if one distinguishes the legal, political and external dimensions instead of assuming one undivided centre; the question then becomes *which* dimension the stem is testing.
- **Residual limit CAUTION:.** The dispute is genuine and survives the reply. Whether a distributed constitutional order still contains a single point of finality, or merely a set of procedures, is exactly what Kelsen, Hart and Laski disagree about later in this session. Never assert that the objection has been answered; state which dimension survives it.

Examiner traps on this session

1. Opening with a definition of the **state** instead of a definition of **sovereignty**, and then never returning to finality. The state is the bearer; sovereignty is the claim.
2. Treating all four printed thinkers as saying the same thing about "supremacy". The paper repeatedly asks for exact differences, and 2019 Q3(a) makes that demand explicit.
3. Answering the general question "is sovereignty good?" instead of the dimensional question the stem sets. Fix the axis - internal/external, legal/political, monist/pluralist - before writing a single verdict.

Mini recap

Finality, not force. Three presuppositions, one controlling distinction, five pressure points. The four printed names are four answers to *where*, *how* and *how far* - and the axis must be named before any of them is graded.

SESSION 2 - INSIDE AND OUTSIDE, AND THE FIVE CLASSICAL ATTRIBUTES

The picture first

TWO FACES OF ONE CLAIM =====		FIVE CLASSICAL ATTRIBUTES =====	
+-----+ INTERNAL SOVEREIGNTY supremacy over persons and associations INSIDE the state -> Bodin, Austin, Laski, Kautilya +-----+ +-----+ EXTERNAL SOVEREIGNTY independence from outside control in the society of states -> Kautilya's mandala; globalisation debate +-----+	+-----+ +-----+ +-----+	ATTRIBUTE	EXAM-SAFE MEANING
		ABSOLUTENESS	no superior human law-maker commands it WITHIN
		PERMANENCE / CONTINUITY	governments change; the state's authority persists
		UNIVERSALITY	reaches all persons and associations in territory
		INALIENABILITY	cannot be given away without ceasing to be
		INDIVISIBILITY	classical theory needs ONE final legal source
		EACH ONE HAS A REQUIRED QUALIFICATION	
		absolute != morally infallible	
		permanent != literally eternal	
		universal != no recognised immunities	
		inalienable: DELEGATION is not alienation	
		indivisible: COMPETENCE may still be split	

THE TWO MUST NOT BE COLLAPSED

a state may control internal life yet be externally constrained

a state may be externally recognised yet internally fragile

|
v

PLACEMENT: Bodin supplies the defining pair ABSOLUTE + PERPETUAL.

Austin supplies the sharpest DETERMINATE-SUPERIOR formulation.

The five-part list is a CONSOLIDATION of that monist tradition --

it is not five claims uniquely invented by either man.

Caption: two faces, five attributes, five qualifications. The right-hand column is where the marks are: the attribute without its qualification is a slogan.

In plain words

Sovereignty looks in two directions at once. Facing inward it says: inside this territory, my decision is the last one. Facing outward it says: no other state gets to make that decision for me. Those are different claims and they can come apart - a government may be perfectly obeyed at home while being unable to resist a stronger neighbour, and a state may be recognised by everyone abroad while unable to collect taxes in half its own districts.

Then there is the classical list of five adjectives that textbooks attach to sovereignty. Learn them, but learn each with the sentence that limits it - because every one of the five, stated flat, is false, and an examiner who has read Laski will notice.

The doctrine, exactly

FACT: **Internal sovereignty** is supreme authority over persons and associations within the state. It is central to all four printed thinkers. FACT: **External sovereignty** is independence from external control in the society of states. It is central to Kautilya's diplomacy and to the modern globalisation debate. ANALYSIS: **Why they must not be collapsed:** a state may control internal life yet be constrained externally by stronger powers; equally, it may be externally recognised yet internally fragile. FACT: **Kautilya's use:** the circle-of-states (*mandala*) theory assumes that external sovereignty is always **strategic and relational** rather than merely declaratory - a point that pays directly in the 2025 part.

The five classical attributes, each with its required qualification FACT:

Attribute	Exam-safe meaning	Required qualification
Absoluteness	No superior human law-maker legally commands the sovereign within the political order	Legal non-subordination does not prove moral infallibility or practical omnipotence

Attribute	Exam-safe meaning	Required qualification
Permanence / continuity	Governments and office-holders change while sovereignty continues with the state	Permanence means continuity while the state remains independent, not literal eternity
Universality	Sovereign jurisdiction extends in principle across persons and associations within the territory	Immunities and autonomous spheres may exist by constitutional or legal recognition
Inalienability	Sovereignty cannot be transferred away without the old state losing that sovereign status	Delegation, devolution or treaty commitment is not automatically alienation
Indivisibility	The classical theory requires one final legal source	Governmental competences may be distributed even where monists insist legal finality remains one

FACT: **Bodin-Austin placement.** Bodin supplies the defining pair **absolute and perpetual**; Austin gives the sharpest determinate-superior formulation; the five-part list is a standard **consolidation** of their monist tradition, not five claims uniquely invented by either.

ANALYSIS: **The continuity bridge you will need in Session 12.** Austin's habit theory struggles to explain succession and the persistence of old law - exactly the *permanence* attribute. Kelsen's hierarchy of norms and Hart's rules later repair that problem **without restoring a personal absolute sovereign.**

Named evidence you can cite

- **Bodin FACT:** - *absolute and perpetual*: the two adjectives that generate the whole classical list.
- **Austin FACT:** - determinate, absolute, indivisible, illimitable, inalienable: the sharpened legal restatement.
- **Kautilya FACT:** - the circle of states (*maṇḍala*) as the working theory of the **external** face.
- **Laski FACT:** - the standing objection that universality and indivisibility misdescribe a society of real associations.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The classical attributes are defensible only in their qualified form: sovereignty is **absolute without being morally infallible, permanent without being eternal, universal without abolishing recognised immunity, inalienable although competences may be delegated, and indivisible in legal source although divisible in competence.**

MUST-WRITE KEYWORDS

internal against external · absoluteness · permanence and continuity · universality · inalienability · indivisibility · delegation is not alienation · competence against finality · relational external sovereignty

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The classical attributes of sovereignty survive criticism only when each is stated with its own limiting clause. **Named evidence.** Bodin supplies the defining pair - *absolute and perpetual* - and Austin sharpens the list into determinate, absolute, indivisible, illimitable and inalienable authority; but Bodin himself concedes that the sovereign is bound by divine law, natural law and the fundamental laws of the realm. **Analysis.** The concession shows what the adjectives were ever meant to do: *absolute* denies a superior **law-maker**, not a superior **norm**; *inalienable* denies the giving away of the sovereign status, not the delegation of competences; *indivisible* asserts one final legal source, not the impossibility of splitting governmental functions. **Qualification.** So stated, the list is compatible with federal division and treaty commitment; stated flat, it is refuted by the first federation or treaty a critic names - which is precisely how the objections in Sessions 10 and 14 get their force.

Objection -> reply -> residual limit

- **Objection CAUTION:.** Global interdependence has made external sovereignty obsolete; states no longer decide anything of consequence alone.
- **Reply ANALYSIS:.** Globalisation changes the **mode** of external sovereignty but does not abolish the question of who makes final decisions on war, treaty, economy or political membership. The issue is **transformed** sovereignty, not vanished sovereignty.

- **Residual limit ANALYSIS:** The reply concedes something real: where material dependence is severe, legal independence may survive while effective autonomy declines. Session 19 turns that concession into the structure of the 2020 Q4(b) answer instead of hiding it.

Examiner traps on this session

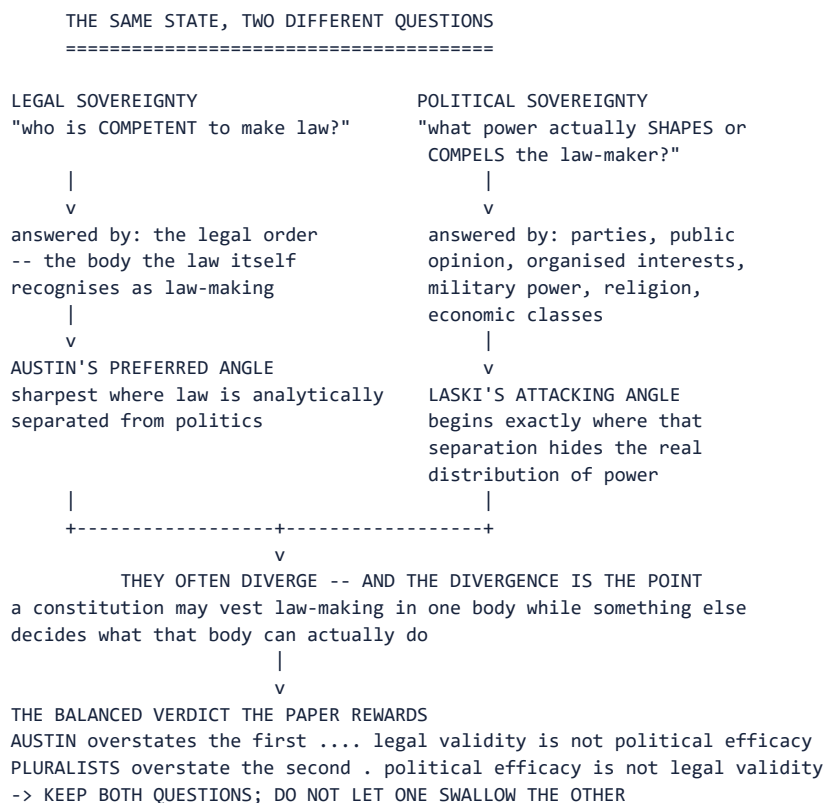
1. Reciting the five attributes without their qualifications. Every unqualified attribute is refutable by a first-year example, and the examiner will supply it.
2. Omitting **permanence** and **universality** from the classical set, which happens whenever a candidate remembers only Austin's shorter list.
3. Treating external sovereignty as a mere declaration of independence. For Kautilya it is **positional and relational** - which is exactly why the 2025 quoted line is answerable.

Mini recap

Two faces that can come apart; five attributes that are only defensibly qualified. Absolute ≠ infallible, permanent ≠ eternal, universal ≠ immunity-free, inalienable ≠ undelegatable, indivisible ≠ competence-undividable.

SESSION 3 - LEGAL AGAINST POLITICAL SOVEREIGNTY

The picture first



Caption: two questions, two answers, one divergence. The final box is the sentence that converts this session into marks in 2021 Q1(c) and 2023 Q2(a).

In plain words

Ask "who may make law here?" and you get a legal answer - a named body with a recognised competence. Ask "who decides what that body will actually do?" and you often get a different answer entirely: a party high command, a mass movement, a financial constraint, an army, a church. Both questions are real. The mistake is to think that answering one has answered the other.

Austin built his theory around the first question and made it beautifully precise. Laski attacked from the second and showed how much the first leaves out. Neither is simply wrong; the failure is to collapse them.

The doctrine, exactly

FACT: **Legal sovereignty** is the authority recognised by law as competent to make law. It is Austin's preferred angle. FACT: **Political sovereignty** is the actual power behind legal institutions - the force that can compel or shape the legal sovereign. It belongs to democratic and sociological analysis and is directly relevant to Laski. FACT: **The core statement.** Legal sovereignty names the **juristic source of valid law**; political sovereignty names the **real locus of social power**. ANALYSIS: **The argument.** The two often diverge. A constitution may vest law-making power in one body, while parties, public opinion, organised interests, military power, religion or economic classes determine what that body can actually do. ANALYSIS: **Placement of the two thinkers.** Austin's theory is strongest exactly where law is analytically separated from politics; Laski's critique begins exactly where that separation obscures the lived distribution of power.

ANALYSIS: **Why this distinction is the hinge of the whole clause.** Almost every objection to monism in Sessions 10, 11, 14 and 15 is a *political-sovereignty* objection aimed at a *legal-sovereignty* thesis. Naming the distinction before you deploy the objection is what separates a philosophical answer from a list.

Named evidence you can cite

- **Austin FACT:** - sovereignty as a legal relation of command, obedience and sanction: the purest statement of the first question.
- **Laski FACT:** - allegiance is earned by what institutions do, not owed because of legal title: the purest statement of the second.
- **Bodin ANALYSIS:** - mixes the two deliberately, because he is theorising law, office **and** state-building at once.
- **Kautilya ANALYSIS:** - integrates power, welfare and diplomacy, and so does not sit cleanly on either side of the modern distinction.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Legal and political sovereignty answer two different questions - **who may make law** and **what decides what the law-maker does** - and most objections to monistic sovereignty are political answers offered against a legal thesis, which is why the distinction must be stated before the objection is used.

MUST-WRITE KEYWORDS

juristic source of valid law · real locus of social power · divergence · validity against efficacy · Austin's angle · Laski's angle · do not let one question swallow the other

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The most common failure in sovereignty answers is a category error: answering a question about legal competence with evidence about political power. **Named evidence.** Austin defines sovereignty as the relation between a determinate human superior and habitually obedient subjects, which is a claim about the **source of legal validity**; Laski replies that the state must compete for allegiance and cannot claim unlimited obedience by title alone, which is a claim about the **distribution of real power**. **Analysis.** The two claims can both be true at once, because a constitution may vest law-making in one body while parties, organised interests or economic classes decide what that body is able to do - so the divergence is a feature of political life, not a contradiction between the theorists. **Qualification.** The balanced verdict must therefore refuse both reductions: Austin overstates the sufficiency of legal validity, pluralists overstate the sufficiency of political efficacy, and a good answer keeps both questions open rather than declaring one of them the real one.

Objection -> reply -> residual limit

- **Objection CAUTION:** If political sovereignty always overrides legal sovereignty, jurisprudence becomes pointless - the law is simply a record of who won.
- **Reply ANALYSIS:** The reply is not to abolish jurisprudence but to recognise that **legal validity and political efficacy are different questions**. Austin overstates the first; pluralists overstate the second; a balanced answer keeps both.
- **Residual limit ANALYSIS:** The reply does not tell us how much efficacy a legal order may lose before its validity claim becomes empty. Kelsen concedes exactly this by making by-and-large effectiveness a *condition* of validity -

a concession Session 12 states rather than hides.

Examiner traps on this session

1. Confusing legal and political sovereignty, then attacking Austin with evidence he never claimed to explain. This is trap 7 of the owner's standing list.
2. Treating "political sovereignty" as a synonym for popular sovereignty. Political sovereignty is a **sociological** category; popular sovereignty is a **legitimacy** claim, and Session 5 separates them.
3. Writing the divergence as if it were a defect of the constitution. It is a general feature of political life and is precisely why the distinction is analytically useful.

Mini recap

Two questions, not one. Austin owns the first, Laski attacks from the second, Bodin mixes them and Kautilya integrates them. Never let one question swallow the other.

SESSION 4 - LAWFUL TITLE AGAINST ACTUAL OBEDIENCE, AND OFFICE AGAINST WIELDER

The picture first

TWO MORE PAIRS -- AND WHAT EACH IS DIAGNOSTIC OF
=====

PAIR 1: TITLE vs OBEDIENCE

DE JURE SOVEREIGNTY

lawful in title and formal right
-> useful for constitutional analysis

DE FACTO SOVEREIGNTY

actually obeyed in practice regardless of lawful title
-> useful for revolution, coups, unstable orders

PAIR 2: OFFICE vs WIELDER

TITULAR SOVEREIGNTY

authority vested formally in an office or symbol
-> crown, ceremonial headship, constitutional title

ACTUAL SOVEREIGNTY

authority effectively exercised by those who really govern
-> cabinet, party leadership, ruling coalition, bureaucracy

THE FOUR COMBINATIONS

	OBEYED IN PRACTICE	NOT OBEYED
LAWFUL TITLE	settled constitutional order	claimant with title but no control
NO LAWFUL TITLE	effective control without legal warrant	neither -- a mere pretender

WHERE EACH THINKER SITS

AUSTIN -> habitual obedience gives his theory a DE FACTO EDGE
BODIN -> perpetuity attaches to the OFFICE, not the magistrate
-> the two men are therefore NOT saying the same thing even here

Caption: four cells, two diagnoses. The bottom rail is the highest-value line on the page: it shows that Bodin and Austin diverge on the office/obedience axis, not only on limits.

In plain words

A person may have every legal right to rule and command nobody. Another may command everybody and have no legal right at all. Political history is full of both, and the vocabulary for the difference is *de jure* against *de facto*. A second, related split runs between the office that formally holds authority and the people who actually exercise it - a crown against a cabinet, a ceremonial head against a party leadership.

These are not decorative distinctions. They are how you avoid saying something false about Austin, who leans on obedience, and about Bodin, who leans on office.

The doctrine, exactly

FACT: **De jure sovereignty** is authority lawful in title and formal right - the useful category for constitutional analysis. FACT: **De facto sovereignty** is authority actually obeyed in practice regardless of legal title - the useful category for revolution, coups and unstable orders. FACT: **The core statement.** One may possess the lawful title to rule without actual control, or actual control without lawful title. ANALYSIS: **Why the distinction matters.** Obedience can attach to success, fear, legitimacy or legality in different combinations; the categories keep those grounds apart. ANALYSIS: **Thinker placement, and this is the mark-bearing sentence.** Austin's emphasis on **habitual obedience** gives his theory a *de facto* edge, whereas Bodin is more concerned with the **permanent office-character** of sovereign authority.

FACT: **Titular sovereignty** is authority vested formally in an office or symbol - a crown, a ceremonial headship, a constitutional title. FACT: **Actual sovereignty** is authority effectively exercised by those who really govern - a cabinet, a party leadership, a ruling coalition, a strategic bureaucracy. FACT: **The core statement.** The formal bearer of sovereignty may differ from its effective wielder. ANALYSIS: **What it explains.** Constitutional monarchies, parliamentary government and many republics where nominal and real authority diverge. It also prevents the careless identification of "the state" with whoever appears at the top ceremonially.

Named evidence you can cite

- **Austin** FACT: - habitual obedience by the bulk of society: the criterion that gives the theory its factual edge.
- **Bodin** FACT: - perpetuity attaches to the **office**, not to a temporary magistrate or delegated official.
- **Kautilya** ANALYSIS: - a ruler without treasury (*kośa*) or ministers (*amātya*) may possess title but not effective sovereignty: the *saptāṅga* version of the same point.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Austin's criterion of habitual obedience gives his sovereign a **de facto edge**, whereas Bodin's perpetuity attaches to the **office** rather than the office-holder - so the two founders of the monist tradition already diverge on where finality is anchored, before any critic arrives.

MUST-WRITE KEYWORDS

de jure · de facto · titular · actual · lawful title without control · control without title · office against magistrate · the ceremonial identification error

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The de jure/de facto and titular/actual pairs are not textbook ornaments; they mark the exact point at which Bodin and Austin part company. **Named evidence.** Bodin's second defining adjective is *perpetual*, and he explains it as authority attaching to the sovereign **office** rather than to a temporary magistrate; Austin's second defining condition is **habitual obedience by the bulk** of a given society, which is a claim about observed compliance. **Analysis.** Anchoring finality in an office makes sovereignty survive the death of the holder without any factual question arising, whereas anchoring it in obedience makes the theory hostage to whether compliance has in fact formed - which is why the succession problem bites Austin and not Bodin. **Qualification.** The divergence should not be overstated into an opposition: Bodin's office is still supreme over positive law and Austin's superior is still determinate, so the two remain monists - they simply locate the durability of the claim in different places.

Objection -> reply -> residual limit

- **Objection CAUTION:.** *De facto* power alone should count, because politics is about effectiveness and legal title is decoration.
- **Reply ANALYSIS:.** That is too reductionist. Political order usually seeks legality **as well as** effectiveness; hence de jure and de facto status are analytically separable and normatively important.
- **Objection CAUTION:.** Such distinctions dilute the concept of sovereignty beyond usefulness.
- **Reply ANALYSIS:.** On the contrary, they **rescue** the concept from oversimplification: the examination repeatedly rewards answers that distinguish legal title, actual power, office and obedience.
- **Residual limit ANALYSIS:.** Neither reply tells us how long an effective but untitled authority must last before it becomes lawful, which is exactly the point at which Kelsen's efficacy condition, in Session 12, becomes

unavoidable.

Examiner traps on this session

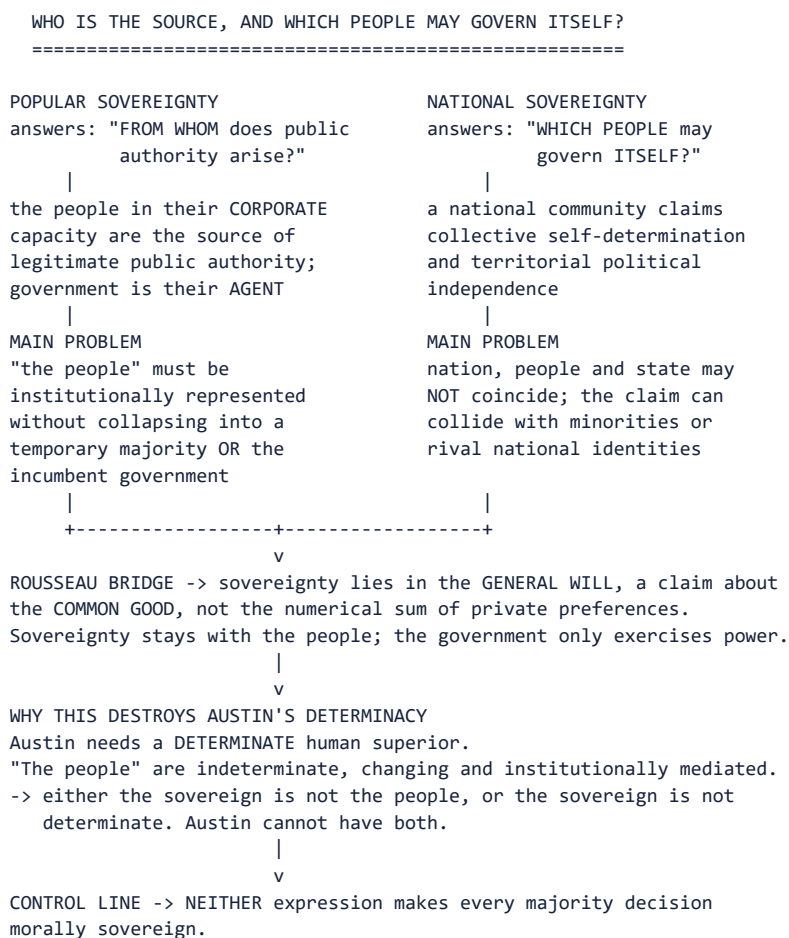
1. Using *de facto* as a synonym for *illegitimate*. It is a description of obedience, not a moral verdict.
2. Identifying "the state" with the ceremonial head of state. The titular/actual pair exists precisely to prevent that.
3. Writing that Austin and Bodin agree because both are monists. They diverge on the office/obedience anchor, and saying so is a cheap, high-value differentiation in 2019- and 2022-type comparison stems.

Mini recap

Four cells and two anchors. Title against obedience; office against wielder. Austin leans factual, Bodin leans institutional - and that single observation is worth a paragraph in any comparison answer.

SESSION 5 - POPULAR AND NATIONAL SOVEREIGNTY, AND THE ROUSSEAU BRIDGE

The picture first



Caption: two questions, one bridge, one lethal consequence for Austin. The last box is the sentence that stops the answer collapsing into majoritarianism.

In plain words

"Sovereignty belongs to the people" is one of the most repeated sentences in political thought, and one of the least examined. It answers a **legitimacy** question - where does the right to rule come from? - and it is not the same as the **self-determination** question of which community counts as a people entitled to its own state. Keeping the two apart is worth marks, because they generate different problems: the first has to explain how a shifting population can be represented without being reduced to today's majority; the second has to explain what happens when the boundaries of nation, people and state do not coincide.

Rousseau is the bridge. He puts sovereignty in the general will and refuses to hand it over to any government. That is exactly what Austin cannot accommodate.

The doctrine, exactly

FACT: **Popular sovereignty**. The people in their corporate capacity are the source of legitimate public authority; government is their agent. **Main problem**: "the people" must be institutionally represented without being reduced to a temporary majority or to the incumbent government. ANALYSIS: **National sovereignty**. A national community claims collective self-determination and territorial political independence. **Main problem**: nation, people and state may not coincide, and the claim can conflict with minorities or rival national identities. FACT: **The Rousseau bridge**. Rousseau locates sovereignty in the **general will**, understood as a claim about the **common good** rather than the numerical sum of private preferences. Sovereignty remains with the people and is **not identical** with whichever government temporarily exercises power. ANALYSIS: **The controlling distinction**. Popular sovereignty answers the internal legitimacy question *from whom does authority arise?*; national sovereignty primarily answers the collective self-determination question *which people may govern itself?* **Neither expression makes every majority decision morally sovereign**. FACT: **Source control**. O. P. Gauba's *An Introduction to Political Theory*, searchable local PDF pp. 189-193, directly supports popular sovereignty and the general will; the *Cambridge Dictionary* self-determination entry, searchable local PDF p. 858, supports the strict territorial-independence sense used for the bounded national-sovereignty bridge.

ANALYSIS: **The consequence for Austin, which is the whole reason this session exists**. Austin requires a **determinate** human superior. The people are indeterminate, changing and institutionally mediated. So either the sovereign is not the people, or the sovereign is not determinate - Austin cannot keep both, and this is the sharpest form of the democracy objection that Session 11 and the 2021 part both turn on.

Named evidence you can cite

- **Rousseau** FACT: - the **general will** as a claim about the common good; sovereignty stays with the people, government is agent not principal. Used here strictly as the popular-sovereignty counterpoint to Austin; the contract theory itself belongs to **Individual and State**.
- **Austin** FACT: - the determinate human superior: the requirement that popular sovereignty defeats.
- **Laski** ANALYSIS: - allegiance earned from below rather than claimed from above: the pluralist cousin of the popular-sovereignty intuition, though Laski disperses authority among associations rather than concentrating it in a unified people.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Popular sovereignty and Austinian sovereignty cannot both be right in the same breath: Austin's sovereign must be **determinate**, whereas "the people" are indeterminate, changing and institutionally mediated - so the democratic claim does not merely limit Austin's sovereign, it dissolves the very determinacy his definition requires.

MUST-WRITE KEYWORDS

corporate capacity of the people · government as agent · general will · common good, not aggregated preference · collective self-determination · nation ≠ people ≠ state · no majority is morally sovereign · indeterminacy against determinacy

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Popular sovereignty is not a softer version of Austin's doctrine but its direct competitor, because the two disagree about the one property Austin cannot surrender. **Named evidence**. Austin defines the sovereign as a **determinate human superior** habitually obeyed by the bulk of society; Rousseau locates sovereignty in the **general will**, a standing claim about the common good that remains with the people and is never transferred to the government that exercises power. **Analysis**. If the sovereign is the people, then the sovereign is a changing, institutionally mediated body whose will has to be constructed through representation - precisely the indeterminacy Austin's definition excludes; conversely, if determinacy is preserved by naming a legislature as sovereign, then the people have been demoted from sovereign to electorate. **Qualification**. This does not license the opposite excess: neither popular nor national sovereignty makes every majority decision morally sovereign, and the general will is defined by reference to the common good rather than by counting heads - so the argument limits Austin without handing victory to majoritarianism.

Objection -> reply -> residual limit

- **Objection CAUTION:** Parliament can simply be treated as the determinate superior in a democracy, which restores Austin.
- **Reply ANALYSIS:** Even then, a parliament is constitutionally constrained, electorally dependent and politically shaped by parties and opinion; democratic sovereignty is therefore more complex than Austin's legal monism allows.
- **Residual limit ANALYSIS:** The reply establishes that Austin's model fits democracy badly; it does not establish that "the people" is a coherent sovereign agent. That second problem is genuine and unresolved, and the honest answer names it rather than pretending popular sovereignty is unproblematic.

Examiner traps on this session

1. Equating popular with national sovereignty. One locates the **source** of public authority; the other concerns **collective self-determination and independence**. This is trap 17 of the owner's standing list.
2. Turning the general will into "whatever the majority votes for". Rousseau's term is defined by the **common good**, not by aggregation, and the collapse destroys the argument against Austin.
3. Importing the social contract, the state of nature or political obligation. Those belong to **Individual and State**; here Rousseau is a bridge, not a syllabus thinker.

Mini recap

Two questions, one bridge, one consequence. Source against self-determination; general will against aggregation; and Austin's determinacy dissolved by the very body democratic theory calls sovereign.

SESSION 6 - BODIN I: CIVIL WAR, THE DEFINITION, AND THE TWO WORDS THAT CARRY IT

The picture first

THE PROBLEM BODIN IS SOLVING
=====

16th-CENTURY FRANCE: religious civil war; rival churches, estates and feudal powers EACH claim final authority
|
v
RESULT: no procedure for closure
-> the commonwealth disintegrates
|
v
BODIN'S MOVE: theorise a STABLE CENTRE OF COMMAND capable of maintaining order ABOVE FACTION
|
v
NOT a hymn to despotism.
A theory of STATE UNITY under conditions of civil conflict.

THE DEFINITION HE GIVES
=====

SOVEREIGNTY = the ABSOLUTE and PERPETUAL power of a COMMONWEALTH
|
+-----+
| ABSOLUTE | PERPETUAL
| not subject to any human | enduring, attached
| superior WITHIN the | to the OFFICE, not
| commonwealth | to a temporary
| | magistrate or
| | delegated official
| v |
| PRE-EMINENT MARK -> the power to MAKE and |
| UNMAKE LAW for all subjects in general |
| WITHOUT needing consent from a superior |
| |
| v |
| PRESUPPOSITION -> law needs a source that |
| is not itself legally derivative from |
| another earthly authority |

THE ONE SENTENCE THAT PREVENTS THE COMMONEST ERROR
"ABSOLUTE" here means SUPREME IN THE HIERARCHY OF POSITIVE LAW.
It does NOT mean arbitrary in every sense. Session 7 supplies the limits.

Caption: crisis -> move -> definition -> the two adjectives -> the pre-eminent mark. The bottom box is what separates a Bodin answer from a Hobbes answer.

In plain words

Imagine a country where a church, a nobility, a set of town corporations and a king each insist that their word is final. There is no procedure left for ending an argument, and the argument is being settled by killing people. That was Bodin's France. His response was not to praise kings; it was to identify what a political community must possess if it is to stop tearing itself apart: one authority whose law-making word is last.

He then packed that requirement into two adjectives. **Absolute** - no human superior inside the commonwealth commands it. **Perpetual** - it belongs to the office and outlives the person. Everything else in Bodin follows from those two words, including the limits that Session 7 supplies.

The doctrine, exactly

FACT: **Historical context and purpose.** Bodin formulates sovereignty in the context of religious civil wars and the breakdown of political unity in sixteenth-century France. ANALYSIS: **The argument.** His doctrine responds to **disorder**: if rival churches, estates and feudal powers all claim final authority, the commonwealth disintegrates. He therefore seeks a stable centre of command capable of maintaining order above faction. ANALYSIS: **Presupposition.** Social peace requires a final law-giving authority not reducible to shifting religious or feudal claims. FACT: **The controlling distinction.** Bodin is **not merely praising despotism**; he is theorising state unity under conditions of civil conflict.

FACT: **Core doctrine.** Sovereignty is the **absolute and perpetual power of a commonwealth**, and the argument runs in three numbered steps:

1. **Absolute** means not subject to any human superior within the commonwealth. FACT:
2. **Perpetual** means enduring and attached to **office**, not to a temporary magistrate or delegated official. FACT:
3. The sovereign's **pre-eminent mark** is the power to make and unmake law for all subjects in general without needing consent from a superior. FACT:

ANALYSIS: **Presupposition.** Law requires a source that is itself not legally derivative from another earthly authority. FACT: **The distinction that prevents the standard error.** "Absolute" in Bodin does not mean arbitrary in every sense; it means **supreme in the hierarchy of positive law**. ANALYSIS: **The worked illustration.** A magistrate may issue commands, but only the sovereign can legislate in the final sense - which is exactly what "perpetual" is doing: separating the office from the officer.

Named evidence you can cite

- **Bodin, Six Books of the Commonwealth*** FACT: - the definition, the two adjectives and the law-making mark.
- **The French wars of religion** FACT: - the context that explains why unity, not liberty, is the organising value.
- **Hobbes** ANALYSIS: - the comparative foil: a genuinely security-first absolutism against which Bodin's higher-law limits become visible. Hobbes's own contract theory belongs to **Individual and State**.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Bodin's two adjectives do two different jobs: **absolute** removes any human superior inside the commonwealth, while **perpetual** detaches authority from the person and fixes it in the office - and it is the second, not the first, that turns a strong ruler into a *state*.

MUST-WRITE KEYWORDS

absolute and perpetual power of a commonwealth · the wars of religion · unity above faction · office, not magistrate · make and unmake law without consent from a superior · supreme in the hierarchy of positive law · not lawless

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Bodin's importance is not that he made rulers stronger but that he made authority **impersonal**. **Named evidence.** He defines sovereignty as the *absolute and perpetual* power of a commonwealth, glossing "perpetual" as authority attaching to the sovereign office rather than to a temporary magistrate or delegated official, and identifying its pre-eminent mark as the power to make and unmake law for all subjects without a superior's consent. **Analysis.** Perpetuity is doing the state-building work: a power that dies with its holder is a personal ascendancy, whereas a power that survives the holder is an institution, and only an institution can supply the continuous procedure of closure that a society torn by confessional civil war actually lacked. **Qualification.** The gain is bought at a price he never fully discharges: an authority defined as having no human superior is, by construction, hard to restrain from within, and the higher-law limits he adds are weaker than modern constitutional checks - a tension the 2022 part asks you to press.

Objection -> reply -> residual limit

- **Objection CAUTION:**. Because the theory emerges from crisis, it merely sacralises centralised monarchy.
- **Reply ANALYSIS:**. It certainly strengthens monarchy, but its lasting importance lies in giving the modern state a conceptual language of **permanent, impersonal authority** - a language later used by republics and democracies that Bodin never contemplated.
- **Objection CAUTION:**. If sovereignty is absolute, it negates all rights and liberties.
- **Reply ANALYSIS:**. Bodin allows that sovereignty is above ordinary positive law while still bound by higher normative constraints such as divine and natural law; his absolutism is **juristic, not caprice**.
- **Residual limit ANALYSIS:**. The reply postpones rather than removes the difficulty, because the sovereign is also the judge of what those higher constraints require. Session 7 states that residual problem instead of concealing it.

Examiner traps on this session

1. Writing Bodin as Hobbes. Bodin allows higher-law restraints; the Hobbesian sovereign does not sit under the same structure of limits. This is trap 8 of the owner's standing list.
2. Explaining "perpetual" as "eternal". It means attached to the **office** and enduring across office-holders, not everlasting.
3. Turning the historical context into the answer. Two lines of civil-war background are worth marks; two paragraphs of French history are not.

Mini recap

Crisis, move, definition, two adjectives, one pre-eminent mark. Absolute removes the human superior; perpetual creates the office. Neither makes Bodin lawless.

SESSION 7 - BODIN II: INDIVISIBILITY, THE THREE LIMITS, AND WHY BODIN MATTERS

The picture first

INDIVISIBILITY =====

TWO FINAL AUTHORITIES
in one commonwealth

|
v
each claims the last word

|
v
CONFLICT BECOMES
INSOLUBLE

|
v
-> the very civil disorder
Bodin set out to end

|
v
THEREFORE: SOVEREIGNTY IS
INDIVISIBLE AND UNDIVIDED

|
v
ALLOWED: division of GOVERNMENTAL
FUNCTIONS -- advisory estates,
subordinate courts
FORBIDDEN: division of SOVEREIGN
TITLE

THE THREE LIMITS =====

BODIN'S SOVEREIGN IS
ABOVE POSITIVE LAW,
NOT ABOVE ALL LAW

+-----+-----+-----+		
v	v	v
DIVINE LAW	NATURAL LAW	FUNDAMENTAL
cannot validly	justice and	LAWS OF THE
command what	right reason	REALM
offends divine	remain	(leges imperii)
order	normative	structure the
	limits	sovereign OFFICE

|
+-----+-----+-----+
v
THE TECHNICAL FORMULA
LEGIBUS SOLUTUS -- "freed from the
laws" -- BUT ONLY from ORDINARY
POSITIVE law

|
v
WORKED CASE -> arbitrary
confiscation of property is
commonly discussed as
incompatible with his own
limiting framework

WHY HE MATTERS -> he shifts political thought from MEDIEVAL PLURAL and
FEUDAL claims to a UNIFIED concept of state authority, supplying the
vocabulary -- absolute, perpetual, undivided -- that AUSTIN radicalises
and LASKI attacks.

Caption: the indivisibility argument on the left, the three limits on the right, and the technical formula that holds them together without contradiction.

In plain words

If two authorities in one country are each genuinely final, then when they disagree there is no way to decide who wins - which is the situation Bodin was trying to escape. So sovereignty cannot be shared. But that does not make the sovereign lawless. Bodin's sovereign stands above the **ordinary** law of the land and beneath three things: God's law, the moral order accessible to reason, and the constitutive laws that make the office exist at all.

The Latin tag is worth learning because it states the whole position in two words: *legibus solutus*, freed from the laws - but only from the ordinary positive ones.

The doctrine, exactly

FACT: **Indivisibility**. For Bodin, sovereignty is indivisible and undivided. ANALYSIS: **The argument**. Shared supremacy is a contradiction: if two authorities are each final, conflict becomes insoluble, and divided sovereignty would reintroduce the very civil disorder Bodin wants to overcome. ANALYSIS: **Presupposition**. Political order requires a final point of decision. FACT: **The distinction**. Division of **governmental functions** is possible; division of **sovereign title** is not, in Bodin's logic. Advisory estates or subordinate courts may exist, but the ultimate power of law remains one.

FACT: **The limits**. Bodin's sovereign is above positive law but not above all law:

Bound by	Meaning
Divine law FACT:	The sovereign cannot validly command what offends divine order
Natural law FACT:	Justice and basic right reason remain normative limits
Fundamental laws of the realm (leges imperii) FACT:	Certain constitutive laws of the realm structure the sovereign office

ANALYSIS: **The argument**. Bodin distinguishes the sovereign's relation to **ordinary civil law** from the relation to **higher normative order** - which is why he can combine absolutist language with claims about limits without simple self-contradiction. FACT: **The formula**. He is *legibus solutus** with respect to ordinary positive law, **not** with respect to divine or natural obligations. ANALYSIS: **The worked case**. Arbitrary confiscation of property is commonly discussed as incompatible with Bodin's own limiting framework.

FACT: **Why Bodin matters**. He is the first great systematic theorist of modern sovereignty. He shifts political thought from medieval plural and feudal claims toward a unified concept of state authority, and supplies a vocabulary - **absolute, perpetual, undivided** - that shapes later debates, including Austin's monism and Laski's critique. ANALYSIS: Many later writers either radicalise his absolutism or try to limit it.

Named evidence you can cite

- **The leges imperii*** FACT: - the fundamental laws of the realm: the least-remembered and most rewarding of the three limits.
- **Legibus solutus*** FACT: - the technical formula; quote it and immediately gloss the restriction to ordinary positive law.
- **Austin** FACT: - the radicalisation: a legal sovereign that is *formally* unlimited, with the higher-law restraints removed from the definition.
- **Laski** FACT: - the attack: indivisibility misdescribes a society of genuinely plural associations.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Bodin's sovereign is **legibus solutus only of ordinary positive law**: bound still by divine law, by natural law and by the fundamental laws of the realm (*leges imperii*) - which is exactly why he is the founder of the modern doctrine and not its most extreme exponent.

MUST-WRITE KEYWORDS

indivisible and undivided · shared finality means insoluble conflict · functions divisible, title not · divine law · natural law · leges imperii · legibus solutus of ordinary law only · founder, not extremist

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Bodin's absolutism and his doctrine of limits are not an inconsistency but a single two-level structure. **Named evidence.** He holds the sovereign to be *legibus solutus* - freed from the laws - while simultaneously binding that sovereign by divine law, by natural law and by the fundamental laws of the realm (*leges imperii*), and he treats arbitrary confiscation of property as falling outside legitimate sovereign action. **Analysis.** The consistency comes from the level at which each claim operates: the freedom is from **ordinary positive law**, which the sovereign makes and can therefore not be subject to without circularity, whereas the constraints are **higher normative order and constitutive law**, which the sovereign does not make and therefore can be subject to. **Qualification.** The structure is coherent but weak in enforcement, since no institution is empowered to hold the sovereign to those higher norms; the honest verdict is that Bodin's limits are conceptually real and practically thin, which is precisely the concession the 2022 stem is testing.

Objection -> reply -> residual limit

- **Objection FACT:.** Constitutional government proves that power *can* be divided, so indivisibility is empirically refuted.
- **Reply ANALYSIS:.** Bodin would answer that administrative distribution is not equivalent to sharing the final law-making power. **ANALYSIS:** Critics, however, argue that federal and constitutional systems weaken his rigid indivisibility thesis - and that argument, not the reply, is what Session 10 develops against Austin.
- **Objection FACT:.** The three limits are too vague to restrain actual power.
- **Reply ANALYSIS:.** True, they are weaker than modern constitutional checks; yet they matter conceptually because they show Bodin is **not simply Hobbes before Hobbes**. His sovereign is supreme, but not morally empty.
- **Residual limit FACT:.** Modern equality, justice and liberty remain in tension with the doctrine. Bodin can support public order and impartial law by centralising authority, but his theory offers weak guarantees against the concentration of power. The balanced formula is: **historically foundational, normatively problematic**.

Examiner traps on this session

1. Making Bodin lawless. His sovereign is above ordinary positive law but bound by divine law, natural law and the fundamental laws of the realm. This is trap 3 of the owner's standing list.
2. Treating "indivisible" as a claim that functions cannot be distributed. He allows advisory estates and subordinate courts; he refuses a divided **title**.
3. Answering the 2022 compatibility question with a flat yes or no. The demand is *critically discuss*, so the answer must name the criterion - equality, justice, liberty - apply it, and grade the result.

Mini recap

One title, many functions. Three limits, one Latin formula, one honest concession. Foundational in architecture, problematic in guarantees.

SESSION 8 - AUSTIN I: THE ANALYTICAL PROJECT AND THE DETERMINATE HUMAN SUPERIOR

The picture first

THE PROJECT =====

ANALYTICAL JURISPRUDENCE
define law and sovereignty with
CONCEPTUAL PRECISION
|
v
SEPARATE what law IS from
what law OUGHT TO BE
|
v
-> identify the SOURCE of law in
a sovereign whose commands are
backed by SANCTIONS
|
v
SOVEREIGNTY becomes the JURISTIC
FOUNDATION of LEGAL VALIDITY
|
v
PRESUPPOSITION -> jurisprudence
requires a DETERMINATE ORIGIN of
binding command
|
v
EXAMPLE -> a rule counts as law if
it is a command set by a sovereign
to subjects and backed by sanction

THE DEFINITION =====

A SOVEREIGN IS A DETERMINATE
HUMAN SUPERIOR who --
|
+-----+-----+
| | |
v v v
(1) is IDENTIFIABLE (2) receives (3) habitually
-- not vague or HABITUAL obeys NO ONE
mystical OBEDIENCE else
from the BULK
of society
| | |
+-----+-----+
v
PRESUPPOSITION -> every independent
political society must have such an apex
|
v
DISTINCTION -> Austin's sovereign is
NOT "the state" in the abstract. It is a
DETERMINATE PERSON OR BODY. A legislature
or monarch fits better than diffuse
democratic opinion.

Caption: project on the left, three-part definition on the right. The bottom-right box is trap 1 of the whole clause and the single most quoted correction in this topic.

In plain words

Austin is not asking whether laws are good. He is asking what makes something a **law** at all, and he wants an answer as clean as a definition in geometry. His answer: a law is an order issued by whoever is at the top of a chain of obedience, with a penalty attached. That relocates the whole question of sovereignty into jurisprudence - sovereignty is now the thing that makes legal validity possible.

The definition of the sovereign has three parts, and all three matter. It must be a **specific, identifiable** person or body. It must be **habitually obeyed** by most people. And it must **habitually obey no one else**. Drop any one part and the definition stops doing its work.

The doctrine, exactly

FACT: **The project.** Austin's theory belongs to **analytical jurisprudence**; its aim is to define law and sovereignty with conceptual precision. FACT: **The argument.** He wants to separate what law **is** from what law **ought to be**. To do so he identifies the source of law in a sovereign whose commands are backed by sanctions; sovereignty thus becomes the **juristic foundation of legal validity**. ANALYSIS: **Presupposition.** Jurisprudence requires a determinate origin of binding command. FACT: **Distinction.** Austin is explaining **positive law**, not moral legitimacy.

FACT: **The definition.** A sovereign is a **determinate human superior** who receives habitual obedience from the bulk of society and habitually obeys no one else. The three linked elements are:

1. **Determinate human superior** - the sovereign must be identifiable, not vague or mystical. FACT:
2. **Habitual obedience by the bulk of society** - sovereignty rests on regular compliance, not occasional force alone. FACT:
3. **Habitual obedience to no one** - the sovereign is legally independent and supreme. FACT:

ANALYSIS: **Presupposition.** Every independent political society must have such an apex. FACT: **The correction that must appear in every Austin answer.** Austin's sovereign is **not "the state" in the abstract**; it is a determinate person or body within the political community. ANALYSIS: A legislature or monarch fits the model better than diffuse

democratic opinion.

Named evidence you can cite

- **Austin, The Province of Jurisprudence Determined*** FACT: - the analytical project and the three-part definition.
- **The is/ought separation** FACT: - the methodological commitment that makes the theory positivist and explains why moral limits sit outside the definition rather than inside it.
- **Bodin ANALYSIS:** - the comparison: Bodin keeps higher-law limits inside the account; Austin moves them outside it.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Austin's sovereign is a **determinate person or body, not "the state" in the abstract** - and every serious criticism of him, from federalism to popular sovereignty, is an attack on that one word *determinate*.

MUST-WRITE KEYWORDS

analytical jurisprudence · is against ought · determinate human superior · habitual obedience by the bulk · obeys no one · juristic foundation of legal validity · not the state in the abstract

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Austin's theory is best read as an answer to a question about **legal validity**, not about political goodness, and its whole architecture follows from that choice. **Named evidence.** He defines the sovereign as a *determinate human superior* who receives habitual obedience from the bulk of a given society and habitually obeys no other like superior, and he treats a rule as law when it is a command of that superior backed by sanction. **Analysis.** Each element is doing analytic work: *determinate* supplies an identifiable origin for the chain of validity, *habitual obedience by the bulk* distinguishes an established legal order from occasional successful force, and *obeying no one* closes the chain so that validity terminates rather than regressing. **Qualification.** The precision is real but purchased narrowly: because moral legitimacy has been deliberately excluded from the definition, the theory can tell us that a command is valid law while remaining silent on whether it deserves obedience - a silence Austin accepts and Laski regards as the doctrine's most dangerous feature.

Objection -> reply -> residual limit

- **Objection FACT:.** The theory reduces law to coercion.
- **Reply ANALYSIS:.** Austin **intentionally** privileges enforceability and source; the objection is a description of his method, not a refutation of it. ANALYSIS: Critics nevertheless argue that this leaves out important dimensions of law such as authority, procedure and acceptance - the very dimensions Hart later supplies.
- **Objection FACT:.** Modern constitutional democracies do not contain one such determinate superior.
- **Reply ANALYSIS:.** That is one of the central criticisms and Austin cannot fully absorb it. His model works best for relatively centralised legal orders and less well for constitutional, federal and democratic systems where authority is distributed and reciprocal.
- **Residual limit ANALYSIS:.** The Austinian may relocate finality - to the constitution-making authority, or to the electorate - but Session 10 shows that relocation is often strained, and Sessions 12 and 13 show that the better repairs abandon the personal sovereign altogether.

Examiner traps on this session

1. Calling Austin's sovereign "the state". It is a determinate person or body. This is trap 1 of the owner's standing list and the fastest way to lose the first mark.
2. Presenting Austin as a defender of tyranny. He is describing legal validity; the normative silence is a methodological choice, and criticising it requires saying why that choice fails.
3. Forgetting the third element. "Habitually obeys no one" is what makes the chain terminate; candidates who drop it cannot answer the international-law criticism in Session 10.

Mini recap

Analytical project, three-part definition, one juristic function. Determinate, habitually obeyed, obeying nobody. Not the state - a person or a body.

SESSION 9 - AUSTIN II: LAW AS COMMAND AND SANCTION, AND THE FIVE ATTRIBUTES

The picture first

LAW AS COMMAND AND SANCTION
=====

COMMAND
an expression of DESIRE by a
SUPERIOR
+
SANCTION
the EVIL or PAIN attached to
NON-COMPLIANCE
=
POSITIVE LAW
|
v
LAW is a SPECIES OF IMPERATIVE
issued inside a structure of
SUPERIORITY and OBEDIENCE
|
v
AUSTIN SEPARATES positive law
from MORALITY, CUSTOM and
DIVINE LAW
|
v
BEST FIT -> PENAL LAW, where
command and sanction are explicit
|
v
WORST FIT -> ENABLING, PERMISSIVE
and PROCEDURAL rules

THE FIVE ATTRIBUTES -- D-A-I-I-I
=====

DETERMINE the sovereign must be
identifiable
ABSOLUTE no legal limits bind
the sovereign from above
INDIVISIBLE final authority cannot
be partitioned
ILLIMITABLE no superior legal
authority restricts it
INALIENABLE cannot be transferred
without ceasing to be
sovereignty

|
v
WHY THE LIST IS FORCED, NOT CHOSEN
if the sovereign were DIVIDED, LIMITED by
another legal superior, or INDETERMINATE,
the chain of command would break and the
legal system would lack a FINAL SOURCE

|
v
THE HONEST CONCESSION -> Austin's
indivisibility is STRICTER than empirical
political reality. It is a LOGICAL feature
of his conceptual scheme, not an
observation about states.

Caption: the formula on the left, the five attributes on the right, and the concession at the bottom right that turns a recitation into an argument.

In plain words

Austin's account of a law is deliberately simple: somebody with authority tells you to do something, and if you do not, something bad happens to you. Command plus sanction. That formula works beautifully for criminal law, where both halves are visible, and it works badly for the enormous part of law that simply tells you *how* to do something - how to make a valid will, a valid contract, a valid marriage.

The five attributes are not a list Austin chose; they are what his definition forces. If finality can be split, limited from above, or located nowhere in particular, then the chain of legal validity has no end - and the whole point of the theory was to give it one.

The doctrine, exactly

FACT: Law as command backed by sanction. For Austin, positive law is the **command of the sovereign backed by sanction**. **FACT: The argument.** *Command* implies an expression of desire by a superior; *sanction* implies the evil or pain attached to non-compliance. Law is therefore a **species of imperative** issued within a structure of superiority and obedience. **ANALYSIS: Presupposition.** The essential feature of legal obligation is enforceable command.

FACT: The distinction. Austin separates positive law from **morality, custom and divine law** as distinct normative domains. **ANALYSIS: Where it fits and where it does not.** Penal law fits Austin especially well because command and sanction are explicit; enabling, permissive and procedural rules fit badly.

FACT: The five attributes of Austinian sovereignty:

Attribute	Meaning
Determinate	The sovereign must be identifiable
Absolute	No legal limits bind the sovereign from above

Attribute	Meaning
Indivisible	Final authority cannot be partitioned
Illimitable	No superior legal authority restricts it
Inalienable	Sovereignty cannot be transferred without ceasing to be sovereignty

ANALYSIS: **Why the list is forced.** If the sovereign were divided, limited by another legal superior, or indeterminate, the chain of command would be broken and the legal system would lack a final source. ANALYSIS: **The honest concession.** Austin's indivisibility is **stricter than empirical political reality**; it is a logical feature of his conceptual scheme rather than an observation about actual states. Saying this in the answer pre-empts the objection and earns the mark for critical control.

Named evidence you can cite

- **The command-sanction formula** FACT: - Austin's definition of positive law.
- **Penal law** ANALYSIS: - the paradigm case that makes the formula plausible.
- **Enabling and procedural rules** FACT: - the counter-case that later jurisprudence turns into a decisive objection; Hart develops it in Session 13.
- **The five attributes** FACT: - determinate, absolute, indivisible, illimitable, inalienable.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Austin's five attributes are not a description of states but a set of **logical requirements of his own definition**: each one exists to stop the chain of legal validity from breaking, which is why refuting them empirically leaves his conceptual scheme untouched and refuting them *internally*, as Kelsen and Hart do, does not.

MUST-WRITE KEYWORDS

command backed by sanction · species of imperative · superiority and obedience · determinate, absolute, indivisible, illimitable, inalienable · the chain of validity must terminate · stricter than political reality · power-conferring rules

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The five attributes of Austinian sovereignty are entailments of the command theory rather than independent observations, and reading them that way changes how they must be criticised. **Named evidence.** Austin defines positive law as the command of a sovereign backed by sanction, and characterises that sovereign as determinate, absolute, indivisible, illimitable and inalienable. **Analysis.** Each attribute closes a possible gap in the chain of validity: indeterminacy would leave the origin unlocatable, divisibility would leave two origins in conflict, limitation from above would push validity to a further source, and alienability would make the origin transferable and therefore not final - so the attributes are what the definition needs in order to work. **Qualification.** This is why the strongest criticisms are the internal ones: pointing to a federation shows that no actual state matches the scheme, whereas showing that much of law confers powers rather than issuing commands attacks the definition itself, and only the second forces a reconstruction.

Objection -> reply -> residual limit

- **Objection FACT:.** Not all laws are commands; many are enabling, permissive or procedural.
- **Reply ANALYSIS:.** This criticism is **powerful and largely successful**. Later jurisprudence shows that legal systems include power-conferring rules, constitutional rules and secondary rules not reducible to orders backed by threats.
- **Objection FACT:.** Constitutional amendment procedures, judicial review and federal arrangements prove divisible authority.
- **Reply ANALYSIS:.** Austinian theory tries to **relocate** finality somewhere in the system; critics argue this relocation is often strained and artificial.
- **Residual limit ANALYSIS:.** Austin has no resource for explaining why a defective will is not "punished" but simply void. That is not a marginal example: it exposes that his single model of law cannot cover facilities, and it is the

doorway to Session 13.

Examiner traps on this session

1. Reciting D-A-I-I-I without saying **why** the list is forced. The reason is the mark; the list is the packaging.
2. Treating the nullity of a defective legal act as a "sanction". It is not; nullity is the absence of a legal effect, and saying otherwise concedes Hart's point while pretending to resist it.
3. Attacking indivisibility only with federal examples. Austin has a reply to those; the internal objection from power-conferring rules is the one he cannot answer.

Mini recap

Command plus sanction; five attributes forced by the definition; the best fit is penal law and the worst fit is the law of facilities. Concede the strictness - then use it.

SESSION 10 - AUSTIN III: FEDERALISM, INTERNATIONAL LAW AND CUSTOMARY LAW

The picture first

THREE STRUCTURAL CRITICISMS -- WHAT EACH ATTACKS

=====

- (a) FEDERALISM attacks INDIVISIBILITY
powers are CONSTITUTIONALLY DISTRIBUTED between union and states
-> neither level is the sole determinate superior in ALL matters
AUSTINIAN MOVE: "the CONSTITUTION-MAKING authority is sovereign"
COUNTER: that SHIFTS rather than SOLVES the problem, because the constitution itself may embody SHARED or ENTRENCHED authority
- (b) INTERNATIONAL LAW attacks the SCOPE of "law"
Austin: not truly law in the strict sense -- there is NO WORLD SOVEREIGN, so states are not habitually obedient to a determinate global superior
COUNTER: this ignores the normative and practical force of TREATY, CUSTOM and INTERNATIONAL INSTITUTIONS
VERDICT: legal order can exist through RECIPROCITY, CONSENT, INSTITUTIONS and ACCEPTED PRACTICE without a world sovereign
- (c) CUSTOMARY LAW attacks the DIRECTION of authority
customs often arise from SOCIAL PRACTICE BEFORE formal command
AUSTINIAN MOVE: customs are TACITLY ADOPTED by the sovereign
COUNTER: artificial -- many customs operate INDEPENDENTLY of any explicit sovereign will
DEEPER POINT: obedience and recognition may PRECEDE sovereign enactment rather than DERIVE from it

```
+-----+
| THE PATTERN: each criticism finds a place where LAW EXISTS but |
| the DETERMINATE SUPERIOR does not. Austin's reply in each case |
| is to RELOCATE the sovereign -- and each relocation costs      |
| something the original theory was designed to deliver.         |
+-----+
```

Caption: three criticisms, three Austinian relocations, three costs. The boxed pattern is what turns a list into an argument.

In plain words

The three classic objections all work the same way. Each points at something everybody calls law and asks Austin to show the determinate superior behind it. In a federation, the answer is "which one?" In international law, the answer is "nobody". In customary law, the answer is "the custom got there first".

Austin can reply to each, but only by moving the sovereign somewhere else - to the constitution-makers, out of the category of law altogether, or backwards into a fiction of tacit adoption. Noticing that the reply is always a relocation, and that each relocation has a price, is what makes this session an argument rather than a list.

The doctrine, exactly

(a) Federalism FACT:

- **The criticism.** Federal systems challenge Austin's idea of one undivided sovereign.
- **The argument ANALYSIS:.** In federations, powers are constitutionally distributed between union and states; neither level can easily be described as the sole determinate superior in all matters.
- **Austinian reply CAUTION:.** The constitution-making authority is sovereign.
- **Counter ANALYSIS:.** That move often **shifts rather than solves** the problem, because the constitution itself may embody shared or entrenched authority.

(b) International law FACT:

- **Austin's own position.** International law is **not truly law in the strict sense**, because there is no world sovereign.
- **The argument FACT:.** Since states are not habitually obedient to a determinate global superior, international law lacks the Austinian foundation of command and sanction.
- **Criticism FACT:.** This ignores the normative and practical force of treaty, custom and international institutions.
- **Verdict ANALYSIS:.** Austin's state-centric lens is too narrow; legal order can exist through **reciprocity, consent, institutions and accepted practice** even without a world sovereign.

(c) Customary law FACT:

- **The criticism.** Customary law sits uneasily within command theory.
- **The argument ANALYSIS:.** Customs often arise from social practice **before** formal command; Austin tries to explain them as **tacitly adopted** by the sovereign.
- **Counter FACT:.** That explanation is artificial, because many customs operate independently of explicit sovereign will.
- **The deeper point ANALYSIS:.** Obedience and recognition may **precede** sovereign enactment rather than derive from it - which anticipates Hart's rule of recognition in Session 13.

Named evidence you can cite

- **Federal constitutional distribution FACT:** - the standard structural counter-example to indivisibility.
- **Treaty, custom and international institutions FACT:** - the sources of normativity Austin's definition excludes.
- **Tacit adoption ANALYSIS:** - Austin's own device for custom, and the reason the reply is judged artificial.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Each of the three structural criticisms locates a place where law exists but a determinate superior does not, and Austin's reply in every case is a **relocation of the sovereign** - to the constitution-makers, out of the category of law, or backwards into tacit adoption - with each relocation costing precisely the determinacy the theory was built to supply.

MUST-WRITE KEYWORDS

constitutionally distributed competence · shifts rather than solves · no world sovereign · reciprocity, consent, institutions, accepted practice · tacit adoption · recognition precedes enactment · relocation has a price

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The federalism, international-law and custom objections are not three separate complaints but one objection applied three times: law is found where Austin's determinate superior is not. **Named evidence.** In a federation, competences are constitutionally distributed so that neither level is the sole superior in all matters; international law binds through treaty, custom and institutional practice with no world sovereign; and customary law arises from social practice before any command, which Austin can accommodate only by the device of tacit adoption. **Analysis.** Austin's replies share a single shape - relocate finality to the constitution-making authority, deny that international law is law at all, or backdate a sovereign will onto pre-existing custom - and each purchases consistency by weakening determinacy, which was the property the whole theory existed to secure. **Qualification.** The objections nevertheless do not show that legal validity needs no ultimate criterion; they show that the criterion cannot be a **person**, which is exactly the conclusion Kelsen and Hart draw while remaining positivists.

Objection -> reply -> residual limit

- **Objection CAUTION:**. Austin can simply define international law out of the category of law and preserve the theory.
- **Reply ANALYSIS:**. He can, and he does - but at the cost of a definition that excludes a body of norms that states themselves treat as binding, argue about in legal terms and enforce through reciprocity and institutions. Conceptual purity is preserved and explanatory reach is lost.
- **Residual limit ANALYSIS:**. The criticism does not settle what international law *is*; it settles only that the Austinian account of it is inadequate. The positive theory belongs to **International Relations** and is routed, not developed.

Examiner traps on this session

1. Listing five criticisms with no reply. On *critically examine* stems the objection-reply-residual layer **is** the answer; a bare list scores as description.
2. Presenting the international-law criticism as Austin's oversight. It is his explicit position, argued from his own definition, and treating it as carelessness misses the point.
3. Confusing the custom objection with the popular-sovereignty objection. Custom attacks the **direction** of authority; popular sovereignty attacks its **determinacy**, and Session 11 handles the second.

Mini recap

One objection applied three times. Federalism attacks indivisibility, international law attacks scope, custom attacks direction. Every reply relocates the sovereign, and every relocation costs determinacy.

SESSION 11 - AUSTIN IV: DEMOCRACY, PARLIAMENTARY SOVEREIGNTY AND MAINE

The picture first

THE DEMOCRACY QUESTION -- A TWO-LEVEL ANSWER

YES, in a NARROW LEGAL sense one may identify a law-making body
 NO, in a DEEPER CONSTITUTIONAL-POLITICAL sense democracy requires
 accountability, rights and limited government, which undermine
 Austin's ABSOLUTENESS

|
v

WHY: democracy makes the final authority DERIVATIVE, REVISABLE and
 MORALLY CONSTRAINED, whereas Austin conceptualises it as a legally
 UNLIMITED superior

|

+-----+-----+

v

THE JURISDICTION CONTROL
 "parliamentary sovereignty" is
 JURISDICTION-SPECIFIC, not a
 synonym for parliamentary government

v

MAINE'S COUNTER-EXAMPLE
 Ranjit Singh: actual authority
 may be PERSONAL, UNSTABLE and
 SOCIALLY EMBEDDED in ways the
 clean Austinian formula misses

|
v

UNITED KINGDOM	Parliament is the SUPREME LEGAL AUTHORITY; courts generally cannot overrule primary legislation
-------------------	--

AUSTINIAN REPLY: exceptional
 historical cases do not defeat
 a general theory

|
v

INDIA	The WRITTEN CONSTITUTION is supreme; Parliament exercises CONSTITUTIONALLY CONFERRED powers; judicial review enforces limits; Kesavananda Bharati (1973) limits the amending power via the basic-structure doctrine
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COUNTER: the problem is not one
 odd case but the WIDER MISMATCH
 between a neat schema and the
 complexity of actual political
 orders

DO NOT OVERCLAIM EITHER WAY: the UK order is not legally unconstrained in every practical sense, and India's judiciary is NOT "sovereign" merely because it reviews legislation.
--

Caption: the two-level verdict, the two-jurisdiction table and Maine's counter-example. The bottom-right box is the control that keeps an Indian illustration accurate.

In plain words

Is Austin compatible with democracy? The honest answer has two levels and the paper rewards both. At the level of pure legal form, yes - you can always point at a legislature. At the level of what democracy actually is, no - because a democratic authority is elected, accountable, rights-bound and revisable, and Austin's sovereign is none of those things by definition.

Then there is a phrase that trips up almost everyone: *parliamentary sovereignty*. It is a claim about one legal system, not a description of every country with a parliament. India has parliamentary government under a supreme written Constitution - which is a different thing entirely.

The doctrine, exactly

Popular sovereignty and democracy FACT:

- **The criticism.** Austin's model fits uneasily with democratic theories in which the people are sovereign.
- **The argument ANALYSIS:** "The people" are often indeterminate, changing and institutionally mediated. Austin requires a **determinate** superior, so his theory struggles to accommodate representative democracy, constitutionalism and public accountability.

Is Austin compatible with democracy? ANALYSIS: Only partially, and in a strict sense he sits uneasily with it. Use the two-level structure:

- **Yes, in a narrow legal sense** FACT: - one may identify a law-making body.
- **No, in a deeper constitutional-political sense** ANALYSIS: - democracy requires accountability, rights and limited government, which undermine Austin's absoluteness.
- **The reason ANALYSIS:**. Democracy disperses authority through elections, rights, representation, opposition and constitutional limitation; it makes sovereignty **mediated, divided in function and politically answerable**, whereas Austin's sovereign is legally supreme, indivisible and not habitually obedient to another.

Parliamentary sovereignty and constitutional supremacy - the jurisdiction control:

Jurisdictional model	Legal location of finality	Judicial position	Philosophical use
United Kingdom FACT:	Parliament is the supreme legal authority and may make or unmake law; one Parliament cannot entrench ordinary law against a future Parliament	Courts generally cannot overrule primary legislation	A strong modern approximation to legal sovereignty, qualified by political constraints, devolution and rights arrangements
India FACT:/ANALYSIS:	The written Constitution is supreme; Parliament exercises constitutionally conferred ordinary and constituent powers	Judicial review enforces constitutional limits; <i>Kesavananda Bharati</i> (1973) limits the amending power through the basic-structure doctrine	Competence-distributed authority under constitutional supremacy, not UK-style parliamentary sovereignty

ANALYSIS: **Do not overclaim.** The United Kingdom's uncoded order is not legally unconstrained in every practical sense, and India's judiciary is not "sovereign" merely because it reviews legislation. The careful conclusion is that UK legal theory centres Parliament, whereas Indian institutions derive limited competences from a supreme Constitution.

FACT: **Official-source control.** The UK Parliament's own sovereignty page describes Parliament as the supreme legal authority and states that courts generally cannot overrule its legislation. Article 368 of the Constitution of India confers amendment power through constitutional procedure; the official *Kesavananda Bharati* archive supplies the judicial basic-structure limitation.

Maine's counter-example FACT:

- Maine criticises Austin by pointing to political communities where habitual obedience and determinate superiority do not fit the legal facts neatly. The example of **Ranjit Singh** is used to show that actual authority may be personal, unstable and socially embedded in ways the clean Austinian formula does not capture.
- **Austinian reply CAUTION:**. Exceptional historical cases do not defeat a general theory.
- **Counter ANALYSIS:**. The problem is not one odd case but the wider mismatch between Austin's neat schema and the complexity of historical political orders.

Named evidence you can cite

- **UK Parliament's sovereignty doctrine** FACT: - the jurisdiction where the Austinian picture comes closest to fitting.
- **Constitution of India, Article 368** FACT: - amendment power conferred **by** the Constitution, i.e. a competence, not an original sovereignty.
- **Kesavananda Bharati v. State of Kerala, Supreme Court judgment, 1973** FACT: - a dated **judicial decision** holding that the amending power does not extend to altering the basic structure. ANALYSIS: It is a judgment, not a statute or a constitutional text, and it illustrates a legally limited amending competence; it does **not** demonstrate that Austin, Kelsen or Hart is right.
- **Maine on Ranjit Singh** FACT: - the historical counter-example.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Austin is compatible with democracy **only in the narrow legal sense that a law-making body can always be named**; in the constitutional-political sense democracy makes final authority derivative, revisable and answerable, which is precisely what Austin's definition of an illimitable superior forbids.

MUST-WRITE KEYWORDS

two-level verdict · derivative, revisable, morally constrained · parliamentary sovereignty is jurisdiction-specific · constitutional supremacy · Article 368 · Kesavananda Bharati (1973) · basic structure · Maine, Ranjit Singh · judgment ≠ philosophical proof

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The compatibility question must be answered at two levels, because a single yes or no misdescribes both democracy and Austin. **Named evidence.** Austin's sovereign is a determinate human superior, legally absolute, indivisible, illimitable and inalienable; a modern democracy such as India confers amendment power on Parliament by Article 368 of a supreme written Constitution, and the Supreme Court's *Kesavananda Bharati* judgment of **1973** holds that this power does not extend to altering the basic structure. **Analysis.** At the level of legal form the Austinian can point to a legislature and claim a determinate superior, but the Indian arrangement shows what democracy does to that claim: the law-maker's competence is conferred, procedurally conditioned and judicially reviewable, so finality has become a property of rules rather than of a person. **Qualification.** The illustration must be handled carefully: a judgment is a dated judicial decision and not philosophical proof, the Indian judiciary does not become sovereign by reviewing legislation, and the United Kingdom's contrasting doctrine shows that the answer is jurisdiction-relative rather than universal.

Objection -> reply -> residual limit

- **Objection FACT:.** Democratic constitutions still require a final law-making authority, so Austin survives.
- **Reply ANALYSIS:.** True, but democracy makes that authority **derivative, revisable and morally constrained**, whereas Austin conceptualises it as a legally unlimited superior. The survival is of the *function*, not of Austin's account of it.
- **Residual limit ANALYSIS:.** The reply leaves open where finality now sits in a constitutional democracy - in the amending procedure, in the electorate, or in the officials' accepted test of validity. Sessions 12 and 13 give the two serious answers; neither restores a personal sovereign.

Examiner traps on this session

1. Calling India a system of parliamentary sovereignty. India has **parliamentary government under constitutional supremacy** with judicial review; this does not make the judiciary sovereign. This is trap 18 of the owner's standing list.
2. Using *Kesavananda Bharati* as proof that a philosophical theory is true. It is a dated judgment illustrating a legally limited amending competence, and misclassifying it costs the accuracy mark.
3. Answering the 2021 stem with a flat "no". The mark-bearing structure is **yes at one level, no at another, with the reason for the split stated**.

Mini recap

Two levels, two jurisdictions, one counter-example. Yes in legal form, no in constitutional substance; UK centres Parliament, India centres the Constitution; and Maine shows the schema was always tidier than the world.

SESSION 12 - KELSEN: THE HIERARCHY OF NORMS AND THE BASIC NORM

The picture first

THE THREE PROBLEMS AUSTIN CANNOT SOLVE FROM INSIDE HIS OWN SYSTEM

- =====
1. SUCCESSION when one sovereign dies and another takes office, why is the NEW sovereign's FIRST command law, before any habit of obedience has formed?
 2. PERSISTENCE why does a statute enacted centuries ago, by a sovereign long dead and never habitually obeyed by anyone alive, remain valid law?
 3. POWER-CONFERRING rules about making a valid will, contract or marriage do not ORDER anybody on pain of sanction; they confer FACILITIES. A defective will is not punished -- it is simply a NULLITY.

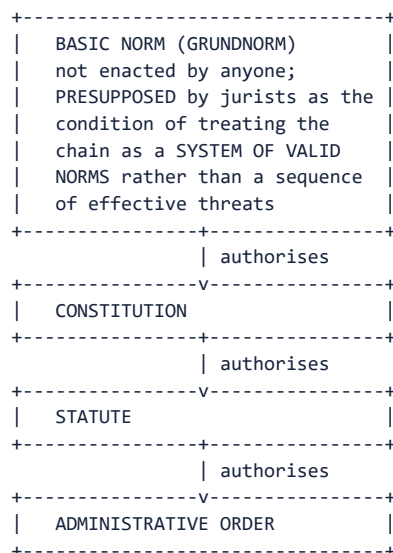
|
v

EACH PROBLEM POINTS THE SAME WAY -> legal authority is carried by RULES, not by the HABITS or the PERSON of a commander

|
v

KELSEN'S PYRAMID -- VALIDITY DERIVES FROM A HIGHER NORM, NEVER FROM A FACT

=====



THE FIVE-STEP ARGUMENT

(1) a norm's validity cannot derive from a mere FACT -- "is" does not yield "ought" (2) therefore validity must derive from a FURTHER NORM (3) an infinite regress would leave nothing valid (4) therefore the chain must TERMINATE in a norm PRESUPPOSED rather than derived -- the GRUNDNORM (5) law is a SELF-REFERRING HIERARCHY of validity, distinct from BOTH morality AND brute power

|
v

EFFECT ON SOVEREIGNTY -> KELSEN DISSOLVES the Austinian sovereign. There is no determinate human superior above the law; the "sovereign" is merely the PERSONIFICATION of the legal order's highest norm-creating COMPETENCE. Sovereignty becomes an attribute of the NORMATIVE ORDER, not of a person.

PROVENANCE -> General Theory of Law and State, first English edition 1945. NEVER 1961. 1961 is HART.

Caption: three unsolved problems, one pyramid, five steps, one dissolution - and the date that the paper can punish.

In plain words

Austin says a rule is law because a powerful person ordered it. Kelsen says that cannot be right, because a *fact* about who is powerful can never by itself generate an *obligation*. So he asks a different question: not "who commanded this?" but "what authorised this?" And the answer is always another rule, higher up. The tax order is authorised by the statute; the statute by the constitution; the constitution by - what?

Kelsen's answer is deliberately austere. At the top there is no super-ruler. There is a norm we **presuppose** in order to be able to read the whole chain as law at all. Call it the basic norm. Once you accept it, the sovereign has vanished as a person and survives only as a name for the highest law-making competence in the system.

The doctrine, exactly

FACT: **Why the Austinian model needs repair.** Austin locates law's validity in the will of a determinate human superior, which produces three problems he cannot solve from within his own system:

1. **The succession problem.** When one sovereign dies and another takes office, why is the new sovereign's first command law, before any habit of obedience has formed? Habit cannot explain the continuity of legal authority across persons.
2. **The persistence problem.** Why does a statute enacted centuries ago, by a sovereign long dead and never habitually obeyed by anyone now living, remain valid law?
3. **The power-conferring problem.** Much of law does not command anybody. Rules about how to make a valid will, contract or marriage confer facilities; on the command model, a defective will is not a "sanction" for disobedience - it is simply a nullity.

ANALYSIS: Each problem points the same way: legal authority is carried by **rules**, not by the habits or the person of a commander.

FACT: **Kelsen's central claim.** The validity of a legal norm is never derived from a fact of power but always from **another, higher norm**. Law is a **hierarchy (pyramid) of norms**: an administrative order is valid because a statute authorises it; the statute is valid because the constitution authorises its enactment; the constitution is valid because it is presupposed to be valid. FACT: **The basic norm (Grundnorm)** stands at the apex - not itself enacted by anyone, but **presupposed** by jurists as the condition that makes it possible to interpret the whole chain as a system of valid norms rather than as a sequence of effective threats.

ANALYSIS: **The reconstructed argument, in five steps:**

1. a norm's validity cannot be derived from a mere fact, because "is" does not yield "ought";
2. therefore validity must be derived from a further norm;
3. an infinite regress of authorising norms would leave nothing valid;
4. therefore the chain must terminate in a norm that is presupposed rather than derived - the *Grundnorm*;
5. law is accordingly a self-referring hierarchy of validity, distinct from both morality and brute power.

ANALYSIS: **Presupposition.** A "pure" theory of law is possible: legal science can describe validity while excluding morality, sociology, politics and psychology. ANALYSIS: **The effect on sovereignty.** Kelsen **dissolves** the Austinian sovereign. There is no determinate human superior standing above the law; the "sovereign" is simply the personification of the legal order's highest norm-creating competence. Sovereignty becomes an attribute of the **normative order**, not of a person or body.

FACT:/WRONG: **Bibliographic precision.** The standard reference is **General Theory of Law and State, first published in English in 1945** (translated by Anders Wedberg). WRONG: **Do not write 1961 for Kelsen.** 1961 is the year of **Hart's *The Concept of Law***. The two dates sit adjacent in the Austin -> Kelsen -> Hart sequence and are the most commonly swapped pair in this topic. ANALYSIS: If unsure in the examination hall, name the works and the sequence without years rather than guessing.

Named evidence you can cite

- **Kelsen, General Theory of Law and State, first English edition 1945** FACT: - cited by title and year only; no page, chapter, edition or verbatim wording is asserted.
- **The is/ought gap** FACT: - the premise that makes the whole pyramid necessary.
- **Austin's three internal failures** FACT: - succession, persistence, power-conferring rules: the agenda Kelsen is answering.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Kelsen does not limit the sovereign; he **dissolves** him - once validity is shown to descend from norm to norm and to terminate in a presupposed basic norm, supremacy becomes a property of the legal order's highest competence rather than of any determinate human superior.

MUST-WRITE KEYWORDS

hierarchy of norms · basic norm (Grundnorm) · presupposed, not enacted · is does not yield ought · regress must terminate · purity of legal science · personification of the highest competence · succession and persistence problems · 1945, not 1961

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Kelsen's repair of Austin is not a softening of sovereignty but its relocation from a person to a normative order. **Named evidence.** In *General Theory of Law and State*, first published in English in **1945**, Kelsen argues that a norm's validity derives only from a higher norm, so that an administrative order rests on a statute, the statute on the constitution, and the constitution on a **presupposed basic norm (Grundnorm)** that is not itself enacted by anyone. **Analysis.** The move is forced by the is/ought gap: if no fact about who is obeyed can generate an obligation, then habitual obedience cannot be the source of validity, and the chain of authorisation must terminate in something presupposed rather than observed - at which point the determinate human superior has no work left to do and survives only as a name for the system's highest law-making competence. **Qualification.** The gain is bought at a cost Kelsen concedes: the basic norm is a postulate rather than a demonstrated truth, and revolution forces him to treat by-and-large effectiveness as a condition of validity, which quietly readmits the fact of power his theory was designed to exclude.

Objection -> reply -> residual limit

- **Objection ANALYSIS:.** The *Grundnorm* is a fiction - a presupposition invented to stop a regress, doing exactly the work Austin's habitual obedience did, only less honestly.
- **Reply FACT:.** Kelsen does not claim the basic norm is a **fact**; he claims it is a **transcendental-logical condition** of treating anything as valid law at all, comparable to a postulate in a formal science. The theory therefore remains positivist - the basic norm confers validity, not moral obligation.
- **Objection ANALYSIS:.** The theory cannot explain revolution, since a successful coup replaces the constitution without any authorising norm.
- **Reply ANALYSIS:.** When a new order becomes **by and large effective**, jurists presuppose a new basic norm; efficacy is thus a *condition* of validity even though it is not its *source*.
- **Residual limit ANALYSIS:.** Critics reply that this quietly readmits the fact of power the theory was designed to exclude. That residual problem is genuine and should be **conceded** in the answer rather than argued away.

Examiner traps on this session

1. **WRONG:** Dating *General Theory of Law and State* to 1961. That is Hart. This is trap 11 of the owner's standing list, and it is the single most punished factual error in the clause.
2. Calling the *Grundnorm* a moral standard. It confers **legal validity only**; keeping it morally inert is exactly why Kelsen remains a positivist. This is trap 13.
3. Filing Kelsen alongside Laski as an external critic. Kelsen is an **internal** repair inside legal positivism; putting him in the wrong column destroys the two-stage structure that earns marks on 20-mark stems.

Mini recap

Three unsolved problems, one pyramid, one presupposed apex. Validity descends from norms, never from facts; the sovereign becomes a competence, not a person; and the date is **1945**.

SESSION 13 - HART: PRIMARY AND SECONDARY RULES, AND THE RULE OF RECOGNITION

The picture first

THE UNION OF PRIMARY AND SECONDARY RULES

PRIMARY RULES impose DUTIES directly on conduct
do not steal | do not assault | pay tax

↓
v

A SOCIETY WITH ONLY PRIMARY RULES SUFFERS THREE DEFECTS

UNCERTAINTY which rules ARE law?	STATIC CHARACTER custom cannot be deliberately changed	INEFFICIENCY who decides breach and remedy?
--	--	---

RULE OF RECOGNITION identifies what counts as VALID LAW in this system	RULES OF CHANGE authorise creation, amendment and repeal of primary rules	RULES OF ADJUDICATION confer authority to determine breach and remedy
---	--	--

↓
v
THESE THREE ARE THE SECONDARY RULES. THEIR UNION WITH PRIMARY RULES IS WHAT
DISTINGUISHES A LEGAL SYSTEM FROM A SET OF SOCIAL HABITS.

↓
v
THE ULTIMATE CRITERION -- THE RULE OF RECOGNITION -- IS NOT ITSELF VALID OR
INVALID. IT EXISTS AS A SOCIAL FACT, in the convergent practice of OFFICIALS
who treat it as the common public standard FROM AN INTERNAL POINT OF VIEW.

INTERNAL vs EXTERNAL POINT OF VIEW

EXTERNAL observer records REGULARITIES OF BEHAVIOUR

INTERNAL participant . treats the rule as a REASON for conduct and as a
GROUND FOR CRITICISING deviation

-> Austin's "habit of obedience" captures ONLY the external aspect, and so
cannot distinguish a LEGAL OBLIGATION from a GUNMAN'S THREAT

HART AGAINST AUSTIN -- FOUR STRIKES

law = command + sanction	ignores power-conferring rules; NULLITY
sovereign habitually obeyed	is not a sanction
sovereign obeys no one	habit cannot explain CONTINUITY on succession or PERSISTENCE of old law
obligation = being obliged by threat	the law-maker is itself CONSTITUTED and LIMITED by rules of change
	conflates BEING OBLIGED (gunman) with HAVING AN OBLIGATION (internal view)

Caption: three defects, three cures, one social-fact apex, four strikes. The internal/external distinction is the single highest-yield idea on this page.

In plain words

Hart's objection to Austin begins with an image: a gunman says "your money or your life", and you hand over the money. You were **obliged**. But you had no **obligation**. Austin's theory, built on habitual obedience and threats, cannot mark that difference - and if it cannot, it has not explained law at all.

His replacement is structural. Some rules tell you what to do; others tell you how rules are made, changed, identified and applied. A community with only the first kind cannot say authoritatively what its rules are, cannot change them deliberately, and cannot settle disputes. Add the second kind and you have a legal system. At the top sits not a person but a **practice**: what the officials of the system actually treat as the test of law.

The doctrine, exactly

FACT: **The rejection.** Hart, in **The Concept of Law (1961)**, rejects the command-and-sanction model as too narrow - it is built on the criminal-law paradigm, "the gunman situation writ large", and cannot account for power-conferring law. He replaces it with law as a **union of primary and secondary rules**.

Rule type	Function	What it answers	Defect it cures
Primary rules FACT:	impose duties directly on conduct - do not steal, do not assault, pay tax	what must be done?	-
Secondary: rule of recognition FACT:	identifies what counts as valid law in this system	which rules are law?	uncertainty in a regime of primary rules alone
Secondary: rules of change FACT:	authorise creation, amendment and repeal of primary rules	how is law altered?	static character of custom
Secondary: rules of adjudication FACT:	confer authority to determine breach and remedy	who decides, and how?	inefficiency of diffuse enforcement

ANALYSIS: **The reconstructed argument, in five steps:**

1. a society with only primary rules suffers uncertainty, stasis and inefficiency;
2. these three defects are cured by three corresponding secondary rules;
3. the union of primary rules with secondary rules is what distinguishes a legal system from a set of social habits;
4. the ultimate criterion of validity - the **rule of recognition** - is not itself valid or invalid: it **exists as a social fact**, in the convergent practice of officials who treat it as the common public standard from an **internal point of view**;
5. therefore law rests neither on a commander's will (Austin) nor on a presupposed norm (Kelsen) but on an **accepted official practice**.

FACT: **The internal and external points of view.** An external observer records regularities of behaviour; a participant taking the **internal point of view** treats the rule as a *reason* for conduct and as a ground for criticising deviation. Austin's "habit of obedience" captures only the external aspect and therefore cannot distinguish a legal obligation from a gunman's threat, or a rule from a habit.

ANALYSIS: **Hart's critique of Austin, in four strikes:**

Austin's claim	Hart's objection
Law is a command backed by sanction	ignores power-conferring rules; nullity is not a sanction
The sovereign is habitually obeyed	habit cannot explain continuity on succession or the persistence of old statutes
The sovereign obeys no one	in a modern legal order the law-maker is itself constituted and limited by rules of change
Obligation is being obliged by threat	conflates being obliged (the gunman) with having an obligation (the internal point of view)

ANALYSIS: **Hart against Kelsen.** Hart accepts the need for an ultimate criterion of validity but denies that it is a presupposed norm. The rule of recognition is a matter of **social fact** - what the officials of a given system actually treat as law - not a logical postulate standing outside the system. ANALYSIS: **Presupposition.** Legal theory is descriptive-analytical sociology of a special kind: validity can be explained without moral evaluation, but not without reference to shared official practice.

ANALYSIS: **Indian application, with the legal-status caution.** The **Constitution of India** is a written, supreme instrument containing rules of change (the amendment procedure) and rules of adjudication (the judicial hierarchy and writ jurisdiction) - a textbook fit for Hart's secondary rules and for Kelsen's norm-hierarchy alike. ANALYSIS: Indian federalism, judicial review and the amendment procedure together show that legal authority in India is **competence-distributed and rule-governed**, which is precisely what Austin's determinate illimitable superior cannot accommodate. WRONG: Do not describe any Indian institution, office or period as "the sovereign" in Austin's sense, and do not attribute a *Grundnorm* to any named document as though Kelsen had said so.

Named evidence you can cite

- **Hart, The Concept of Law, 1961** FACT: - cited by title and year only; paraphrased, never quoted.
- **The gunman situation** FACT: - the image that generates the *being obliged* / *having an obligation* distinction.
- **Nullity is not a sanction** FACT: - the decisive strike against the command model.
- **The Constitution of India** ANALYSIS: - an illustration of secondary rules, used as illustration and never as proof.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Hart's decisive move is the distinction between **being obliged and having an obligation**: because Austin's habitual obedience records only external regularity, it cannot separate a legal duty from a gunman's threat - and the repair is a rule of recognition accepted by officials from the **internal point of view**, not a stronger commander.

MUST-WRITE KEYWORDS

primary and secondary rules · rule of recognition · rules of change · rules of adjudication · uncertainty, stasis, inefficiency · internal point of view · being obliged against having an obligation · nullity is not a sanction · social fact, not presupposed norm

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Hart's reconstruction shows that the ultimate authority in a legal system is a **practice**, not a person and not a postulate. **Named evidence.** In *The Concept of Law* (1961) he argues that a regime of primary duty-imposing rules suffers uncertainty, stasis and inefficiency, each cured by a corresponding secondary rule - recognition, change and adjudication - and that the rule of recognition itself is neither valid nor invalid but exists as the convergent practice of officials who accept it from the internal point of view. **Analysis.** This settles the question Austin could not: the new sovereign's first command is law because the rule of recognition already identifies the office, and the centuries-old statute persists for the same reason, so continuity is carried by an accepted criterion rather than by a habit that must be freshly formed. **Qualification.** The account is not unassailable: Dworkin objects that in hard cases judges rely on principles that no pedigree test can identify, Hartian positivists reply that judges exercise bounded discretion at the penumbra of settled rules, and the dispute is best reported as live rather than closed.

Objection -> reply -> residual limit

- **Objection (Dworkin) ANALYSIS:** Even a complete structure of rules gives no determinate answer in **hard cases**; judges then rely on **principles**, which are part of the law but cannot be identified by any pedigree test such as a rule of recognition.
- **Reply ANALYSIS:** Hartian positivists reply that in genuinely hard cases judges exercise **bounded discretion** at the penumbra of settled rules, and that principles can be admitted through a sufficiently rich rule of recognition. The dispute is **unresolved**; state it as live. FACT: The Dworkin material itself is owned by **Individual and State** - name it and route it, never develop it here.
- **Objection ANALYSIS:** A rule of recognition grounded in official practice cannot condemn a legally impeccable but morally monstrous regime.
- **Reply ANALYSIS:** Hart's position is that separating legal validity from moral merit is what makes moral criticism of valid law **possible and clear-eyed**, rather than smuggling the verdict into the definition of law.
- **Residual limit ANALYSIS:** Both replies leave a genuine residue: bounded discretion is a matter of degree, and the moral-criticism defence tells us what positivism permits, not what it guarantees.

Examiner traps on this session

1. Treating Hart's rule theory as a restatement of Austin. Hart **rejects** the command model: nullity is not a sanction, habit cannot explain succession or persistence, and being obliged is not having an obligation. This is trap 12 of the owner's standing list.
2. Merging Kelsen, Hart and Laski into one "modern critique of Austin". They replace the personal sovereign with **three different things** - a norm-hierarchy, an official social practice, and a plurality of associations. This is trap 14.
3. Developing Dworkin's principles-and-hard-cases argument inside a sovereignty answer. Name it as the next objection to Hart and route it; the doctrine belongs to **Individual and State**. This is trap 15.

Mini recap

Three defects, three secondary rules, one accepted practice at the top. The gunman gives the distinction; nullity gives the strike; the internal point of view gives the explanation Austin could never supply.

SESSION 14 - LASKI I: PLURALISM AND THE SUPPORTED LINEAGE

The picture first

THE PLURALIST STARTING-POINT

=====

HUMAN BEINGS LIVE IN MANY ASSOCIATIONS -- AND EACH COMMANDS REAL LOYALTY

family | church | union | guild | cooperative | profession | locality

| | | | | | |
+-----+-----+-----+-----+-----+-----+-----+

v

THEREFORE the state CANNOT plausibly claim that ALL forms of obligation derive from IT ALONE

|

v

THE STATE IS ONE ASSOCIATION AMONG MANY -- though a uniquely important one

|

+-----+-----+-----+-----+-----+-----+-----+

v

WHAT THIS DENIES

- * that the state is the SOLE and morally UNLIMITED source of all authority
- * that associations are mere PERMISSIONS granted by sovereignty

|

v

LASKI IS A PLURALIST, NOT AN ANARCHIST.

v

WHAT THIS DOES NOT DENY

- * that a central public authority is needed
- * that the state has COORDINATING and COERCIVE capacities

THE SUPPORTED LINEAGE -- LOCATE THE SCHOOL, DO NOT REPLACE LASKI

FIGGIS	churches and other REAL associations expose the danger of an ABSOLUTE STATE allied with economic concentration	use as the group-personality and anti-absorption precursor	
COLE	forerunner of pluralism associated with FUNCTIONAL / GUILD representation and socially organised group life	do not turn the answer into a theory of guild socialism	
MacIVER	LAW and CONSTITUTION, not a mysterious sovereign WILL, ground legitimate public force; the state COORDINATES associations but does not create all their purposes	use for the strongest sociological supplement and the RESIDUAL COORDINATION role	

PHASE CAUTION -> EARLY Laski attacked sovereignty as a LEGAL FICTION; MATURE Laski conceded sovereignty's importance for state power while denying OMNIPOTENCE. So "Laski abolishes sovereignty" is as inaccurate as "Laski accepts Austin."

Caption: the starting-point, the two-column control on what pluralism denies, the three supporting names with their boundaries, and the phase caution that prevents the commonest misreading.

In plain words

Look at how people actually live. They belong to families, congregations, unions, professional bodies, universities, local communities - and they obey those bodies for reasons that have nothing to do with the state's permission. Laski's argument starts there. If real obligation is generated in many places, then the claim that all authority flows from a single sovereign will is not just morally alarming; it is **false as a description of society**.

Two guardrails. First, he is not an anarchist: the state still coordinates and still coerces, and he never proposes abolishing it. Second, his own position moved: the early Laski called sovereignty a legal fiction, the mature Laski

accepted its importance while denying its omnipotence. Quoting one phase as if it were the whole man is a standard error.

The doctrine, exactly

FACT: **The starting-point.** Laski rejects the monistic doctrine that the state possesses an absolute, indivisible and unlimited sovereignty. FACT: **The argument.** Human beings live in multiple associations - family, church, union, guild, cooperative, profession, locality - and these bodies command **real loyalty**. Therefore the state cannot plausibly claim that all forms of obligation derive from it alone. ANALYSIS: **Presupposition.** Social life is plural, layered and morally prior to the state's totalising claim. FACT: **The controlling distinction.** Laski is a **pluralist, not an anarchist**. He does not deny the need for the state; he denies that the state is the sole and morally unlimited source of all authority. ANALYSIS: **The illustration.** Workers may obey trade unions, believers may obey churches and citizens may follow local bodies for reasons not reducible to state command.

FACT: **The state as one association among many.** Unlike monists, Laski refuses to derive all rights and institutions from the state. Associations are not merely permissions granted by sovereignty; they are **real sites of personality, cooperation and authority**. ANALYSIS: **Presupposition.** Society precedes the state's monopolistic claim in moral richness. FACT: **The qualification.** "One association among many" does **not** mean all associations are equal in function; the state still has coordinating and coercive capacities.

FACT: **The supported pluralist lineage.** Laski is the printed thinker and must remain central; the following names locate the school rather than replace his argument.

Thinker	Supported contribution	Boundary
J. N. Figgis FACT:	Churches and other real associations expose the danger of an absolute state allied with economic concentration	Use as the group-personality and anti-absorption precursor
G. D. H. Cole FACT:	A forerunner of pluralism associated with functional/guild representation and socially organised group life	Do not turn the answer into a complete theory of guild socialism
R. M. MacIver FACT:	Law and constitution, not a mysterious sovereign will, ground legitimate public force; the state coordinates associations but does not create all their purposes	Use for the strongest sociological supplement and the residual coordination role

FACT: **Source control.** Gauba's searchable local PDF locates Figgis at p. 195, Cole among the pluralist forerunners at p. 199, and MacIver's developed associational/coordination argument at pp. 204-208. FACT: **Phase caution.** Laski's early work attacked sovereignty as a legal fiction; his mature position conceded sovereignty's importance for state power while denying omnipotence. Therefore "**Laski abolishes sovereignty**" is as inaccurate as "**Laski accepts Austin**".

Named evidence you can cite

- **Laski, A Grammar of Politics** FACT: and **Studies in the Problem of Sovereignty** FACT: - the two works behind the mature and the early positions respectively.
- **Figgis** FACT: - group personality and the danger of an absolute state allied with economic concentration.
- **Cole** FACT: - functional and guild representation as socially organised group life.
- **MacIver** FACT: - law and constitution, not a mysterious sovereign will, as the ground of legitimate public force.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Laski's pluralism is **descriptive before it is normative**: it first denies that a society of churches, unions, professions and localities can be accurately described as a single stream of obligation flowing from one will, and only then argues that treating it so is dangerous to liberty.

MUST-WRITE KEYWORDS

one association among many · real loyalty of associations · not permissions granted by sovereignty · pluralist, not anarchist · Figgis, Cole, MacIver · group personality · coordination without absolutism · early against mature Laski

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Laski's rejection of monistic sovereignty rests first on a sociological claim and only afterwards on a moral one. **Named evidence.** He argues that individuals belong simultaneously to family, church, union, guild, cooperative, profession and locality, that these bodies command real loyalty, and that the state is therefore one association among many - a position supported in the same school by Figgis on the group personality of real associations and by MacIver's argument that law and constitution, rather than a mysterious sovereign will, ground legitimate public force. **Analysis.** The order of the argument matters for marks: if plural obligation is a fact about how societies work, then the monist claim is not merely dangerous but **inaccurate**, and the moral objection to absolutism then arrives as a consequence rather than as an assertion of preference. **Qualification.** The position must be stated with two guards: Laski is a pluralist and not an anarchist, since the state retains coordinating and coercive capacities, and his own view shifted from an early attack on sovereignty as a legal fiction to a mature acceptance of its importance without omnipotence.

Objection -> reply -> residual limit

- **Objection FACT:.** If many associations claim authority, disorder follows.
- **Reply ANALYSIS:.** Laski's point is not to erase coordination but to prevent the state's monopolistic claim from swallowing civil freedom. The state must coordinate, but **coordination is not moral absolutism**.
- **Objection FACT:.** Pluralism underestimates the indispensability of a central public authority.
- **Reply ANALYSIS:.** Laski does not abolish public authority; he asks that it be **constitutionally limited and normatively justified** instead of treated as sacred and absolute.
- **Residual limit ANALYSIS:.** MacIver's residual coordination role is the honest measure of how much the monists were right about: some authority must settle conflicts **between** associations, and pluralism owes an account of it. Session 15 states that debt rather than denying it.

Examiner traps on this session

1. Calling Laski an anarchist. He is a **pluralist** who limits the state; he does not abolish public authority. This is trap 2 of the owner's standing list.
2. Presenting pluralism as mere decentralisation. Laski challenges the very claim that one final unlimited will exists in the state. This is trap 9.
3. Letting Figgis, Cole or MacIver take over the answer. They locate the school; the printed thinker is Laski, and the marks follow him.

Mini recap

Plural obligation is a fact before it is a value. One association among many, not no association at all. Figgis, Cole and MacIver support; Laski leads; and the phase caution keeps both misreadings out.

SESSION 15 - LASKI II: THE THREEFOLD REJECTION, EARNED ALLEGIANCE AND THE ASSESSMENT

The picture first

WHY ABSOLUTE SOVEREIGNTY IS REJECTED -- THREE INDEPENDENT GROUNDS

- =====
- (1) PHILOSOPHICALLY FALSE no human institution is entitled to
UNLIMITED MORAL OBEDIENCE
 - (2) POLITICALLY DANGEROUS absolute sovereignty LEGITIMISES TYRANNY
and SUPPRESSES LIBERTY
 - (3) SOCIOLOGICALLY UNREALISTIC . real societies DISTRIBUTE POWER among
many groups and institutions

|

NOTE THE STRUCTURE: three grounds, three DIFFERENT KINDS of claim --
moral, political, empirical. An answer that gives only one has given a third
of the argument.

|

v

WHAT FOLLOWS -- SOVEREIGNTY MUST BE DIVIDED AND SHARED

modern society is FUNCTIONALLY DIFFERENTIATED: economic, cultural,
educational, local and religious life cannot be adequately governed by a
single centralised will
-> power should be SHARED through institutions, representation and autonomy
-> and this is NOT mere administrative decentralisation; it is a challenge
to the IDEA of one final and unlimited sovereign will

|

v

THE STATE MUST COMPETE FOR ALLEGIANCE

allegiance is NOT automatically owed because the state DECLARES itself
supreme. Citizens obey when institutions PROTECT RIGHTS, SECURE WELFARE and
ENABLE MEANINGFUL LIFE.
-> authority is FUNCTIONAL and MORAL, not MYSTICAL

|

v

WHY MONISM IS DANGEROUS

if the state is the SOLE final authority, then dissenting associations,
minority rights, local autonomies and moral conscience can ALL be overridden
in the name of public supremacy
-> pluralism is a doctrine of LIBERTY as much as of SOCIOLOGY

|

v

THE BALANCED ASSESSMENT -- SAY BOTH HALVES

STRENGTH: shows that law, obedience and authority operate through a SOCIAL
FIELD OF ASSOCIATIONS

WEAKNESS: emergencies, defence and redistribution often require a STRONGER
INTEGRATING PUBLIC AUTHORITY than pure pluralism acknowledges

VERDICT: strongest as a CRITIC of absolute sovereignty and a DEFENDER of
liberty through social plurality; NOT a complete replacement for
all concepts of final authority

Caption: three grounds of three different kinds, two consequences, one danger, one two-sided verdict. This single page answers 2023 Q2(a) and half of 2018 Q2(b).

In plain words

Laski's rejection is not one argument repeated three times; it is three arguments of three different kinds. One is moral: nothing human deserves unlimited obedience. One is political: an unlimited authority is an invitation to tyranny. One is factual: societies do not actually work that way. An answer that offers only the moral point has offered a third of the case.

From that follows his positive proposal - authority should be shared, and the state should have to **earn** allegiance by what it does rather than claim it by what it is. And then the honest concession: in emergencies, in defence, in redistribution, somebody has to be able to act for the whole. Pluralism is a magnificent critique and an incomplete replacement.

The doctrine, exactly

FACT: **The threefold rejection.** Laski rejects absolute sovereignty because it is philosophically false, politically dangerous and sociologically unrealistic:

1. **Philosophically false** FACT: - no human institution is entitled to unlimited moral obedience.
2. **Politically dangerous** FACT: - absolute sovereignty legitimises tyranny and suppresses liberty.
3. **Sociologically unrealistic** FACT: - real societies distribute power among many groups and institutions.

ANALYSIS: **Presupposition**. Liberty and moral personality require dispersed authority. ANALYSIS: **Target**. He attacks both the legal abstraction of Austin and the absolutist impulse inherited from Bodin.

FACT: **Sovereignty must be divided and shared**. For Laski, sovereignty in the monistic sense should give way to a **distributed structure of authority**. ANALYSIS: **The argument**. Modern society is functionally differentiated: economic, cultural, educational, local and religious life cannot be adequately governed by a single centralised will, so power should be shared through institutions, representation and autonomy. ANALYSIS: **Presupposition**. Freedom depends on institutional pluralism. FACT: **The distinction that must be written**. Laski's division of authority is **not mere administrative decentralisation**; it is a deeper challenge to the idea of one final and unlimited sovereign will.

FACT: **The state must compete for allegiance**. Allegiance is not automatically owed because the state declares itself supreme. Citizens obey when institutions protect rights, secure welfare and enable meaningful life. ANALYSIS: **The consequence**. Authority is **functional and moral, not mystical**: a state that fails in justice, liberty and welfare cannot claim unlimited obedience merely by legal title.

FACT: **Why monistic sovereignty is dangerous**. If the state is treated as the sole final authority, dissenting associations, minority rights, local autonomies and moral conscience can all be overridden in the name of public supremacy. FACT: **The double character of the critique**. It is both empirical and normative: monism **misdescribes** society and **licenses** domination.

ANALYSIS: **The assessment, both halves**. Laski powerfully exposes the limits of monism but may understate the coordinating necessity of the state. His strength lies in showing that law, obedience and authority operate through a social field of associations; his weakness is that emergencies, defence and redistribution often require a stronger integrating public authority than pure pluralism acknowledges. ANALYSIS: **The balanced conclusion**. Laski is strongest as a **critic of absolute sovereignty** and as a **defender of liberty through social plurality**, not as a complete replacement for all concepts of final authority.

Named evidence you can cite

- **Laski, A Grammar of Politics*** FACT: - the mature statement of divided authority and earned allegiance.
- **The three grounds** FACT: - philosophical, political, sociological: name all three or lose two-thirds of the answer.
- **MacIver** FACT: - the residual coordination role that measures what pluralism still owes.
- **Bodin and Austin** FACT: - the two targets: the absolutist impulse and the legal abstraction.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Laski's rejection is **three arguments of three different kinds** - moral, political and empirical - and the verdict must be equally two-sided: his corrective against absolutism is indispensable, yet a polity that can never speak with one voice cannot discharge the coordinating task that made sovereignty necessary in the first place.

MUST-WRITE KEYWORDS

philosophically false, politically dangerous, sociologically unrealistic · functional differentiation · divided and shared authority · not administrative decentralisation · earned allegiance · functional and moral, not mystical · misdescribes and licenses · the coordination debt

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. Laski's case against absolute sovereignty is strong precisely because its three grounds are logically independent of one another. **Named evidence.** He holds that no human institution is entitled to unlimited moral obedience, that absolute sovereignty legitimises tyranny and suppresses liberty, and that real societies distribute power among many groups and institutions - and he adds that the state must compete for allegiance by protecting rights, securing welfare and enabling meaningful life rather than claiming obedience by legal title. **Analysis.** The independence is what gives the argument its force: a defender of monism who answers the moral objection by insisting that legal supremacy carries no moral claim still faces the empirical objection that societies are functionally differentiated, and one who answers the empirical objection by conceding shared competences has already abandoned indivisibility. **Qualification.** The verdict must nevertheless concede the coordination debt: emergencies, defence and redistribution require an integrating public authority, and Laski's own school, in MacIver's version, retains exactly that residual coordinating role - so pluralism is a decisive critique and an incomplete replacement.

Objection -> reply -> residual limit

- **Objection FACT:.** Strong sovereignty is necessary to secure peace and reform.
- **Reply ANALYSIS:.** Laski answers that unchecked strength may itself become the gravest threat to justice; the state gains allegiance by **performance and legitimacy**, not by metaphysical supremacy.
- **Objection FACT:.** Shared sovereignty is conceptually incoherent - finality cannot be split.
- **Reply ANALYSIS:.** Laski's real claim is that the **monistic concept itself is misleading**. Political life contains overlapping authorities, and theory should reflect that plurality rather than forcing it into a rigid pyramid.
- **Objection CAUTION:.** Conditional allegiance weakens unity.
- **Reply ANALYSIS:.** Blind allegiance is more dangerous than critical allegiance; durable unity rests on justice and service, not on absolutist dogma.
- **Residual limit ANALYSIS:.** None of these replies supplies a decision procedure for conflicts **between** associations in an emergency. That gap is real, and stating it is what makes a 2018- or 2023-type answer look adjudicated rather than partisan.

Examiner traps on this session

1. Giving only the moral ground. The 2023 stem asks *why* the absolute nature was rejected, and the three-kinds structure is the answer's skeleton.
2. Writing the assessment as unqualified praise. The 2018 stem asks whether Laski's view is a **satisfactory position in political theory**, which requires naming the criterion of satisfactoriness and conceding the coordination debt.
3. Treating "divided and shared" as federalism. Federal division is a constitutional arrangement; Laski's claim is about the **concept** of final unlimited will.

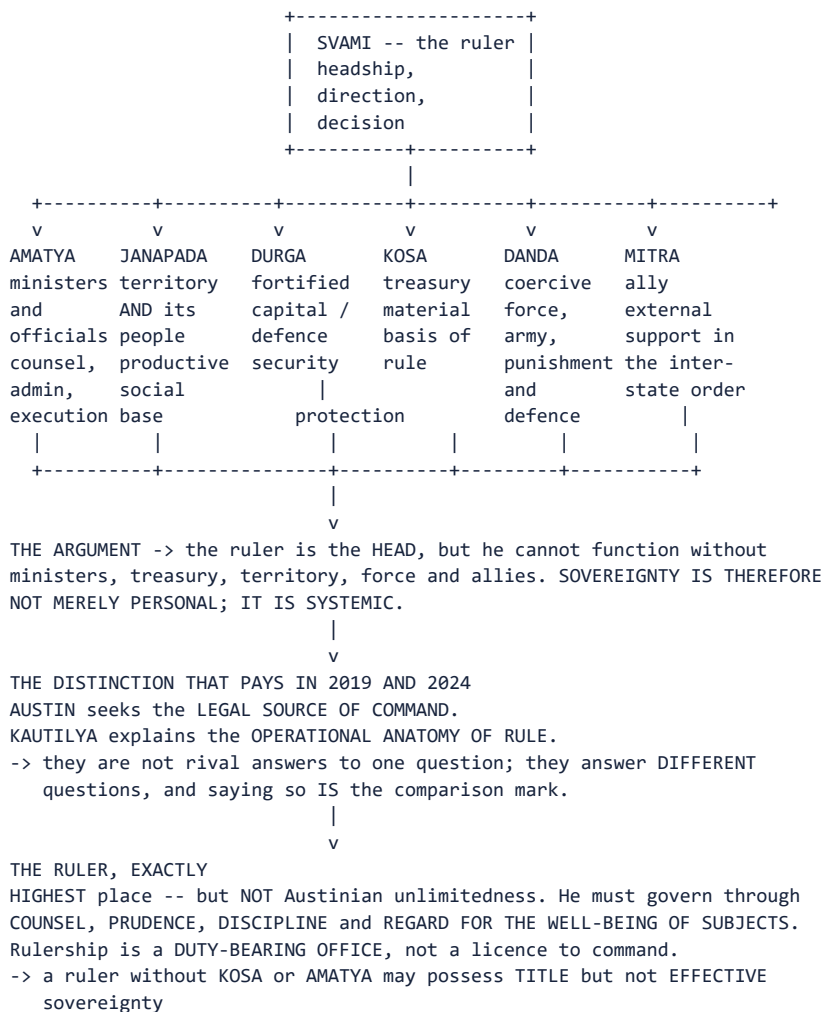
Mini recap

Three grounds, three kinds. Divided authority, earned allegiance, functional and moral rather than mystical. Decisive as critique; incomplete as replacement - and say both halves.

SESSION 16 - KAUTILYA I: THE SEVEN-LIMBED STATE AND THE RULER

The picture first

THE STATE AS AN ORGANISM -- SEVEN LIMBS (SAPTANGA / PRAKRTIS)



Caption: seven limbs, one head, one systemic conclusion. The middle box is the highest-value sentence in any Austin-versus-Kautilya answer.

In plain words

Kautilya does not begin with a definition of authority; he begins with an inventory of what a working state is made of. Seven things: a ruler, ministers, a populated territory, a fortified defence, a treasury, an armed coercive capacity and an ally. Take any one away and the state limps.

That inventory is itself an argument. If sovereignty were purely the ruler's will, the list would be unnecessary. Because the list is necessary, sovereignty turns out to be a property of the **whole organism** - with the ruler as its head rather than its sole substance. A king with an empty treasury and no ministers has a title and not much else.

The doctrine, exactly

FACT: **The framework.** Kautilya's theory of sovereignty in the *Arthaśāstra* is embedded in a comprehensive science of statecraft, order, welfare, punishment and interstate strategy. FACT: **The argument.** Unlike Austin's narrow jurisprudence, Kautilya treats sovereignty as a **practical art of rulership** involving administration, treasury, coercion, alliances, intelligence, territory and public welfare. His sovereign is active, strategic and institutionally situated. ANALYSIS: **Presupposition.** Political order is fragile and must be sustained through prudent organisation of the state. ANALYSIS: **The placement.** Kautilya is neither a simple absolutist nor a liberal constitutionalist; he is a **realist thinker of rule constrained by dharma and public welfare.**

FACT: **The seven-limbed (saptāṅga) state.** The state consists of seven interdependent limbs (*saptāṅga / prakṛtis*):

Limb	Meaning	Function in sovereignty
Svāmī FACT:	The ruler or king	Headship, direction, decision
Amātya FACT:	Ministers and officials	Counsel, administration, execution
Janapada FACT:	Territory together with its people	Productive social base
Durga FACT:	Fortified capital and defence structure	Security and protection
Kośa FACT:	Treasury	Material basis of rule
Daṇḍa FACT:	Force, army, coercive power	Enforcement, punishment, defence
Mitra FACT:	Ally	External support in the interstate order

ANALYSIS: **The argument.** The theory presents the state as an **organism**. The ruler is the head, but he cannot function without ministers, treasury, territory, force and allies; sovereignty is therefore not merely personal but **systemic**. ANALYSIS: **Presupposition.** Stable rule depends on interdependence among institutions and the material bases of power. FACT: **The comparison that earns the mark.** This differs from Austin: Austin seeks the **legal source of command**; Kautilya explains the **operational anatomy of rule**. ANALYSIS: **The illustration.** A ruler without treasury (*kośa*) or ministers (*amātya*) may possess title but not effective sovereignty.

FACT: **The ruler (svāmī), exactly.** The *svāmī* occupies the highest place, yet Kautilyan sovereignty is **not Austinian unlimitedness**. ANALYSIS: **The argument.** The ruler must govern through counsel, prudence, discipline and regard for the well-being of subjects. Authority is real, but its legitimacy and success are judged by order and welfare. ANALYSIS: **Presupposition.** Rulership is a **duty-bearing office**, not merely a licence to command. FACT: **The distinction.** The king is central, but the state is **not identical with the king's private will**.

Named evidence you can cite

- **Kautilya, Arthaśāstra*** FACT: (Shamasastri / R. P. Kangle translation) - the seven constituents and the science of statecraft.
- **The seven limbs by name** FACT: - *svāmī, amātya, janapada, durga, kośa, daṇḍa, mitra*: name them in order; the list itself is examinable.
- **Austin** FACT: - the contrast case: legal source against operational anatomy.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Kautilya's seven limbs are not an administrative checklist but an **argument about the nature of sovereignty**: because rule fails without ministers, treasury, territory, force and allies, final authority turns out to be a property of the organism, with the ruler as its head rather than its whole substance.

MUST-WRITE KEYWORDS

saptāṅga / prakṛtis · *svāmī, amātya, janapada, durga, kośa, daṇḍa, mitra* · **organism, not person** · **systemic sovereignty** · **duty-bearing office** · **legal source against operational anatomy** · **title without effective sovereignty**

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The seven-limbed theory converts sovereignty from a personal attribute into a systemic one, and that conversion is what makes Kautilya genuinely comparable with, rather than merely different from, Austin. **Named evidence.** The *Arthaśāstra* presents the state through seven interdependent constituents - the ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*), coercive force (*daṇḍa*) and ally (*mitra*) - and treats a ruler without treasury or ministers as holding title without effective sovereignty. **Analysis.** If effective authority depends on six other limbs, then the ruler's will is a necessary but insufficient condition of sovereignty, and the theory has answered a question Austin never asks: not what makes a command legally valid, but what makes rule actually possible. **Qualification.** The comparison must not be pushed into identity: Kautilya writes for monarchy, offers no doctrine of legal validity and never claims illimitability, so the honest conclusion is that Austin analyses the **form** of authority while Kautilya prescribes its **function**.

Objection -> reply -> residual limit

- **Objection CAUTION:** Because he centres the king, Kautilya is just a premodern authoritarian.
- **Reply ANALYSIS:** The king is central, but the state is not reducible to royal whim: the seven limbs, the welfare obligations and the strategic constraints all show a more **institutional and purposive** theory.
- **Objection CAUTION:** If sovereignty is distributed among limbs, the king ceases to be sovereign.
- **Reply ANALYSIS:** Kautilya preserves royal primacy while recognising that effective sovereignty is **organismic and conditional** on administrative and strategic capacities.
- **Objection FACT:** A monarch with coercive power can always ignore duty.
- **Reply ANALYSIS:** Kautilya is too realistic to deny abuse; his response is institutional vigilance, ministerial competence, discipline and reason of state tied to long-term stability - **misrule weakens sovereignty itself**.
- **Residual limit ANALYSIS:** These are prudential rather than enforceable checks. Nothing in the scheme empowers any limb to remove a ruler who ignores them, and a candid answer says so instead of dressing prudence as constitutionalism.

Examiner traps on this session

1. Equating Kautilya with Austinian absolutism. The ruler is strong but bound by dharma, welfare, prudence and institutional interdependence. This is trap 4 of the owner's standing list.
2. Listing the limbs without the argument. Seven Sanskrit words score as vocabulary; the interdependence claim scores as philosophy.
3. Translating *janapada* as "territory" alone. It is territory **together with its people** - the productive social base - and the omission removes the welfare link that Session 18 needs.

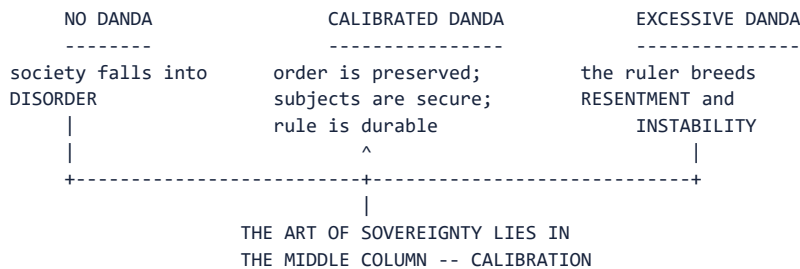
Mini recap

Seven limbs, one head, one systemic claim. Austin asks what makes a command valid; Kautilya asks what makes rule possible. Title without treasury is not sovereignty.

SESSION 17 - KAUTILYA II: CALIBRATED COERCION

The picture first

DANDANITI -- THE SCIENCE OF PUNISHMENT AND ORDERED COERCION
=====



THE ARGUMENT, IN THREE MOVES

- (1) coercive power is **INDISPENSABLE** -- human conduct cannot be secured by moral appeal alone; order requires enforceable discipline
- (2) but coercion is **SELF-DEFEATING** when excessive -- fear without welfare destroys the very stability it was meant to protect
- (3) therefore **DANDA** must be **PROPORTIONATE**, **LAWFUL**, **PREDICTABLE** and **TIED TO PURPOSE** -> that proportionality **IS** the science (**NITI**) in **DANDANITI**

WHAT DANDANITI IS NOT

- X NOT blind terror
- X NOT arbitrary cruelty
- X NOT a licence for the ruler's private vengeance
- > it is **ORDERED COERCION** aimed at preserving political order and material well-being

THE 2018 STEM, DECODED

- "Discuss Kautilya's concept of sovereignty in the light of 'Danda-neety'."
- > the examiner is asking you to show that **SOVEREIGNTY** means the **CAPACITY TO MAINTAIN ORDER THROUGH DISCIPLINED FORCE**, not arbitrary cruelty
 - > the mark-bearing move is the **CALIBRATION** argument, not a definition of punishment

COMPLEMENTARITY, NOT OPPOSITION

- FEAR WITHOUT WELFARE self-defeating
- WELFARE WITHOUT ORDER impossible
- > coercion and welfare are **COMPLEMENTARY** halves of one theory (Session 18)

Caption: three columns, three moves, one decoded stem. The bottom rail is the sentence that connects this session to security and welfare (yogakṣema).

In plain words

Kautilya is unembarrassed about force. He thinks a state that cannot punish cannot govern, and he says so plainly. But he is equally clear that a state which punishes too much destroys itself - resentment is a political fact, and a frightened population is not a stable one.

So the doctrine is not "punish" but "punish **rightly**": proportionately, predictably and for a purpose. That is what the word does. *Danḍa* is the force; *nīti* is the policy or science that governs its use. Calibration is the whole idea.

The doctrine, exactly

FACT: The definition. *Danḍanīti* is the science of punishment, coercive order and disciplined enforcement. **FACT:**

The argument. Kautilya sees coercive power as **indispensable**. Without *danḍa*, society falls into disorder; with excessive *danḍa*, the ruler breeds resentment and instability. The art of sovereignty lies in **calibrated punishment**.

ANALYSIS: Presupposition. Human conduct cannot be secured by moral appeal alone; order requires enforceable discipline. **FACT: The distinction that must be written.** *Danḍanīti* is **not blind terror**. It is ordered coercion aimed at preserving political order and material well-being. **ANALYSIS: The examination point.** The 2018 question on Kautilya in the light of *danḍanīti* expects exactly this: sovereignty means the **capacity to maintain order through disciplined force**, not arbitrary cruelty.

ANALYSIS: Where the limb sits. *Danḍa* is one of the seven limbs, and its placement matters: coercion is a **constituent** of the state's capacity, not an emergency supplement to it. A theory that treats force as exceptional cannot explain the ordinary work of maintaining order; a theory that treats it as unlimited cannot explain why states

collapse under their own repression. Kautilya takes the middle position by construction.

Named evidence you can cite

- **Kautilya, Arthaśāstra*** FACT: - calibrated coercion as a science of rule, verified through the R. Shamasastri translation source trail.
- **Daṇḍa as a limb of the saptāṅga state** FACT: - the structural point that coercion is constitutive, not exceptional.
- **2018 Q1(d)** FACT: - the stem that makes this session directly examinable.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Daṇḍanīti is a doctrine of **proportion, not of severity**: too little coercion dissolves order and too much destroys the consent on which order rests, so sovereignty in Kautilya is measured by the ruler's capacity to calibrate force rather than by his freedom to use it.

MUST-WRITE KEYWORDS

daṇḍa as force, nīti as science · calibrated coercion · disorder without it, resentment beyond it · ordered, not arbitrary · coercion is constitutive, not exceptional · fear without welfare is self-defeating

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. *Daṇḍanīti* is best read not as a theory of punishment but as the **measure of sovereignty itself** in Kautilya. **Named evidence.** The *Arthaśāstra* treats coercive force (*daṇḍa*) as one of the seven constituents of the state and insists that its absence produces disorder while its excess produces resentment and instability, so that the ruler's task is disciplined and proportionate enforcement rather than maximal severity. **Analysis.** Placing coercion inside the list of constituents does the philosophical work: it makes the capacity to punish a permanent structural feature of rule rather than an emergency power, and it makes the *quality* of that punishment - proportionate, predictable, purposive - the test of whether sovereignty is being exercised well or destroyed. **Qualification.** The doctrine remains prudential rather than rights-based: it condemns cruelty because cruelty is destabilising, not because subjects hold enforceable claims against the ruler, and an accurate answer states that difference instead of reading modern constitutional restraint into an ancient text.

Objection -> reply -> residual limit

- **Objection CAUTION:**. This turns politics into fear.
- **Reply ANALYSIS:**. Kautilya's deeper argument is that **fear without welfare is self-defeating, while welfare without order is impossible**. Coercion and welfare are therefore complementary rather than mutually exclusive.
- **Residual limit ANALYSIS:**. The reply establishes prudential restraint, not moral limit. Nothing in the doctrine gives subjects a claim-right against disproportionate punishment; the restraint is on the ruler's interest, not on his entitlement - and saying so is what keeps the answer accurate.

Examiner traps on this session

1. Reducing *daṇḍanīti* to "punishment". The *nīti* half is the argument: it is the **policy governing** the use of force.
2. Reading modern proportionality doctrine into the text. The restraint is prudential and stability-based; do not manufacture a theory of rights.
3. Answering 2018 Q1(d) with the whole of Kautilya. The stem is *in the light of daṇḍanīti*: lead with calibration, use the seven limbs and welfare as support, and do not let the circle of states take over.

Mini recap

Force is constitutive; calibration is the science; proportion is the test. Too little dissolves order, too much destroys it, and welfare is the other half of the same theory.

SESSION 18 - KAUTILYA III: CIRCLE OF STATES, SIX-FOLD POLICY, WELFARE AND MODERN RELEVANCE

The picture first

EXTERNAL SOVEREIGNTY -- THE CIRCLE OF STATES (MANDALA)

The interstate world is COMPETITIVE and UNSTABLE. The MANDALA framework locates friends and enemies RELATIONALLY -- by POSITION, not by sentiment.

|
v

THE SIX-FOLD POLICY (SADGUNYA) -- POLICY CHANGES WITH CIRCUMSTANCE, RELATIVE POWER AND INTEREST

SANDHI	making peace / treaty
VIGRAHA	hostility / war
YANA	marching / preparation / expedition
ASANA	staying quiet / remaining poised
SAMSRAYA	seeking shelter / alliance
DVAIDHIBHAV	dual policy / combination strategy

|
v

THEESIS SUPPORTED -> STRATEGIC FLEXIBILITY.
NOT a verified verbatim maxim.

2025 PROVENANCE CONTROL -- READ THIS BEFORE WRITING THAT ANSWER
The paper PRINTS: "There is no permanent friend or permanent enemy." Treat that sentence as the EXAMINER'S FRAMING.
The exact wording has NOT been verified in the local Arthashastra synopsis or the checked Shamasastri source passages.
-> DO NOT call it a Kautilya quotation.
-> DO explain why the VERIFIED mandala and sadgunya doctrines make alliances CONDITIONAL and policy RESPONSIVE.

SECURITY AND WELFARE (YOGAKSEMA) -- THE INTERNAL COUNTERPART

the ruler's welfare is TIED TO the welfare of the people; the durability of rule depends on PROSPERITY, SECURITY and JUSTICE IN ADMINISTRATION

-> this moves Kautilya BEYOND pure force theory

-> treasury, territory and administration are not merely instruments of EXTRACTION; they are CONDITIONS for stable and prosperous rule

|
v

KAUTILYA AND DEMOCRACY -- THE 2021 AND 2024 QUESTION

NOT TRANSFERABLE the monarchical FORM

TRANSFERABLE institutional interdependence, prudent use of force, treasury discipline, strategic diplomacy, welfare-centred governance

THE RULE SELECTIVE APPROPRIATION -- retain strategic realism, administrative discipline and welfare orientation while REJECTING monarchical absolutism

Caption: external face, six measures, one provenance control, one internal counterpart and one applicability rule. The boxed control is the difference between a safe 2025 answer and a fabricated one.

In plain words

Kautilya's foreign policy is geometry, not friendship. Your neighbour is structurally your rival; your neighbour's neighbour is structurally your friend. Positions, not affections. And because positions shift, policy must have gears: make peace, fight, march, sit still, seek shelter, or run two policies at once.

Then the internal counterpart. A ruler who extracts without providing is building on sand, because the treasury depends on a productive population and the population is only productive if it is secure and reasonably treated. That pairing - security and welfare - is what stops the *Arthaśāstra* being a manual of pure force.

One caution before the 2025 answer. The famous line about no permanent friends is printed **by the examiner**. It is not verified as Kautilya's own wording, and claiming it is a quotation is an invented fact.

The doctrine, exactly

FACT: **External sovereignty.** Kautilya's external sovereignty is expressed through the circle-of-states (*maṇḍala*) theory and the six-fold policy (*ṣaḍguṇya*). ANALYSIS: **The argument.** The interstate world is competitive and unstable. The *maṇḍala* framework locates friends and enemies **relationally**, while the six measures permit policy to change with circumstance, relative power and interest. This supports a thesis of **strategic flexibility**, not a verified verbatim maxim.

FACT: **The six-fold policy (*ṣaḍguṇya*):**

Policy	General sense
Sandhi	making peace or treaty
Vigraha	hostility or war
Yāna	marching, preparation, expedition
Āsana	staying quiet, remaining poised
Samśraya	seeking shelter or alliance
Dvaidhībhāva	dual policy or combination strategy

ANALYSIS: **Presupposition.** External sovereignty is **relational and strategic** rather than moralised into permanent friendship. FACT: **The distinction.** Bodin emphasises undivided internal supremacy; Kautilya adds the intelligence of **survival among rival states**.

FACT:/ANALYSIS: **The 2025 provenance control.** The paper itself prints "**There is no permanent friend or permanent enemy.**" Treat that sentence as the **examiner's framing**. The exact wording has not been verified in the local *Arthaśāstra* synopsis or the checked Shamasastri source passages. **Do not call it a Kautilya quotation.** Explain instead why the verified *maṇḍala* and *ṣaḍguṇya* doctrines make alliances conditional and policy responsive. ANALYSIS: The 2025 question invites the candidate to interpret its printed line through Kautilya's competitive interstate framework; it does not establish the line's authorship.

FACT: **Security and welfare (*yogakṣema*).** Kautilyan sovereignty is oriented to security and welfare and to the ruler's duty toward subjects. FACT: **The argument.** The ruler's welfare is tied to the welfare of the people; the durability of rule depends on prosperity, security and justice in administration. This moves Kautilya **beyond pure force theory**. ANALYSIS: **Presupposition.** State power is sustainable only if social and material welfare are secured. FACT: **The contrast.** Austin's sovereign is legally unlimited and not normatively constituted by public welfare; Kautilya's ruler is **measured by welfare consequences**. ANALYSIS: **The illustration.** Treasury, territory and administration are not merely instruments of extraction; they are **conditions** for stable and prosperous rule.

ANALYSIS: **Kautilya and democracy.** He writes for monarchy, yet parts of his theory remain applicable in democratic government: the exact monarchical form is not transferable, but the insights into institutional interdependence, prudent use of force, treasury, strategic diplomacy and welfare-centred governance can be adapted to democratic states. FACT: Democratic applicability lies in **principles of statecraft, not in reproducing kingship**. ANALYSIS: **Modern relevance.** The modern relevance of the *Arthaśāstra* lies in its combined attention to institutional capacity, security, diplomacy and public welfare. It remains useful because it refuses the false choice between moralism and realism, showing that sovereignty involves administration, intelligence, fiscal strength, external balancing and **legitimacy through welfare**.

Named evidence you can cite

- **Kautilya, Arthaśāstra*** FACT: - the circle of states, the six measures, and security and welfare; verified through the R. Shamasastri translation source trail for the seven constituents, calibrated coercion and the six-fold policy.
- **The six measures by name** FACT: - *sandhi*, *vigraha*, *yāna*, *āsana*, *saṁśraya*, *dvaidhībhāva*.
- **2025 Q2(c)** FACT: - the printed maxim, treated as prompt wording and not as verified authorship.
- **Austin** FACT: - the contrast: external relations underdeveloped except for the denial that international law is truly law.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

In the circle of states, friendship and enmity are **positional rather than personal**: because the six measures allow policy to move with relative power and interest, the conditionality of alliances follows from the structure of the *maṇḍala* itself and needs no quotation to establish it.

MUST-WRITE KEYWORDS

maṇḍala · śāḍgunya · sandhi, vigraha, yāna, āsana, saṁśraya, dvaidhībhāva · **positional, not personal** · strategic flexibility · yogakṣema · prajā-sukha · legitimacy through welfare · selective appropriation · prompt wording, not verified quotation

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The conditionality of alliance in Kautilya is a **structural** consequence of his interstate model, not a maxim to be quoted. **Named evidence.** The circle-of-states (*maṇḍala*) framework locates friends and enemies by relative position in a competitive states-system, and the six-fold policy (*śāḍgunya*) - peace, war, marching, remaining poised, seeking shelter and dual policy - supplies the gears by which a ruler shifts as relative power and interest change. **Analysis.** Once alignment is defined by position rather than sentiment, permanence becomes conceptually unavailable: a state that gains or loses power changes position, and a change of position changes which measure is prudent, so conditionality falls out of the model rather than being asserted about it. **Qualification.** The printed line "There is no permanent friend or permanent enemy" must be handled as the examiner's framing rather than as verified Kautilyan wording, and the strategic model must be balanced against the internal duty to security and welfare (*yogakṣema*), which prevents the doctrine from collapsing into amoral opportunism.

Objection -> reply -> residual limit

- **Objection FACT:.** Such realism is cynical and amoral.
- **Reply ANALYSIS:.** Kautilya is certainly realistic, but **not normless**. Strategic flexibility operates alongside the ruler's internal duty toward order and welfare.
- **Objection CAUTION:.** Welfare language may simply mask reason of state.
- **Reply ANALYSIS:.** The tension exists, but Kautilya's point is precisely to **combine** prudence and welfare: durable statecraft requires both coercive capacity and public well-being.
- **Objection CAUTION:.** A democratic order cannot borrow from monarchical realism without undermining liberty.
- **Reply ANALYSIS:.** The reply is **selective appropriation**: retain strategic realism, administrative discipline and welfare orientation while rejecting monarchical absolutism.
- **Objection CAUTION:.** Ancient categories cannot speak to modern constitutional states.
- **Reply ANALYSIS:.** Direct transposition is impossible, but **conceptual adaptation** is fruitful; the examination rewards relevance shown through themes, not by pretending ancient monarchy equals modern democracy.
- **Residual limit ANALYSIS:.** Prudential statecraft is not consent-based legitimacy. Welfare in Kautilya is a condition of durable rule rather than a right held by subjects, and the answer must not read modern democracy into it.

Examiner traps on this session

1. Reducing Kautilya to foreign policy alone. *Maṇḍala* matters, but so do *saptāṅga*, *daṇḍanīti* and *yogakṣema*. This is trap 5 of the owner's standing list.
2. Presenting the 2025 printed maxim as a verified Kautilya quotation. Treat it as PYQ framing and answer through *maṇḍala* and *śāḍgunya*. This is trap 19.
3. Answering the applicability question with a flat yes. The mark-bearing formula is **form not transferable, principles transferable** - selective appropriation, stated as such.

Mini recap

Positions, not affections; six gears, not one policy. Welfare is the internal counterpart of strategy, applicability is selective, and the famous line is the examiner's, not Kautilya's.

SESSION 19 - SOVEREIGNTY UNDER GLOBALISATION

The picture first

THE THESIS -- SAY IT IN THESE WORDS

=====

GLOBALISATION MODIFIES SOVEREIGNTY BUT DOES NOT ABOLISH IT.

The issue is POOLED, NEGOTIATED and NETWORKED sovereignty -- NOT the disappearance of sovereignty.

FOUR MECHANISMS -- AND WHAT EACH ACTUALLY DOES

MECHANISM	WHAT HAPPENS	SOVEREIGNTY CONSEQUENCE
TREATY COMMITMENT	a state accepts binding rules through its recognised treaty-making capacity	SELF-LIMITATION can constrain future action WITHOUT creating a global Austinian sovereign
DELEGATION	a state authorises an institution to perform a defined adjudicative, administrative or monitoring function	EXERCISE of a competence moves outward; the legal SOURCE and LIMITS remain treaty-based
POOLING	states exercise a defined competence JOINTLY through common voting or bargaining rules	FINALITY becomes SHARED for the agreed field, NOT universally transferred
MATERIAL DEPENDENCE / CONDITIONALITY	finance, markets, technology or security asymmetry narrows feasible choices	LEGAL INDEPENDENCE may survive while EFFECTIVE AUTONOMY declines

THE FOUR THINKERS, RE-DEPLOYED

BODIN external pressure would not negate the need for a final INTERNAL authority

AUSTIN ... globalisation COMPLICATES the idea of an uncommanded superior

LASKI interdependence STRENGTHENS the critique of absolute state supremacy

KAUTILYA . the strategic-relational side of external sovereignty remains highly relevant

SUPRANATIONAL CAUTION -> not every international organisation is supranational, and even a supranational institution is not automatically sovereign in Austin's sense. ASK: which competence was conferred? by what instrument? with what exit or review rule? and does material dependence make formal consent SUBSTANTIVELY UNEQUAL?

Caption: one thesis, four mechanisms, four re-deployments and one caution. The four-row table is the entire skeleton of the 2020 Q4(b) answer.

In plain words

The lazy answer to "is sovereignty still relevant?" is "no, globalisation ended it". The lazy answer is wrong, and it is wrong in a way that is easy to demonstrate. States still decide who may enter, who may be a citizen, whether to go to war, what the tax code says and whether to leave a treaty. What has changed is not that decisions vanished but that they are increasingly taken **through** commitments, delegations and shared procedures.

The trick is to distinguish four different things that get lumped together. Promising to be bound is not the same as handing power to somebody else; letting an institution do a job is not the same as sharing the decision; sharing the decision is not the same as being too poor to refuse. Each has a different consequence for sovereignty, and separating them is the answer.

The doctrine, exactly

ANALYSIS: **The thesis.** Globalisation **modifies** sovereignty but does not abolish it. ANALYSIS: **The argument.** External economic, legal and strategic interdependence constrains states; yet states still claim final authority over territory, law, security and political membership. The issue is **pooled, negotiated and networked sovereignty** rather than the disappearance of sovereignty.

FACT:/ANALYSIS: **The four mechanisms of constraint and reconfiguration:**

Mechanism	What happens	Sovereignty consequence
Treaty commitment FACT:/ANALYSIS:	A state accepts binding rules through its recognised treaty-making capacity	Self-limitation can constrain future action without creating a global Austinian sovereign
Delegation ANALYSIS:	A state authorises an institution to perform a defined adjudicative, administrative or monitoring function	Exercise of a competence moves outward while the legal source and limits of the delegation remain treaty-based
Pooling ANALYSIS:	States exercise a defined competence jointly through common voting or bargaining rules	Finality becomes shared for the agreed field, not universally transferred
Material dependence / conditionality ANALYSIS:	Finance, markets, technology or security asymmetry narrows feasible choices	Legal independence may survive while effective autonomy declines

ANALYSIS: **The four thinkers re-deployed.** **Bodin** - external pressure would not negate the need for a final internal authority. **Austin** - globalisation complicates the idea of an uncommanded superior. **Laski** - interdependence strengthens the critique of absolute state supremacy. **Kautilya** - the strategic-relational side of external sovereignty remains highly relevant. ANALYSIS: **The supranational caution.** Not every international organisation is supranational, and even a supranational institution is not automatically sovereign in Austin's sense. Ask **which competence** was conferred, **by what instrument**, with **what exit or review rule**, and whether material dependence makes formal consent substantively unequal. FACT: **The boundary.** International Relations owns the detailed institutions and current disputes. This owner uses them only to distinguish legal persistence, delegated exercise, pooled authority and practical constraint.

Named evidence you can cite

- **The four mechanisms** FACT:/ANALYSIS: - treaty, delegation, pooling, material dependence: the analytic grid that replaces the slogan.
- **Austin's denial that international law is truly law** FACT: - the point at which globalisation reopens Session 10.
- **Laski** FACT: - interdependence as reinforcement for the pluralist critique.
- **Kautilya's maṇḍala*** FACT: - the oldest available theory of relational external sovereignty.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

Sovereignty under globalisation is **illimitable in legal form, limited in political fact and negotiated in international practice** - so the doctrine's relevance survives precisely because the question has moved from whether final authority exists to how it is exercised, delegated, pooled and constrained.

MUST-WRITE KEYWORDS

reconfigured, not abolished · treaty commitment as self-limitation · delegation of exercise, not of source · pooling shares finality in a field · conditionality narrows effective autonomy · legal independence against effective autonomy · not every organisation is supranational

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The relevance of the doctrine of sovereignty in an interdependent world is preserved by distinguishing four different things that the word "globalisation" runs together. **Named evidence.** A treaty commitment is an exercise of a state's own recognised treaty-making capacity; delegation authorises an institution to perform a defined adjudicative, administrative or monitoring function; pooling has states exercise a competence jointly under common voting or bargaining rules; and material dependence on finance, markets, technology or security narrows the range of feasible choices without altering legal status at all. **Analysis.** Each has a different consequence: the first is self-limitation, which presupposes rather than abolishes sovereign capacity; the second moves the exercise while leaving the source and limits treaty-based; the third shares finality within an agreed field; and only the fourth reduces autonomy without any legal transfer, which is why "sovereignty has ended" both overstates the first three and understates the fourth. **Qualification.** The analysis must resist symmetrical errors: not every international organisation is supranational, no supranational institution is thereby an Austinian sovereign, and where dependence is severe, formal consent may be substantively unequal - so the honest verdict is reconfiguration with unequal effects rather than either continuity or disappearance.

Objection -> reply -> residual limit

- **Objection CAUTION:.** If decisions are globally constrained, states are no longer sovereign.
- **Reply ANALYSIS:.** **Constraint is not extinction.** Sovereignty has always existed amidst pressures; the question is the degree and form of autonomy, not a mythical absence of all constraint.
- **Residual limit ANALYSIS:.** The reply is weakest exactly where conditionality is strongest: a state whose fiscal or security position leaves no realistic alternative retains legal independence and little effective autonomy. Concede that case explicitly; it is where the marks for judgement sit in the 2020 stem.

Examiner traps on this session

1. Writing that sovereignty simply "disappears" under globalisation. The correct phrase is **reconfigured, constrained, pooled or negotiated**. This is trap 6 of the owner's standing list.
2. Collapsing the four mechanisms into one. Treaty, delegation, pooling and dependence have different consequences, and the differentiation **is** the answer.
3. Importing current institutional or diplomatic detail. International Relations owns it; here the mechanisms are used analytically and generically.

Mini recap

Modified, not abolished. Four mechanisms, four different consequences, four thinkers re-deployed. Legal form persists; effective autonomy varies; and the honest verdict names both.

SESSION 20 - SYNTHESIS: DEBATES, CRITICISMS, TRAPS AND THE ANSWER SPINE

The picture first

THE MASTER GRID -- WHERE THE FOUR PRINTED THINKERS STAND

ISSUE	BODIN	AUSTIN	LASKI	KAUTILYA
WHERE IS SOVEREIGNTY?	commonwealth's supreme law-giving authority	determinate human superior	no single unlimited locus; socially plural	the ruler (svami) as head within a seven-limbed state
IS IT ABSOLUTE?	yes vs positive law, with higher-law limits	yes, strict legal sense; formally unlimited	NO -- false AND dangerous	strong but conditioned by dharma, welfare, prudence
INDIVISIBLE?	yes	yes	no -- shared and distributed	organically coordinated, not simply indivisible
ASSOCIATIONS	secondary to sovereign unity	subordinate to sovereign command	real autonomy and loyalty	institutions and allies are LIMBS
MAIN ANXIETY	civil war and disorder	juristic clarity	liberty against absolutism	survival, order, prosperity, strategy
MAIN WEAKNESS	weak protection against concentration	unrealistic for democracy, federalism, custom, int. law	may under-state the coordinating role of the state	monarchical framework; elastic realism

THE FOUR-WAY STRUCTURE THAT LOOKS LIKE PHILOSOPHY, NOT SUMMARY

BODIN and AUSTIN ask WHO is sovereign.

KELSEN and HART deny that this is the right question and ask WHAT MAKES A NORM VALID.

LASKI denies that any single answer is possible.

KAUTILYA asks what the holder of authority is FOR.

-> personal sovereign -> normative order -> official practice -> plural allegiance, with Kautilya's DUTY-BOUND variant

CONVERGENCE WORTH STATING, DIVERGENCE THAT MUST NOT BE LOST

Kelsen, Hart and Laski EACH dissolve the PERSONAL absolute sovereign -- but they disagree ENTIRELY about what replaces it: a NORM-HIERARCHY, a SOCIAL PRACTICE, or a PLURALITY OF ASSOCIATIONS. Do not merge them.

Caption: the six-row master grid, the four-way structure and the convergence-with-divergence warning. This page is the spine of every 15- and 20-mark answer in the clause.

In plain words

By this point the whole dispute can be laid on one grid. Read down a column and you have a thinker; read across a row and you have a debate. That is what an examiner means by "compare": fixed axes, both thinkers run down each, then a judgement.

There is also a deeper structure worth stating explicitly, because it makes an answer look like philosophy rather than revision. Bodin and Austin are answering "who?". Kelsen and Hart refuse the question and ask "what makes a norm valid?". Laski says no single answer exists. Kautilya asks what authority is **for**. Four different questions behind four apparent answers.

The doctrine, exactly

FACT: **The monist-pluralist master grid** (reproduce the axes, not the prose):

Issue	Bodin	Austin	Laski	Kautilya
Where is sovereignty located?	In the commonwealth's supreme law-giving authority FACT:	In a determinate human superior FACT:	No single unlimited locus; authority is socially plural FACT:	In the ruler as head within a seven-limbed state FACT:
Is it absolute?	Yes in relation to positive law, with higher-law limits FACT:	Yes in the strict legal sense; formally unlimited FACT:	No; absolute sovereignty is false and dangerous FACT:	Strong but conditioned by dharma, welfare, prudence FACT:
Is it indivisible?	Yes FACT:	Yes FACT:	No; power is shared and distributed FACT:	Organically coordinated, not simply indivisible in Austin's sense ANALYSIS:
Relation to associations	Secondary to sovereign unity ANALYSIS:	Subordinate to sovereign command FACT:	Associations possess real autonomy and loyalty FACT:	Institutions and allies are constitutive limbs of state capacity FACT:
Main anxiety	Civil war and disorder FACT:	Juristic clarity FACT:	Liberty against absolutism FACT:	Survival, order, prosperity, interstate strategy FACT:
Main weakness	Weak protections against concentration of power ANALYSIS:	Unrealistic for democracy, federalism, custom and international law ANALYSIS:	May understate the coordinating role of the state ANALYSIS:	Monarchical framework and elastic realism ANALYSIS:

FACT: **Austin against Kautilya - the 2019 comparison, on fixed axes:**

Dimension	Austin	Kautilya
Nature of theory FACT:	Analytical jurisprudence	Statecraft and political realism
Locus of sovereignty FACT:	Determinate human superior	<i>Svāmī</i> as head within the <i>saptāṅga</i> organism
Core relation FACT:	Command -> obedience -> sanction	Rule -> administration -> welfare -> coercion -> strategy
Limit on the sovereign FACT:	No legal superior; formally unlimited	Bound by dharma, prudence, and <i>prajā-sukha</i> / <i>yogakṣema</i>
View of law and order FACT:	Law as command backed by sanction	Order through <i>daṇḍanīti</i> , counsel, treasury and administration
External dimension FACT:	Underdeveloped except for the denial of true international law	Highly developed through <i>maṇḍala</i> and <i>śāḍgunya</i>
State form presupposed FACT:	Centralised legal order	Monarchical but institutionally articulated polity
Best conclusion ANALYSIS:	A narrow, legally determinate sovereign	An organic, welfare-oriented and strategic sovereign

FACT: **The concluding line for 2019-type answers.** Austin's sovereign is legally supreme because no superior commands it; Kautilya's ruler is politically central but normatively and functionally bound by dharma, welfare, ministers, treasury, force and allies.

FACT: **Bodin against Austin, in four rows:** historical role - founder of modern sovereignty against most systematic legal analyst; definition - absolute and perpetual power of the commonwealth against determinate human superior habitually obeyed; limits - divine and natural law and the *leges imperii* against no legal superior with moral limits outside the definition; orientation - state-building amid civil war against jurisprudential analysis of positive law.

FACT: **Bodin and Austin against Laski.** Where the monists insist on one final superior, Laski insists that real society is composed of many autonomous centres of authority; where they privilege order and finality, he privileges liberty and associational plurality. FACT: **Monist reply:** without a final sovereign, conflict between associations becomes insoluble. ANALYSIS: **Pluralist counter-reply:** treating one authority as legally final does not eliminate conflict; it often merely suppresses legitimate diversity.

FACT: The criticisms of absolute sovereignty, with their standard replies:

Criticism	Against whom primarily	Core point	Typical reply
Democracy FACT:	Austin, Bodin	Popular rule and accountability are difficult to reconcile with unlimited sovereign power	One may retain legal finality while limiting actual government ANALYSIS:
Federalism FACT:	Austin, Bodin	Power is constitutionally shared	Monists relocate finality to the constitution-making authority CAUTION:
International law FACT:	Austin	The absence of a world sovereign does not mean the absence of normativity	Austin preserves conceptual purity but narrows law excessively ANALYSIS:
Customary law FACT:	Austin	Law can arise from social practice	Austin's tacit-adoption reply is often judged artificial ANALYSIS:
Moral limits FACT:	Austin	Pure legal supremacy ignores justice	Austin separates analysis from morality; critics say the separation is incomplete ANALYSIS:

ANALYSIS: **The reply on behalf of sovereignty.** Even severe critics of absolutism rarely deny that political order needs some principle of final decision. The real dispute is not whether order needs authority, but **whether that authority must be conceived as undivided, legally unlimited and morally self-justifying**. Bodin and Austin answer yes or nearly yes; Laski answers no; Kautilya offers a duty-bound and strategic version. ANALYSIS: The modern debate is therefore better framed as **how sovereignty is structured and limited**, not simply whether it exists.

ANALYSIS: **The four-way structure.** Bodin and Austin ask *who* is sovereign. Kelsen and Hart deny that this is the right question and ask *what makes a norm valid*. Laski denies that any single answer is possible. Kautilya asks what the holder of authority is **for**. An answer that runs this structure - personal sovereign -> normative order -> official practice -> plural allegiance, with Kautilya's duty-bound variant - is doing philosophy rather than summarising a textbook. ANALYSIS: **Convergence with divergence.** Kelsen, Hart and Laski each dissolve the *personal* absolute sovereign, but they disagree entirely about what replaces it - a norm-hierarchy, a social practice, or a plurality of associations. Do not merge them into a single "modern critique of Austin".

Named evidence you can cite

- **The six-row master grid FACT:** - the fastest route to a comparison answer with fixed axes.
- **The eight-row Austin/Kautilya table FACT:** - built for the 2019 stem.
- **The five-row criticism table with replies FACT:** - built for *critically examine* stems.
- **The four-way question structure ANALYSIS:** - the move that lifts a 20-marker above summary.

ANSWER-GRABBING LINE - WRITE OR ADAPT IN THE EXAM

The concept of a **supreme legal authority survives every criticism examined; the image of a determinate personal sovereign does not** - which is why the modern question is how sovereignty is structured and limited, not whether it exists.

MUST-WRITE KEYWORDS

fixed comparison axes · who / what makes valid / no single answer / what it is for · norm-hierarchy, official practice, plural associations · do not merge the three · structured and limited, not existent or absent · graded verdict · residual problem

HOW TO WRITE THE PARAGRAPH - claim -> named evidence -> analysis -> qualification

Claim. The four printed thinkers are not four answers to one question but four different questions about final authority, and organising an answer that way converts comparison into philosophy. **Named evidence.** Bodin locates sovereignty in the commonwealth's supreme law-giving power and Austin in a determinate human superior; Kelsen, in *General Theory of Law and State* (1945), and Hart, in *The Concept of Law* (1961), both refuse the personal question and ask instead what confers validity; Laski holds that authority is socially plural and cannot be reduced to a single unlimited will; and Kautilya's *svāmī* is head of a seven-limbed state oriented to security and welfare. **Analysis.** Read as answers to one question, the four positions look like a disagreement about degree; read as answers to *who*, *what makes valid*, *whether any single answer exists* and *what authority is for*, they become a structured debate in which each position exposes a blind spot in the others. **Qualification.** The structure must not be flattened into agreement: Kelsen, Hart and Laski all dissolve the personal sovereign but replace him with a norm-hierarchy, an official practice and a plurality of associations respectively, and treating those as one critique loses precisely the discrimination the paper rewards.

Objection -> reply -> residual limit

- **Objection FACT:.** Without a final sovereign, conflict between associations becomes insoluble.
- **Reply ANALYSIS:.** Treating one authority as legally final does not eliminate conflict; it often merely suppresses legitimate diversity - and modern constitutional orders require a **final procedure**, not an unanswerable will.
- **Residual limit ANALYSIS:.** The pluralist reply still owes an account of who decides in a genuine emergency, and the monist reply still owes an account of why legal finality should command moral obedience. Neither debt is discharged; a graded verdict names both and then decides.

Examiner traps on this session

1. Comparing thinkers by biography or chronology instead of by fixed axes. The corpus-driven audit is explicit: fix axes - source, location, divisibility, legal and moral limits, organs of state and modern relevance.
2. Treating all four printed thinkers as saying the same thing about supremacy. The paper repeatedly asks for exact differences.
3. Turning examples into fabricated historical detail. Keep examples generic unless the question itself supplies the frame.

Mini recap

One grid, four questions, three dissolutions that must not be merged. The concept of supreme legal authority survives; the personal sovereign does not; and the verdict must be graded, not declared.

BASIC MCQS / REMEDIATION

32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills

Answer placement: each correct option was fixed **independently**, so the key sequence is unpatterned rather than rotated and no cycle such as ABCD - or its reverse - can be used to guess. Options are matched for length, specificity, grammar and visible formatting so that the answer cannot be spotted by shape alone. Every question carries four question-specific option explanations and one unique examiner trap.

Coverage: the twenty-four core questions run across the whole printed clause - *Sovereignty* : Austin, Bodin, Laski, Kautilya - together with the concept of final authority and its distinction from force, the internal/external pair and the five classical attributes with their qualifications, legal against political sovereignty, the de jure/de facto and titular/actual pairs and the office-against-obedience divergence they expose between Bodin and Austin, popular and national sovereignty with the Rousseau bridge, Bodin's absolute-and-perpetual definition, his three limits and his indivisibility thesis, Austin's three-part definition and the command-sanction formula, the reason the five Austinian attributes are forced rather than chosen, the federalism, international-law and customary-law criticisms and the relocation pattern they share, the two-level democracy verdict, the jurisdiction control on parliamentary sovereignty against constitutional supremacy, Kelsen's hierarchy of norms and presupposed basic norm together with the efficacy problem, Hart's three defects and three secondary rules and the being-obliged/having-an-obligation distinction, Laski's pluralism and his threefold rejection, Kautilya's seven-limbed state, calibrated coercion and the circle of states with the 2025

provenance control, and the four mechanisms by which globalisation reconfigures rather than abolishes sovereignty. The eight remedial drills attack the errors that cost marks every year on this clause: swapping the Kelsen 1945 and Hart 1961 dates, merging three incompatible dissolutions of the personal sovereign into one critique, calling India a system of parliamentary sovereignty or calling its judiciary sovereign, writing that sovereignty disappears under globalisation, conflating Bodin with Hobbes, calling Laski an anarchist or reducing pluralism to decentralisation, reducing Kautilya to foreign policy or to Austinian absolutism, and importing material owned by Individual and State, Forms of Government or Social and Political Ideals.

MCQ 1. What the concept of sovereignty actually asserts

A bandit can compel obedience and a government can issue commands. On the account developed in this package, what distinguishes the claim of sovereignty from both?

- A. It asserts that the holder of power possesses greater coercive capacity than any rival inside the territory.
- B. It asserts that the holder of power has acquired office through a procedure that the community regards as lawful.
- C. It asserts a recognised or effective power of **final** decision, not merely an ability to compel compliance.
- D. It asserts that the holder of power is morally entitled to the obedience of every person within the territory.

Answer: C.

Option explanations:

- **A:** Incorrect: superior force is neither necessary nor sufficient, since the canonical statement expressly separates sovereignty from mere force and locates it in recognised or effective finality.
- **B:** Incorrect: lawful acquisition is the *de jure* question of Session 4; a *de facto* sovereign obeyed without lawful title still raises the question of finality.
- **C:** Correct: the owner defines sovereignty as the supreme, final and authoritative power within a political community, and distinguishes it from the bandit's coercion precisely by finality.
- **D:** Incorrect: moral entitlement is what Laski denies to any human institution; the concept can be stated without it, and Austin deliberately excludes it.

Examiner trap 1: Opening a sovereignty answer with a definition of the *state* rather than of *sovereignty* wastes the first paragraph, because the state is the bearer of the claim while sovereignty is the claim itself.

MCQ 2. The classical attributes, stated so that they survive criticism

Which statement gives the five classical attributes of sovereignty in the qualified form the paper rewards?

- A. Absolute of any human law-maker within, permanent in the state rather than the officer, universal subject to recognised immunity, inalienable though delegable, indivisible in legal source.
- B. Absolute in every moral and practical respect, permanent for all future time, universal without exception, inalienable and undelegable, indivisible in both source and competence.
- C. Absolute against foreign powers only, permanent while the ruling party lasts, universal over citizens alone, inalienable except by treaty, indivisible except in federations.
- D. Absolute over ordinary citizens, permanent while obedience continues, universal within the capital, inalienable unless a court permits, indivisible unless the constitution says otherwise.

Answer: A.

Option explanations:

- **A:** Correct: each of the five is stated with the limiting clause the owner attaches - legal non-subordination, continuity of the state, recognised immunities, delegation without alienation, and one final legal source.
- **B:** Incorrect: this is the unqualified version that every first-year counter-example refutes; the owner explicitly warns that legal non-subordination does not prove moral infallibility or practical omnipotence.
- **C:** Incorrect: absoluteness is an *internal* claim about the absence of a superior human law-maker, and permanence attaches to the state rather than to any government or party.

- **D:** Incorrect: universality extends across persons and associations within the territory rather than a capital, and inalienability is not a matter of judicial permission.

Examiner trap 2: Reciting the five attributes without their qualifications converts a defensible doctrine into a refutable slogan, and omitting permanence and universality - the two most frequently dropped - leaves the classical set incomplete.

MCQ 3. Legal against political sovereignty

Why does the owner insist that most objections to monistic sovereignty must be labelled before they are deployed?

- A. Because objections drawn from history are weaker than objections drawn from logic, and the examiner grades the two differently.
- B. Because Austin himself accepted political sovereignty and only later writers separated it from the legal question he was answering.
- C. Because political sovereignty is a normative claim while legal sovereignty is descriptive, so the two cannot be compared at all.
- D. Because most such objections answer the question of real social power, while the thesis attacked is a claim about competence to make law.

Answer: D.

Option explanations:

- **A:** Incorrect: the distinction is not between historical and logical objections; both kinds can be aimed at either the legal or the political question.
- **B:** Incorrect: the owner places Austin firmly on the legal side and treats political sovereignty as the angle from which Laski attacks, not as something Austin conceded.
- **C:** Incorrect: legal sovereignty identifies the juristic source of valid law and political sovereignty the real locus of social power; both are descriptive, and both are comparable.
- **D:** Correct: legal sovereignty names competence to make law and political sovereignty names the power that shapes the law-maker, so an unlabelled objection commits a category error.

Examiner trap 3: Treating "political sovereignty" as a synonym for popular sovereignty confuses a sociological description of where power lies with a normative claim about where authority originates.

MCQ 4. Lawful title, actual obedience, and the divergence it exposes

Which statement correctly identifies where Bodin and Austin anchor the durability of sovereign authority?

- A. Both anchor it in habitual obedience, since neither can explain continuity without appealing to the settled compliance of subjects.
- B. Bodin anchors it in the perpetual office rather than the magistrate, whereas Austin's habitual-obedience criterion gives his theory a de facto edge.
- C. Bodin anchors it in divine sanction of the monarch, whereas Austin anchors it in the constitutional text that confers legislative competence.
- D. Both anchor it in the office, since Austin's determinate superior is defined as an institution rather than as any identifiable person or body.

Answer: B.

Option explanations:

- **A:** Incorrect: Bodin's second defining adjective is *perpetual*, which the owner glosses as authority attaching to office rather than to a temporary magistrate, so obedience is not his anchor.
- **B:** Correct: the owner states exactly this contrast - Austin's emphasis on habitual obedience has a de facto edge, while Bodin is concerned with the permanent office-character of authority.
- **C:** Incorrect: divine law is a *limit* on Bodin's sovereign rather than the ground of durability, and Austin's sovereign is not defined by a constitutional text.

- **D:** Incorrect: Austin's sovereign is expressly a determinate person or body, which is why the succession problem bites him and not Bodin.

Examiner trap 4: Writing that Bodin and Austin agree simply because both are monists throws away a cheap, high-value differentiation that comparison stems reward directly.

MCQ 5. Popular sovereignty, national sovereignty and the general will

Which statement handles the two forms and the Rousseau bridge with the precision the owner requires?

- A. Popular sovereignty means majority rule, national sovereignty means independence, and Rousseau's general will is the numerical sum of individual preferences.
- B. Popular sovereignty and national sovereignty are interchangeable expressions, and Rousseau uses the general will to justify whatever the assembled citizens decide.
- C. Popular sovereignty means the government represents the nation, national sovereignty means the nation obeys the government, and Rousseau merges the two.
- D. Popular sovereignty locates the source of public authority in the people, national sovereignty concerns collective self-determination, and the general will names the common good.

Answer: D.

Option explanations:

- **A:** Incorrect: the owner explicitly defines the general will as a claim about the common good rather than the numerical sum of private preferences, and popular sovereignty is not identical with majority rule.
- **B:** Incorrect: the two forms answer different questions - from whom authority arises, and which people may govern itself - and the owner lists their conflation as a standing trap.
- **C:** Incorrect: this inverts the doctrine, since popular sovereignty makes government the agent of the people rather than their representative superior.
- **D:** Correct: this reproduces the owner's controlling distinction and its gloss on the general will, and it preserves the warning that no majority decision is thereby morally sovereign.

Examiner trap 5: Collapsing the general will into "whatever the majority votes for" destroys the argument against Austin, because the force of the popular-sovereignty objection lies in the people's indeterminacy, not in their counting power.

MCQ 6. Bodin's definition and its pre-eminent mark

What, on Bodin's account, is the pre-eminent mark by which sovereignty is identified?

- A. The power to make and unmake law for all subjects in general without needing the consent of any superior.
- B. The power to command the armed forces of the commonwealth and to declare war on any neighbouring realm.
- C. The power to appoint magistrates and to remove them at pleasure without stating a reason to the estates.
- D. The power to interpret divine and natural law authoritatively for every subject of the commonwealth.

Answer: A.

Option explanations:

- **A:** Correct: the owner identifies the sovereign's pre-eminent mark as the power to make and unmake law for all subjects in general without needing consent from a superior.
- **B:** Incorrect: military command is an ordinary attribute of rule and does not distinguish the sovereign from a powerful magistrate or general.
- **C:** Incorrect: appointing and removing magistrates is precisely the sort of delegated function Bodin allows without conceding any division of sovereign title.
- **D:** Incorrect: divine and natural law constrain Bodin's sovereign rather than falling within his interpretive gift; making him their authoritative interpreter would erase the limits.

Examiner trap 6: Explaining "perpetual" as "eternal" misses its actual work, which is to detach authority from the office-holder and fix it in the office so that a personal ascendancy becomes a state.

MCQ 7. What limits Bodin's sovereign

Which statement gives Bodin's position on limits without either exaggerating or erasing them?

- A. The sovereign is bound by ordinary positive law and by the estates, but not by divine law, which belongs to the church alone.
- B. The sovereign is bound by nothing whatever, since the power to make law entails the power to unmake every constraint upon it.
- C. The sovereign is freed from ordinary positive law yet bound by divine law, natural law and the fundamental laws of the realm.
- D. The sovereign is bound only by the fundamental laws of the realm, divine and natural law having no place in his account.

Answer: C.

Option explanations:

- **A:** Incorrect: this reverses the structure, since being *legibus solutus* means freedom from ordinary positive law while divine law remains a genuine normative limit.
- **B:** Incorrect: this is the Hobbesian caricature the owner warns against; Bodin's absolutism is juristic rather than caprice, and he retains higher-law constraints.
- **C:** Correct: the owner lists exactly three limits - divine law, natural law and the *leges imperii* - and glosses *legibus solutus* as freedom from ordinary positive law only.
- **D:** Incorrect: the fundamental laws are one of three limits, and dropping the other two removes the moral content that distinguishes Bodin from pure absolutism.

Examiner trap 7: Making Bodin lawless removes the very feature that makes him answerable to the 2022 compatibility question, since the interesting tension is between an authority that is supreme in positive law and one that is nonetheless normatively bound.

MCQ 8. Bodin's indivisibility thesis

What exactly does Bodin's indivisibility claim forbid, and what does it permit?

- A. It forbids the delegation of any executive function and permits only advisory bodies with no power to issue binding instructions.
- B. It forbids the division of sovereign title and permits the distribution of governmental functions among estates, courts and magistrates.
- C. It forbids federal arrangements of every kind and permits unitary states to establish provincial councils with limited competence.
- D. It forbids consultation with subordinate authorities and permits the sovereign to legislate only through a single unified assembly.

Answer: B.

Option explanations:

- **A:** Incorrect: Bodin allows magistrates to issue commands; what he denies them is the final legislative power, so the prohibition is not on delegated function.
- **B:** Correct: the owner states that division of governmental functions is possible while division of sovereign title is not, citing advisory estates and subordinate courts as permitted.
- **C:** Incorrect: federal systems are a later critical counter-example to the thesis rather than the content of the thesis itself.
- **D:** Incorrect: consultation is compatible with indivisibility, and Bodin's argument concerns the location of finality rather than the procedure of legislating.

Examiner trap 8: Answering the constitutional-division objection by simply repeating that sovereignty is indivisible loses the mark; the reply must distinguish administrative distribution from the sharing of final law-making power, and then concede that critics regard the distinction as strained.

MCQ 9. Austin's definition of the sovereign

Which formulation states Austin's definition with the precision the paper rewards?

- A. A determinate human superior, receiving habitual obedience from the bulk of a society, and habitually obeying no other like superior.
- B. The state considered in the abstract, exercising the totality of public powers, and answerable to the electorate at regular intervals.
- C. Whichever institution possesses the constitutional competence to amend the fundamental law of the political community it governs.
- D. The person or body that commands the greatest coercive force and can therefore secure compliance from the population it rules.

Answer: A.

Option explanations:

- **A:** Correct: this reproduces all three linked elements - determinacy, habitual obedience by the bulk, and obedience to no one - which together close the chain of legal validity.
- **B:** Incorrect: the owner's first standing trap is exactly this, since Austin's sovereign is a determinate person or body rather than the state in the abstract.
- **C:** Incorrect: locating sovereignty in an amending competence is the *relocation* Austinians attempt under pressure from federalism, not Austin's own definition.
- **D:** Incorrect: this reduces the definition to force and abandons the distinction from mere coercion that the concept requires from the outset.

Examiner trap 9: Dropping the third element - that the sovereign habitually obeys no one - makes the international-law criticism unanswerable, because the criticism turns precisely on the absence of any determinate global superior.

MCQ 10. Command, sanction and the law of facilities

Which criticism of the command theory does the owner treat as the most damaging to Austin's definition itself?

- A. That penal law is only a small part of any developed legal system, so the paradigm case is statistically unrepresentative.
- B. That international law binds states through treaty and custom despite the absence of any determinate global superior.
- C. That federal constitutions distribute competences so that no single level of government is superior in all matters.
- D. That much of law confers facilities rather than issuing orders, so that a defective will is a nullity and not a sanction.

Answer: D.

Option explanations:

- **A:** Incorrect: relative frequency is not the objection; the difficulty is conceptual, since power-conferring rules cannot be redescribed as commands at all.
- **B:** Incorrect: this is a strong external criticism of the theory's scope, but Austin can answer it by denying that international law is law in the strict sense.
- **C:** Incorrect: federalism attacks indivisibility empirically, and Austin replies by relocating finality to the constitution-making authority.
- **D:** Correct: the owner treats power-conferring rules as an internal defect Austin cannot solve, since nullity is the absence of legal effect rather than an evil attached to disobedience.

Examiner trap 10: Describing the nullity of a defective legal act as a "sanction" concedes Hart's point while appearing to resist it, because a sanction is an evil imposed for disobedience whereas nullity is simply the failure of an attempted legal act.

MCQ 11. Why the five Austinian attributes are forced

On the reading developed here, why does Austin's definition require determinacy, absoluteness, indivisibility, illimitability and inalienability?

- A. Because each attribute was independently observed in the centralised European legal orders that Austin had studied in detail.
- B. Because each closes a possible gap through which the chain of legal validity would fail to terminate in a final source.
- C. Because each was inherited directly from Bodin, whose definition Austin restated in more precise analytical language.
- D. Because each is required by the moral claim that a legal system must make on the obedience of the subjects it governs.

Answer: B.

Option explanations:

- **A:** Incorrect: the owner concedes that Austinian indivisibility is stricter than empirical political reality and is a logical feature of the scheme, not an observation.
- **B:** Correct: indeterminacy would leave the origin unlocatable, divisibility would create rival origins, limitation would push validity to a further source, and alienability would make finality transferable.
- **C:** Incorrect: Bodin supplies absolute and perpetual and retains higher-law limits, so Austin's illimitable legal sovereign is a radicalisation rather than a restatement.
- **D:** Incorrect: Austin's project separates what law is from what law ought to be, so no moral claim enters the definition of the attributes.

Examiner trap 11: Listing the five attributes without stating why the list is forced scores as vocabulary rather than argument, and it leaves the candidate unable to explain why empirical counter-examples do not by themselves refute the scheme.

MCQ 12. The pattern shared by the three structural criticisms

Federalism, international law and customary law are usually presented as three separate objections to Austin. What single pattern do they share?

- A. Each shows that Austin underestimated the practical importance of moral limits on the exercise of legal authority.
- B. Each shows that Austin's theory applies well to monarchies but poorly to any political order with an elected legislature.
- C. Each locates law where no determinate superior stands, and each Austinian reply relocates the sovereign at a cost to determinacy.
- D. Each depends on historical examples drawn from periods after Austin wrote, so none of them can fairly be pressed against him.

Answer: C.

Option explanations:

- **A:** Incorrect: moral limits form a separate criticism in the owner's table, and the three structural objections turn on the absence of a determinate superior rather than on morality.
- **B:** Incorrect: federalism and custom arise in monarchies too, and the democracy objection is treated separately in the owner's scheme.
- **C:** Correct: the constitution-making authority, the denial that international law is law and the device of tacit adoption are three relocations, each weakening determinacy.
- **D:** Incorrect: customary law and federal arrangements long predate Austin, and Maine's counter-example is drawn from a contemporaneous political order.

Examiner trap 12: Presenting Austin's denial that international law is truly law as an oversight misreads him, since it is his explicit and argued position; the criticism must attack the definition's narrowness, not his attention.

MCQ 13. Austin and democracy

Which answer structure does the owner require for the compatibility question?

- A. A single negative verdict, since democracy disperses authority and therefore cannot contain a legally supreme law-making body at all.
- B. A single affirmative verdict, since every democracy contains a legislature that can be identified as the determinate human superior.
- C. A historical verdict, since Austin wrote before mass democracy and cannot be assessed against institutions he never observed.
- D. A two-level verdict: compatible in the narrow legal sense of naming a law-maker, incompatible in the constitutional-political sense.

Answer: D.

Option explanations:

- **A:** Incorrect: the owner concedes that in a narrow legal sense one may identify a law-making body, so a flat negative overstates the case.
- **B:** Incorrect: this ignores that democracy makes final authority derivative, revisable and answerable, which is what Austin's illimitability forbids.
- **C:** Incorrect: the papers ask the question directly and the owner answers it doctrinally, so a refusal to judge does not meet the demand.
- **D:** Correct: the owner's balanced structure is yes in the narrow legal sense and no in the deeper constitutional-political sense, with the reason for the split stated.

Examiner trap 13: Answering the 2021 stem with a flat yes or no forfeits the structural mark, because the demand is a graded judgement in which the level at which each verdict holds must be named.

MCQ 14. Parliamentary sovereignty and constitutional supremacy

Which statement handles the jurisdiction control correctly?

- A. In the United Kingdom Parliament is the supreme legal authority, while in India Parliament exercises competences conferred by a supreme written Constitution.
- B. In the United Kingdom the courts may strike down primary legislation, while in India Parliament may amend any provision of the Constitution at will.
- C. Both the United Kingdom and India practise parliamentary sovereignty, because both have parliamentary government and a legislature that makes law.
- D. In India the judiciary is sovereign because judicial review permits it to invalidate legislation enacted by the elected legislature.

Answer: A.

Option explanations:

- **A:** Correct: the owner's table states precisely this contrast, with courts generally unable to overrule UK primary legislation and Indian competences derived from the Constitution.
- **B:** Incorrect: this inverts both halves, since UK courts generally cannot overrule primary legislation and the Indian amending power is limited by the basic-structure doctrine.
- **C:** Incorrect: parliamentary sovereignty is jurisdiction-specific and is not a synonym for every parliamentary form of government.
- **D:** Incorrect: the owner expressly cautions that India's judiciary is not sovereign merely because it reviews legislation.

Examiner trap 14: Using *Kesavananda Bharati* (1973) as proof that a philosophical theory is correct misclassifies it; it is a dated judicial decision illustrating a legally limited amending competence, not evidence for or against Austin, Kelsen or Hart.

MCQ 15. Kelsen's hierarchy of norms

Which statement gives Kelsen's central argument and its effect on sovereignty?

- A. Validity derives from the sovereign's command, and the basic norm records the moral principles that a legal order must satisfy.
- B. Validity derives from a higher norm, terminating in a presupposed basic norm, so the sovereign becomes the order's highest competence.
- C. Validity derives from the convergent practice of officials, and the basic norm is the social fact of their acceptance of that practice.
- D. Validity derives from the effectiveness of the legal order, and the basic norm is an empirical generalisation about observed obedience.

Answer: B.

Option explanations:

- **A:** Incorrect: Kelsen's founding premise is that "is" does not yield "ought", so no fact of command generates validity, and the basic norm is expressly morally inert.
- **B:** Correct: the owner sets out the pyramid from administrative order to statute to constitution to presupposed *Grundnorm*, with sovereignty becoming an attribute of the normative order.
- **C:** Incorrect: convergent official practice is Hart's rule of recognition, which Hart offers precisely against Kelsen's presupposed norm.
- **D:** Incorrect: efficacy is a *condition* of validity in Kelsen's treatment of revolution, never its source, and the basic norm is presupposed rather than generalised.

Examiner trap 15: Filing Kelsen alongside Laski as an external critic destroys the two-stage structure that twenty-mark stems reward, since Kelsen repairs Austin from inside legal positivism while Laski attacks from outside it.

MCQ 16. Kelsen, revolution and the residual problem

A successful revolution replaces a constitution without any authorising norm. What is Kelsen's reply, and what problem remains?

- A. He denies that revolutions occur within legal science, and the residual problem is that his theory cannot describe political change at all.
- B. He treats the new constitution as valid because the revolutionaries obtain habitual obedience, and the residual problem is circularity with Austin.
- C. He argues that the old basic norm survives all changes of regime, and the residual problem is that valid law would then never change.
- D. He holds that jurists presuppose a new basic norm once the order is by and large effective, and efficacy thereby re-enters the theory.

Answer: D.

Option explanations:

- **A:** Incorrect: Kelsen offers a positive account of revolutionary change rather than excluding it, and the owner records that account explicitly.
- **B:** Incorrect: habitual obedience is Austin's criterion; Kelsen's condition is the by-and-large effectiveness of the order, and he does not adopt Austin's formulation.
- **C:** Incorrect: the survival of the old basic norm would make the new order invalid, which is the opposite of Kelsen's position.
- **D:** Correct: the owner states that a new basic norm is presupposed when the order becomes by and large effective, and concedes that this readmits the fact of power.

Examiner trap 16: Defending the basic norm as though it were a demonstrated truth misstates Kelsen's own claim, which is that it is a transcendental-logical condition of treating anything as valid law - a postulate, not a fact.

MCQ 17. Hart's three defects and three secondary rules

Which pairing of defect and cure is correct on Hart's account?

- A. Uncertainty is cured by rules of change; the static character is cured by rules of adjudication; inefficiency is cured by the rule of recognition.
- B. Uncertainty is cured by rules of adjudication; the static character is cured by the rule of recognition; inefficiency is cured by rules of change.
- C. Uncertainty is cured by the rule of recognition; the static character is cured by rules of change; inefficiency is cured by rules of adjudication.
- D. Uncertainty is cured by primary rules; the static character is cured by sanctions; inefficiency is cured by the sovereign's habitual command.

Answer: C.

Option explanations:

- **A:** Incorrect: rules of change authorise creation, amendment and repeal, which cures stasis rather than uncertainty about which rules count as law.
- **B:** Incorrect: rules of adjudication confer authority to determine breach and remedy, which cures inefficiency rather than uncertainty.
- **C:** Correct: the owner's table pairs recognition with uncertainty, change with the static character of custom, and adjudication with the inefficiency of diffuse enforcement.
- **D:** Incorrect: primary rules are the regime whose defects are being cured, and sanctions and command belong to the Austinian model Hart rejects.

Examiner trap 17: Treating Hart's rule theory as a restatement of Austin misses the rejection at its core, since Hart denies that nullity is a sanction, that habit explains succession, and that being obliged is having an obligation.

MCQ 18. Being obliged and having an obligation

Why does Hart regard this distinction as fatal to Austin's account of legal obligation?

- A. Because habitual obedience records only external regularity and so cannot separate a legal duty from submission to a gunman's threat.
- B. Because it shows that sanctions are morally objectionable, so any theory built upon them cannot justify the state's coercive power.
- C. Because it proves that most citizens obey the law from fear, so habitual obedience is an inaccurate description of their conduct.
- D. Because it establishes that only judges, and not ordinary subjects, can be said to have obligations under a developed legal system.

Answer: A.

Option explanations:

- **A:** Correct: the internal point of view treats a rule as a reason for conduct and a ground for criticising deviation, which external regularity cannot capture.
- **B:** Incorrect: Hart's objection is analytical rather than moral, and he insists that legal validity be explained without moral evaluation.
- **C:** Incorrect: the distinction concerns what obligation *is*, not the empirical motives from which people in fact comply.
- **D:** Incorrect: the internal point of view is available to participants generally, and the rule of recognition is described through officials without confining obligation to them.

Examiner trap 18: Developing Dworkin's principles-and-hard-cases objection inside a sovereignty answer breaches ownership; name it as the next objection to Hart and route it, because the doctrine belongs to Individual and State.

MCQ 19. Laski's central thesis

Which statement gives Laski's position without overstating or understating it?

- A. The state should be abolished because every association is equally competent to govern the affairs of its own members.
- B. The state should be preserved unchanged because plural associations derive whatever authority they possess from its permission.
- C. The state is one association among many, uniquely important yet not the sole and morally unlimited source of all authority.
- D. The state is one association among many, exactly equal in function and authority to churches, unions and professional bodies.

Answer: C.

Option explanations:

- **A:** Incorrect: the owner records that Laski is a pluralist and not an anarchist, and that he does not deny the need for the state.
- **B:** Incorrect: this is the monist position Laski attacks, since he refuses to treat associations as permissions granted by sovereignty.
- **C:** Correct: this reproduces the owner's formulation, including the concession that the state retains coordinating and coercive capacities.
- **D:** Incorrect: the owner expressly warns that "one association among many" does not mean all associations are equal in function.

Examiner trap 19: Quoting the early Laski's attack on sovereignty as a legal fiction as though it were his settled view ignores the phase caution: his mature position conceded sovereignty's importance while denying omnipotence.

MCQ 20. Why Laski rejects absolute sovereignty

His rejection rests on three grounds. What is the structural feature that makes the argument strong?

- A. The three grounds are three restatements of a single moral premise, which gives the argument unusual rhetorical force.
- B. The three grounds are of three different kinds - moral, political and empirical - so answering one leaves the others standing.
- C. The three grounds are arranged in order of increasing strength, so the final ground alone is sufficient to defeat monism.
- D. The three grounds are drawn from three different thinkers, so the argument carries the authority of an entire school.

Answer: B.

Option explanations:

- **A:** Incorrect: philosophical falsity, political danger and sociological unrealism are distinct claims rather than restatements of one premise.
- **B:** Correct: their logical independence is what forces the monist to answer each separately, and conceding the empirical ground already abandons indivisibility.
- **C:** Incorrect: the owner presents the three as independent rather than as a ranked series culminating in a decisive ground.
- **D:** Incorrect: Figgis, Cole and MacIver locate the school and supply support, but the three grounds are Laski's own and are not divided among them.

Examiner trap 20: Answering the 2018 stem on whether Laski's view is a satisfactory position without naming the criterion of satisfactoriness produces an unanchored verdict; name the test, apply it, and concede the coordination debt.

MCQ 21. Kautilya's seven-limbed state

What is the philosophical point of the *saptāṅga* doctrine?

- A. Sovereignty is systemic rather than merely personal, since effective rule depends on ministers, territory, defence, treasury, force and allies.
- B. Sovereignty is divided among seven office-holders, each of whom exercises final authority within a separately defined sphere of competence.
- C. Sovereignty is administrative rather than political, since the list enumerates departments of government rather than sources of authority.
- D. Sovereignty is contractual, since the seven limbs represent the parties whose agreement establishes and sustains the authority of the ruler.

Answer: A.

Option explanations:

- **A:** Correct: the owner presents the state as an organism in which the ruler is head but cannot function without the other limbs, making sovereignty systemic.
- **B:** Incorrect: royal primacy is preserved; the limbs are constituents of state capacity rather than seven co-ordinate holders of final authority.
- **C:** Incorrect: the doctrine is an argument about what makes rule possible, and the owner contrasts it with Austin's search for the legal source of command.
- **D:** Incorrect: nothing in the *saptāṅga* scheme is contractual, and reading consent into it imports a modern framework the owner warns against.

Examiner trap 21: Translating *janapada* as territory alone drops its people, and with them the productive social base that connects the seven limbs to the welfare argument.

MCQ 22. Calibrated coercion

What does *daṇḍanīti* assert about the relation between force and sovereignty?

- A. That coercion is an emergency power, to be reserved for occasions when ordinary administration and counsel have already failed.
- B. That coercion should be maximised, since the ruler's security depends on the certainty that disobedience will be severely punished.
- C. That coercion should be minimised, since the ruler's legitimacy depends chiefly on welfare provision rather than on enforcement.
- D. That coercion is constitutive of rule and must be calibrated, since its absence brings disorder and its excess breeds resentment.

Answer: D.

Option explanations:

- **A:** Incorrect: *daṇḍa* is one of the seven constituents of the state, which makes coercive capacity a permanent structural feature rather than an exceptional one.
- **B:** Incorrect: the owner states that excessive *daṇḍa* breeds resentment and instability, so maximisation is self-defeating on Kautilya's own terms.
- **C:** Incorrect: the owner is explicit that without *daṇḍa* society falls into disorder, so minimisation is equally rejected.
- **D:** Correct: the art of sovereignty lies in calibrated punishment, and the *nīti* half of the term names the policy governing the use of force.

Examiner trap 22: Reading modern proportionality doctrine into *daṇḍanīti* manufactures a theory of rights; the restraint is prudential and stability-based, resting on the ruler's interest rather than on enforceable claims held by subjects.

MCQ 23. The circle of states and the printed maxim

The 2025 paper prints "There is no permanent friend or permanent enemy." How should the candidate handle it?

- A. As a verified quotation from the *Arthaśāstra*, cited with the translator's name and used as direct textual evidence for the answer.
- B. As the examiner's framing, answered through the verified *maṇḍala* and *śāḍgunya* doctrines that make alignment positional and policy responsive.
- C. As a maxim of modern realist international relations, which should be traced to its twentieth-century sources before Kautilya is discussed.
- D. As a mistranslation, which the candidate should correct before proceeding to expound Kautilya's actual view of interstate relations.

Answer: B.

Option explanations:

- **A:** Incorrect: the owner records that the exact wording has not been verified in the local *Arthaśāstra* synopsis or the checked source passages, so calling it a quotation invents a fact.
- **B:** Correct: the owner instructs that the line be treated as prompt wording and answered through the circle of states and the six-fold policy.
- **C:** Incorrect: the stem asks for Kautilya's view of sovereignty, so relocating the discussion into modern realism answers a different question.
- **D:** Incorrect: nothing in the source trail establishes a mistranslation, and asserting one would itself be an unsupported claim.

Examiner trap 23: Reducing Kautilya to foreign policy loses most of the owned corpus, because the seven limbs, calibrated coercion and the duty to security and welfare carry four of the five Kautilya parts.

MCQ 24. Sovereignty under globalisation

Which set of consequences correctly matches the four mechanisms the owner distinguishes?

- A. Treaty transfers sovereignty, delegation abolishes it, pooling suspends it, and material dependence restores it once the asymmetry ends.
- B. Treaty suspends sovereignty, delegation shares it, pooling transfers it, and material dependence has no consequence for it whatever.
- C. Treaty is self-limitation, delegation moves the exercise while the source stays treaty-based, pooling shares finality in a field, dependence narrows autonomy.
- D. Treaty creates a global sovereign, delegation confirms it, pooling extends it, and material dependence demonstrates that legal independence is fictional.

Answer: C.

Option explanations:

- **A:** Incorrect: treaty commitment is an exercise of a state's own recognised capacity and constrains future action without transferring sovereignty at all.
- **B:** Incorrect: material dependence has the most serious practical consequence, since legal independence may survive while effective autonomy declines.
- **C:** Correct: this reproduces the owner's four-row table exactly, preserving the difference between legal source, exercise, shared finality and practical constraint.
- **D:** Incorrect: the owner cautions that not every international organisation is supranational and that no supranational institution is automatically sovereign in Austin's sense.

Examiner trap 24: Writing that sovereignty simply disappears under globalisation abandons the analytical grid; the required phrasing is reconfigured, constrained, pooled or negotiated, and the four mechanisms must be kept apart.

MCQ 25. Remedial - the provenance pair that the paper punishes

Which attribution is correct?

- A. Kelsen, *The Concept of Law*, 1945; Hart, *General Theory of Law and State*, 1961.
- B. Kelsen, *General Theory of Law and State*, 1961; Hart, *The Concept of Law*, 1945.
- C. Kelsen, *The Concept of Law*, 1961; Hart, *General Theory of Law and State*, 1945.
- D. Kelsen, *General Theory of Law and State*, first English edition 1945; Hart, *The Concept of Law*, 1961.

Answer: D.

Option explanations:

- **A:** Incorrect: the titles are swapped, since *The Concept of Law* is Hart's work and *General Theory of Law and State* is Kelsen's.
- **B:** Incorrect: both the titles and the years are swapped, producing the exact error the owner marks as most frequently committed.
- **C:** Incorrect: the titles are swapped and the years are attached to the wrong authors, compounding two separate mistakes in one line.
- **D:** Correct: Kelsen's *General Theory of Law and State* appeared in English in 1945 and Hart's *The Concept of Law* in 1961, cited by title and year only.

Examiner trap 25: Guessing a year rather than naming the works in sequence converts an avoidable risk into a factual error; where the date is uncertain, write "Austin, then Kelsen, then Hart" and omit the years entirely.

MCQ 26. Remedial - three dissolutions that must not be merged

Kelsen, Hart and Laski each dissolve the personal absolute sovereign. What replaces him in each case?

- A. A norm-hierarchy for all three, differing only in whether the apex is presupposed, socially accepted or democratically authorised.
- B. A norm-hierarchy for Kelsen, an accepted official practice for Hart, and a plurality of associations for Laski.
- C. An accepted official practice for Kelsen, a plurality of associations for Hart, and a norm-hierarchy for Laski.
- D. A plurality of associations for all three, differing only in whether the associations are legal, social or economic in character.

Answer: B.

Option explanations:

- **A:** Incorrect: Laski offers no norm-hierarchy at all, and Hart's rule of recognition is a social fact rather than a norm standing above the system.
- **B:** Correct: the owner states this three-way divergence and warns explicitly against merging the three into one modern critique of Austin.
- **C:** Incorrect: the replacements are attached to the wrong thinkers, reversing the very distinction the owner requires candidates to preserve.
- **D:** Incorrect: only Laski replaces the sovereign with plural associations; Kelsen and Hart remain legal positivists offering intra-systemic accounts of validity.

Examiner trap 26: Presenting Kelsen and Hart as allies of Laski loses the ordering that marks philosophical control, since a twenty-mark answer should run the internal critique first and the external critique second.

MCQ 27. Remedial - the Indian illustration, handled safely

Which use of Indian material is permitted by the owner's cautions?

- A. India illustrates competence-distributed authority under constitutional supremacy, with judicial review and a limited amending power.
- B. India illustrates Austinian sovereignty, since Parliament is habitually obeyed by the bulk of society and obeys no like superior.
- C. India illustrates Kelsen's theory, since the Preamble of the Constitution functions as the basic norm of the Indian legal order.
- D. India illustrates Laski's pluralism, since federal states possess a share of sovereignty equal to that of the Union government.

Answer: A.

Option explanations:

- **A:** Correct: the owner permits exactly this description - rule-governed, competence-distributed authority that Austin's illimitable superior cannot accommodate.
- **B:** Incorrect: the owner forbids describing any Indian institution, office or period as "the sovereign" in Austin's sense.
- **C:** Incorrect: the owner forbids attributing a *Grundnorm* to any named document as though Kelsen had said so.
- **D:** Incorrect: this overstates the constitutional position and imports a philosophical conclusion that the federal arrangement does not establish.

Examiner trap 27: Calling India a system of parliamentary sovereignty confuses parliamentary *government* with the United Kingdom's jurisdictional doctrine, and adding that the judiciary is therefore sovereign compounds the error.

MCQ 28. Remedial - what globalisation does and does not do

Which formulation is both accurate and usable in a fifteen-mark answer?

- A. Sovereignty has been abolished, since no state can now act without the approval of international institutions and financial markets.
- B. Sovereignty is unaffected, since legal independence is unchanged and every constraint is voluntarily accepted by the state concerned.
- C. Sovereignty is reconfigured: legal form persists, exercise may be delegated or pooled, and material dependence can reduce effective autonomy.
- D. Sovereignty is transferred to supranational bodies, which now satisfy Austin's definition of a determinate and illimitable superior.

Answer: C.

Option explanations:

- **A:** Incorrect: states continue to claim final authority over territory, law, security and political membership, so abolition overstates the evidence.
- **B:** Incorrect: this ignores conditionality, under which legal independence survives while the range of feasible choices narrows sharply.
- **C:** Correct: this preserves the owner's distinction between legal persistence, delegated exercise, pooled finality and practical constraint.
- **D:** Incorrect: the owner cautions that even a supranational institution is not automatically sovereign in Austin's sense.

Examiner trap 28: Importing current institutional or diplomatic detail breaches ownership, since International Relations owns the institutions and disputes while this clause uses the mechanisms analytically and generically.

MCQ 29. Remedial - Bodin against Hobbes

Which statement correctly prevents the conflation of the two absolutists?

- A. Both hold sovereignty to be created by a covenant among subjects, and both deny that any higher law binds the resulting authority.
- B. Bodin's sovereign is above ordinary positive law but bound by divine law, natural law and the *leges imperii*; the conflation erases those limits.
- C. Bodin's sovereign is bound by the estates while Hobbes's is bound by natural law, so Bodin is the more constrained of the two theorists.
- D. Both are indistinguishable in substance, and the apparent difference reflects only the different centuries in which they wrote.

Answer: B.

Option explanations:

- **A:** Incorrect: Bodin's account is not covenantal, and he retains higher-law limits that the conflation removes.
- **B:** Correct: the owner's trap list states that Bodin allows higher-law restraints while Austin's legal sovereign is formally unlimited, and warns against reading Bodin as Hobbes.
- **C:** Incorrect: the estates are advisory in Bodin's scheme, and the description of Hobbes here is not supported by this owner.
- **D:** Incorrect: the owner insists that Bodin is not simply Hobbes before Hobbes, precisely because his sovereign is supreme yet not morally empty.

Examiner trap 29: Using Hobbes as anything more than a clearly marked comparative foil breaches ownership, because the social contract, the state of nature and political obligation belong to Individual and State.

MCQ 30. Remedial - what pluralism is not

Which statement identifies the two errors the owner warns against in reading Laski?

- A. Treating him as a monist, and treating his account of associations as a description rather than as a normative recommendation.
- B. Treating him as a legal positivist, and treating his critique of Austin as identical with Hart's critique of the command theory.
- C. Treating him as a defender of federalism, and treating his account of allegiance as a theory of constitutional amendment procedure.
- D. Treating him as an anarchist, and treating pluralism as mere administrative decentralisation rather than a challenge to one unlimited will.

Answer: D.

Option explanations:

- **A:** Incorrect: nobody reads Laski as a monist, and his account of associations is expressly both descriptive and normative.
- **B:** Incorrect: Laski is not a legal positivist, and the owner separates his external critique from Hart's internal one.
- **C:** Incorrect: the owner distinguishes Laski's claim about the concept of final unlimited will from any constitutional arrangement.
- **D:** Correct: these are traps two and nine of the owner's standing list, and both are common in scripts on the 2018 and 2023 parts.

Examiner trap 30: Allowing Figgis, Cole or MacIver to take over the answer displaces the printed thinker; they locate the school and supply support, and the marks follow Laski.

MCQ 31. Remedial - Kautilya beyond strategy

Which statement corrects the two commonest misreadings of Kautilya in this clause?

- A. He is neither reducible to the circle of states nor equivalent to Austinian absolutism, since welfare and the seven limbs bind the ruler.
- B. He is neither a realist nor a moralist, since the *Arthaśāstra* offers a purely descriptive account of how ancient kingdoms actually behaved.
- C. He is neither concerned with law nor with welfare, since his subject is exclusively the management of interstate rivalry and alliance.
- D. He is neither applicable to democracy nor to monarchy, since his categories presuppose an economy and society that no longer exist.

Answer: A.

Option explanations:

- **A:** Correct: traps four and five of the owner's list forbid both the equation with Austinian absolutism and the reduction to foreign policy.
- **B:** Incorrect: the owner describes him as a realist thinker of rule constrained by dharma and public welfare, which is a normative as well as descriptive position.
- **C:** Incorrect: security and welfare and the duty toward subjects are central, and calibrated coercion concerns internal order rather than diplomacy.
- **D:** Incorrect: the owner permits selective appropriation of statecraft principles into democratic government while rejecting monarchical absolutism.

Examiner trap 31: Answering the applicability question with a flat affirmative loses the discrimination mark; the required formula is that the monarchical form is not transferable while the principles of statecraft are.

MCQ 32. Remedial - what this clause does not own

Which material must be named and routed rather than developed inside a sovereignty answer?

- A. The five classical attributes, the de jure and de facto pair, and the distinction between legal and political sovereignty.
- B. Kelsen's hierarchy of norms, Hart's rule of recognition, and Kautilya's six-fold policy of interstate measures.
- C. Dworkin's principles and hard cases, the social contract and state of nature, and the institutional forms of democracy.
- D. Bodin's higher-law limits, Austin's command theory, and Laski's argument that the state must compete for allegiance.

Answer: C.

Option explanations:

- **A:** Incorrect: all three are core taxonomy owned by this clause and are required in almost every answer within it.
- **B:** Incorrect: Kelsen and Hart are the two internal repairs the owner develops, and the six-fold policy is Kautilya's own doctrine.
- **C:** Correct: Dworkin belongs to Individual and State, the contract and state of nature to the same owner, and democratic forms to Forms of Government.
- **D:** Incorrect: these are the central doctrines of three of the four printed thinkers and cannot be routed away.

Examiner trap 32: Importing the normative theory of equality, justice and liberty rather than using it as the stated test in the 2022 stem converts a sovereignty answer into an ideals essay and forfeits the ownership mark.

PYQS AND ANSWER PRACTICE

Practice status and source discipline - read once, applies to every solution below

Every model answer here is independent learner practice and is **never** an official UPSC key; UPSC publishes no descriptive model answer for Philosophy Paper II. Question wording is reproduced exactly as printed in the official papers, including the paper's own spelling "**Danda-neety**" in the 2018 part and "**Arthasastra**" in the 2024 part, which are preserved verbatim inside the question line and rendered as *daṇḍanīti* and *Arthaśāstra* in the answer prose. The 2018 to 2025 Paper II texts are held locally, and the English wording of every part below follows the repository's verified Socio-Political PYQ ledger. Provenance is treated as examinable: **Kelsen, General Theory of Law and State, first English edition 1945; Hart, The Concept of Law, 1961; Kesavananda Bharati v. State of Kerala, Supreme Court judgment, 1973; Bodin's Six Books of the Commonwealth, Austin's The Province of Jurisprudence Determined, Laski's A Grammar of Politics and Studies in the Problem of Sovereignty, and Kautilya's Arthaśāstra** in the Shamasastri and Kangle translations, in every case without page, chapter, edition or invented quotation. ANALYSIS: The line printed in the 2025 stem is treated as the **examiner's framing** and never as verified Kautilyan wording. Interpretive disputes - whether a distributed constitutional order still contains a single point of finality, whether the basic norm is a postulate or a fiction, whether bounded judicial discretion answers Dworkin, and whether pluralism can supply a decision procedure in emergency - are flagged as contested rather than settled.

Answer-length convention used throughout this package. UPSC Philosophy Paper II parts are written longer than General Studies answers. The working bands used here are **10 marks - about 150 to 220 words, 15 marks - about 250 to 330 words, and 20 marks - about 330 to 400 words**. Every solution below sits inside its declared band, and the demand decoding, the verdict heading and the "why this earns marks" notes are teaching apparatus that sit **outside** the timed word count.

Coverage. ANALYSIS: **Corpus signal:** this clause owns **11 of 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 2, 2019: 1, 2020: 2, 2021: 2, 2022: 1, 2023: 1, 2024: 1, 2025: 1**. All eleven are solved in full below, followed by **six original solved Mains models**, two each at 10, 15 and 20 marks. The internal distribution is worth knowing before the examination: **Kautilya** carries five parts (2018 Q1(d), 2019 Q3(a) jointly, 2021 Q3(c), 2024 Q4(b), 2025 Q2(c)) - by far the largest share and the clearest signal in the clause; **Laski** two (2018 Q2(b), 2023 Q2(a)); **Bodin** two (2020 Q1(d), 2022 Q2(a)); **Austin** two (2019 Q3(a), 2021 Q1(c)); and **the doctrine as such under globalisation** one (2020 Q4(b)). ANALYSIS: Ownership discipline: Rousseau's natural against artificial inequality belongs to **Social and Political Ideals**, the origin of social-contract theory to **Individual and State**, democracy as a form of government to **Forms of Government**, and Marxism or anarchism as ideology to **Political Ideologies**; none of those parts is counted here.

Solved PYQ 1 · 2018 · Q1(d) · 10 marks

Question: Discuss Kautilya's concept of sovereignty in the light of 'Danda-neeti'.

Demand decoding

Element	Requirement
Directive	"Discuss" - exposition plus one adjudicated tension, not a description of punishment
Core issue	What calibrated coercion (<i>danḍanīti</i>) reveals about the nature of Kautilyan sovereignty
Scope boundary	Ten marks: lead with calibration; use the seven limbs and welfare as support only
Thinker thesis	Sovereignty is the capacity to maintain order through disciplined force, not arbitrary cruelty
Non-negotiables	<i>Danḍa</i> as one of the seven limbs; the two-sided failure of too little and too much; welfare as the complement

Independent model answer

Thesis. FACT: For Kautilya, sovereignty is measured by the ruler's capacity to calibrate force, not by his freedom to use it; *danḍanīti* is therefore a doctrine of proportion rather than of severity.

Where coercion sits. FACT: Coercive force (*danḍa*) is one of the seven constituents of the state (*saptāṅga*), alongside the ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*) and ally (*mitra*). ANALYSIS: Placing it among the constituents makes the capacity to punish a permanent structural feature of rule rather than an emergency power.

The calibration argument. FACT: Without *danḍa*, society falls into disorder; with excessive *danḍa*, the ruler breeds resentment and instability. ANALYSIS: The art of sovereignty therefore lies in ordered, proportionate enforcement - *danḍa* is the force and *nīti* the policy that governs its use.

What this shows about sovereignty. ANALYSIS: The ruler is head of an organism rather than an unlimited master: authority is real, but its legitimacy and durability are judged by order and by security and welfare (*yogakṣema*). FACT: Fear without welfare is self-defeating; welfare without order is impossible.

Verdict. ANALYSIS: Kautilyan sovereignty is strong precisely because it is duty-bound. CAUTION: The restraint is nonetheless prudential rather than rights-based: it binds the ruler's interest, not his entitlement, and an accurate answer concedes that difference rather than reading modern constitutionalism into the text.

Why this earns marks

Answer-writing focus: the commonest failure here is a paragraph on ancient punishment. The stem says *in the light of danḍanīti*, which means the doctrine of calibrated coercion must be the lens through which sovereignty is characterised.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; placement three; calibration three; welfare link three; verdict two.

- **Structure:** thesis -> *danḍa* as a constituent -> two-sided failure -> welfare complement -> graded verdict.
- **Doctrine:** *danḍanīti* as the science of punishment and disciplined enforcement.
- **Evidence:** the seven limbs by name; disorder without force and resentment beyond it.
- **Distinction:** ordered coercion against blind terror.
- **Criticism:** prudential restraint is not a rights-based limit, conceded in the verdict.

Solved PYQ 2 · 2018 · Q2(b) · 15 marks

Question: Critically evaluate Laski's view on sovereignty as a satisfactory position in political theory.

Demand decoding

Element	Requirement
Directive	"Critically evaluate ... as a satisfactory position" - the criterion of satisfactoriness must be named first
Core issue	Whether pluralism succeeds as a positive theory, not merely as a critique
Scope boundary	Fifteen marks: exposition, two objections with replies, one residual problem, conditional verdict
Thinker thesis	The state is one association among many; sovereignty cannot be absolute
Non-negotiables	Three grounds of three kinds; the phase caution; the coordination debt

Independent model answer

Naming the test. ANALYSIS: A position is satisfactory in political theory if it describes political life accurately, protects the values it claims to protect, and supplies an account of the function it displaces. Laski passes the first two tests decisively and the third only partly.

The position. FACT: Laski rejects the monistic doctrine that the state possesses absolute, indivisible and unlimited sovereignty. Individuals belong simultaneously to family, church, union, guild, cooperative, profession and locality, and these bodies command real loyalty; the state is therefore **one association among many**, uniquely important but not the sole source of obligation. FACT: Allegiance must be earned by protecting rights, securing welfare and enabling meaningful life, not claimed by legal title.

Why absolutism is rejected - three grounds of three kinds. FACT: Philosophically, no human institution is entitled to unlimited moral obedience; politically, absolute sovereignty legitimises tyranny and suppresses liberty; sociologically, real societies distribute power among many groups. ANALYSIS: Their independence is the argument's strength: answering one leaves the others standing.

First objection and reply. FACT: Without a final sovereign, conflict between associations becomes insoluble. ANALYSIS: Laski replies that legal finality does not eliminate conflict but often suppresses legitimate diversity, and that modern orders need a final **procedure**, not an unanswerable will.

Second objection and reply. FACT: Shared sovereignty is conceptually incoherent. ANALYSIS: His real claim is that the monistic concept itself misdescribes overlapping authority.

Residual problem. ANALYSIS: Neither reply supplies a decision procedure for emergencies, defence or redistribution; MacIver's residual coordinating role concedes exactly this.

Verdict. ANALYSIS: Satisfactory as a critique of absolutism and as a defence of liberty through social plurality; **not** satisfactory as a complete replacement for the concept of final authority. FACT: Note also the phase caution: "Laski abolishes sovereignty" is as inaccurate as "Laski accepts Austin".

Why this earns marks

Answer-writing focus: "satisfactory" is an evaluative word with no fixed content, so the criterion must be supplied by the candidate in the first two lines. Scripts that omit it produce a verdict with nothing behind it.

Exam-length execution - 15 marks, about 250 to 330 words: test two lines; position four; three grounds three; two objection-reply pairs four; residual two; verdict three.

- **Structure:** name the test -> position -> three grounds -> two objections with replies -> residual -> conditional verdict.
- **Doctrine:** pluralism; earned allegiance; the state as one association among many.
- **Evidence:** the association list; the three grounds; MacIver's coordination role.
- **Distinction:** pluralist against anarchist; conceptual challenge against administrative decentralisation.
- **Criticism:** the coordination debt, stated as an unpaid debt rather than argued away.

Solved PYQ 3 · 2019 · Q3(a) · 20 marks

Question: Discuss how far does Austin's concept of sovereignty go along with Kautilya's concept of sovereignty.

Demand decoding

Element	Requirement
Directive	"How far ... go along with" - a degree judgement on fixed comparison axes
Core issue	Whether two theories answering different questions can be said to agree at all
Scope boundary	Twenty marks: five axes run in parallel, then an adjudication; not two mini-essays
Thinker thesis	Austin analyses the form of authority; Kautilya prescribes its function
Non-negotiables	Determinate human superior; <i>saptāṅga</i> , <i>daṇḍanīti</i> , <i>yogakṣema</i> ; the asymmetry verdict

Independent model answer

Thesis. ANALYSIS: The two converge on a single point - that a political order requires an identifiable apex of direction - and diverge on everything that follows, because they are answering different questions: Austin asks what makes a command legally valid, Kautilya asks what makes rule possible.

Axis one - nature of the theory. FACT: Austin's is analytical jurisprudence, separating what law **is** from what it ought to be. Kautilya's is statecraft: administration, treasury, coercion, alliance, intelligence and welfare.

Axis two - locus of sovereignty. FACT: Austin locates it in a **determinate human superior**, habitually obeyed by the bulk of society and habitually obeying no one. Kautilya locates it in the ruler (*svāmī*) as head of a seven-limbed state (*saptāṅga*): ministers, territory with its people, fortified defence, treasury, coercive force and ally. **ANALYSIS:** Austin's sovereign is a person or body; Kautilya's is a **system with a head**.

Axis three - limits. FACT: Austin's sovereign is absolute, indivisible, illimitable and inalienable, with moral limits placed outside the definition. Kautilya's ruler is bound by dharma, prudence, counsel and the duty to security and welfare (*yogakṣema*); a ruler without treasury or ministers holds title without effective sovereignty.

Axis four - law and order. FACT: Austin: law is command backed by sanction. Kautilya: order is maintained through calibrated coercion (*daṇḍanīti*), counsel, treasury and administration - too little force brings disorder, too much brings resentment.

Axis five - the external dimension. FACT: Austin's is underdeveloped, extending only to the denial that international law is truly law. Kautilya's is highly developed through the circle of states (*maṇḍala*) and the six-fold policy (*ṣaḍguṇya*).

Adjudication. ANALYSIS: They "go along" only at the thinnest level of shared structure - an apex of direction - and part company on source, limits, purpose and external relations. **ANALYSIS:** The asymmetry is the answer: **Austin analyses the form of authority; Kautilya prescribes its function**, so Austin's sovereign is legally supreme because no superior commands it, while Kautilya's ruler is politically central but functionally bound by dharma, welfare, ministers, treasury, force and allies.

Why this earns marks

Answer-writing focus: comparison stems are lost by writing two sequential summaries. Fix the axes in advance and run both thinkers down each one; the adjudication then writes itself.

Exam-length execution - 20 marks, about 330 to 400 words: thesis three lines; five axes at four lines each; adjudication four.

- **Structure:** thesis -> five parallel axes -> asymmetry adjudication.
- **Doctrine:** determinate human superior; *saptāṅga*; *daṇḍanīti*; *yogakṣema*; *maṇḍala* and *ṣaḍguṇya*.
- **Evidence:** the seven limbs by name; the five Austinian attributes; the international-law denial.
- **Distinction:** legal source of command against operational anatomy of rule.
- **Criticism:** the anachronism control - Kautilya predates the modern doctrine, so agreement must be graded, never assumed.

Solved PYQ 4 · 2020 · Q1(d) · 10 marks

Question: Explain the importance of Bodin's theory of sovereignty.

Demand decoding

Element	Requirement
Directive	"Explain the importance" - internal logic and historical significance, with light criticism only
Core issue	What Bodin added that political thought did not previously possess
Scope boundary	Ten marks: definition, the state-building move, the limits, one qualification
Thinker thesis	He made authority impersonal and gave the modern state its vocabulary
Non-negotiables	Absolute and perpetual; the law-making mark; the three limits; not Hobbes

Independent model answer

Thesis. ANALYSIS: Bodin's importance is not that he made rulers stronger but that he made authority **impersonal**, supplying modern politics with a language of permanent, undivided public power.

The definition. FACT: Sovereignty is the **absolute and perpetual power of a commonwealth**: *absolute* means subject to no human superior within the commonwealth; *perpetual* means attached to the office rather than to a temporary magistrate. **FACT:** Its pre-eminent mark is the power to make and unmake law for all subjects in general without the consent of any superior.

Why this mattered. ANALYSIS: Writing amid the French wars of religion, when rival churches, estates and feudal powers each claimed finality, Bodin identified what a community must possess to end its disputes: one authority whose law-making word is last. **ANALYSIS:** Perpetuity does the state-building work - a power that survives its holder is an institution, and only an institution supplies a continuous procedure of closure.

The limits, which must not be omitted. FACT: He is *legibus solutus* only of ordinary positive law, remaining bound by divine law, natural law and the fundamental laws of the realm (*leges imperii*). **FACT:** This is why he is **not** simply Hobbes before Hobbes.

Verdict. ANALYSIS: Historically foundational, normatively problematic: he gives later thought its vocabulary - absolute, perpetual, undivided - which Austin radicalises and Laski attacks, but offers weak guarantees against the concentration of power.

Why this earns marks

Answer-writing focus: "importance" invites a history lesson. Resist it: two lines of civil-war context are worth marks, two paragraphs are not, and the marks lie in what the two adjectives accomplish.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; definition three; significance four; limits three; verdict two.

- **Structure:** thesis -> definition -> why it mattered -> the three limits -> graded verdict.
- **Doctrine:** absolute and perpetual power; the pre-eminent law-making mark.
- **Evidence:** the wars of religion; *legibus solutus*; the *leges imperii*.
- **Distinction:** office against magistrate; supremacy in positive law against lawlessness.
- **Criticism:** weak protection against concentration, conceded in the verdict.

Solved PYQ 5 · 2020 · Q4(b) · 15 marks

Question: State and explain the relevance of the doctrine of sovereignty in times of globalization.

Demand decoding

Element	Requirement
Directive	"State and explain the relevance" - a thesis, then a mechanism-by-mechanism explanation
Core issue	Whether interdependence abolishes, or merely reconfigures, final authority
Scope boundary	Fifteen marks: four mechanisms distinguished, four thinkers redeployed, one concession
Thinker thesis	Constraint is not extinction; the mode changes, the question does not
Non-negotiables	Treaty, delegation, pooling, dependence kept apart; the supranational caution

Independent model answer

Thesis. ANALYSIS: Globalisation **modifies** sovereignty without abolishing it: states still claim final authority over territory, law, security and political membership, so the doctrine remains relevant as an account of how that authority is exercised, delegated, pooled and constrained.

Mechanism one - treaty commitment. FACT: A state accepts binding rules through its own recognised treaty-making capacity. **ANALYSIS:** Self-limitation constrains future action without creating a global Austinian sovereign; indeed it **presupposes** the capacity it limits.

Mechanism two - delegation. ANALYSIS: A state authorises an institution to perform a defined adjudicative, administrative or monitoring function. The **exercise** of a competence moves outward while its legal source and limits remain treaty-based.

Mechanism three - pooling. ANALYSIS: States exercise a defined competence jointly through common voting or bargaining rules. Finality becomes **shared for the agreed field**, not universally transferred.

Mechanism four - material dependence. ANALYSIS: Finance, markets, technology or security asymmetry narrows the range of feasible choices. Here legal independence may survive while **effective autonomy declines** - the mechanism that does the most practical damage and involves no legal transfer at all.

The four thinkers redeployed. ANALYSIS: For **Bodin**, external pressure would not negate the need for a final internal authority. For **Austin**, globalisation complicates the idea of an uncommanded superior. For **Laski**, interdependence strengthens the critique of absolute state supremacy. For **Kautilya**, the strategic-relational reading of external sovereignty, through the circle of states, remains directly serviceable.

Caution and verdict. ANALYSIS: Not every international organisation is supranational, and no supranational institution is automatically sovereign in Austin's sense; ask which competence was conferred, by what instrument, with what exit rule, and whether dependence makes formal consent substantively unequal. **ANALYSIS: Sovereignty is illimitable in legal form, limited in political fact and negotiated in international practice** - which is precisely why the doctrine remains relevant rather than obsolete.

Why this earns marks

Answer-writing focus: the whole answer turns on refusing to treat "globalisation" as one thing. Four mechanisms with four different consequences is the structure; the slogan "sovereignty has ended" is what the examiner is testing against.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; four mechanisms at three lines each; redeployment four; caution and verdict four.

- **Structure:** thesis -> four mechanisms -> four thinkers -> caution -> degree verdict.
- **Doctrine:** pooled, negotiated and networked sovereignty.
- **Evidence:** treaty capacity; delegated function; joint voting rules; conditionality.
- **Distinction:** legal source against exercise; shared finality against transfer; legal independence against effective autonomy.
- **Criticism:** the conditionality concession, stated as the strongest case against the thesis.

Solved PYQ 6 · 2021 · Q1(c) · 10 marks

Question: Is Austin's theory of sovereignty compatible with democracy? Discuss.

Demand decoding

Element	Requirement
Directive	"Is ... ? Discuss" - a graded verdict with the level of each judgement named
Core issue	Whether determinacy and illimitability survive democratic accountability
Scope boundary	Ten marks: the two-level structure, one Indian illustration, one caution
Thinker thesis	Compatible in legal form, incompatible in constitutional substance
Non-negotiables	Determinate human superior; the indeterminacy of "the people"; jurisdiction control

Independent model answer

Thesis. ANALYSIS: Only partially, and the answer must be given at two levels: compatible in the narrow legal sense that a law-making body can always be named, incompatible in the deeper constitutional-political sense.

The theory. FACT: Austin's sovereign is a **determinate human superior**, habitually obeyed by the bulk of society and habitually obeying no one, and is absolute, indivisible, illimitable and inalienable.

Where compatibility holds. FACT: Every democracy contains an identifiable legislature, so at the level of legal form the Austinian can point to a determinate law-maker.

Where it fails. ANALYSIS: Democracy disperses authority through elections, rights, representation, opposition and constitutional limitation; it makes final authority **derivative, revisable and answerable**, whereas Austin's is legally supreme and obeys no one. ANALYSIS: Popular sovereignty sharpens the difficulty: "the people" are indeterminate, changing and institutionally mediated, so either the sovereign is not the people or the sovereign is not determinate.

Illustration, handled carefully. FACT: In India, Parliament exercises amendment power conferred by Article 368 of a supreme written Constitution, and *Kesavananda Bharati* (Supreme Court judgment, **1973**) holds that this power does not extend to altering the basic structure. ANALYSIS: This is a dated judicial decision illustrating a legally limited amending competence; it is not philosophical proof, and no Indian institution should be called "the Austinian sovereign".

Verdict. ANALYSIS: The **function** of final legal authority survives in a democracy; Austin's **account** of it does not.

Why this earns marks

Answer-writing focus: a flat yes or no forfeits the structural mark. Name the level at which each verdict holds, and the examiner sees a graded judgement rather than an opinion.

Exam-length execution - 10 marks, about 150 to 220 words: thesis two lines; theory two; compatibility one; failure four; illustration three; verdict two.

- **Structure:** two-level thesis -> the theory -> holds here -> fails there -> illustration -> verdict.
- **Doctrine:** determinate human superior; illimitability; popular sovereignty as the counter-thesis.
- **Evidence:** Article 368; *Kesavananda Bharati* (1973).
- **Distinction:** legal form against constitutional substance; function against account.
- **Criticism:** the legal-status caution attached to the Indian illustration.

Solved PYQ 7 · 2021 · Q3(c) · 15 marks

Question: Discuss Kautilya's contribution regarding the concept of sovereignty. Is it applicable in a democratic form of government? Explain.

Demand decoding

Element	Requirement
Directive	Two-part stem: "Discuss ... contribution" then "Is it applicable ... ? Explain"
Core issue	Which elements are form-bound and which are principles of statecraft
Scope boundary	Fifteen marks: contribution in four moves, applicability by selective appropriation
Thinker thesis	Strong but duty-bound authority; principles transferable, monarchical form not
Non-negotiables	<i>Saptāṅga</i> , <i>daṇḍanīti</i> , <i>maṇḍala/śāḍgunya</i> , <i>yogakṣema</i> ; the selectivity rule

Independent model answer

Thesis. ANALYSIS: Kautilya's contribution is a theory of authority that is strong **because** duty-bound; its monarchical form is untransferable, but its principles of statecraft are directly applicable to democratic government.

Contribution one - sovereignty as systemic. FACT: The state is an organism of seven limbs (*saptāṅga*): ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*), coercive force (*daṇḍa*) and ally (*mitra*). ANALYSIS: A ruler without treasury or ministers holds title without effective sovereignty, so authority is a property of the whole organism.

Contribution two - calibrated coercion. FACT: *Daṇḍanīti* makes the capacity to punish constitutive of rule and its **proportion** the test of good rule: too little brings disorder, too much resentment.

Contribution three - external sovereignty. FACT: The circle of states (*maṇḍala*) and the six-fold policy (*śāḍgunya*) - peace, war, marching, remaining poised, seeking shelter, dual policy - make alignment positional and policy responsive.

Contribution four - welfare as legitimacy. FACT: Security and welfare (*yogakṣema*) tie the ruler's welfare to the people's; durability depends on prosperity, security and justice in administration. ANALYSIS: This is what moves Kautilya beyond pure force theory.

Applicability - the selectivity rule. ANALYSIS: What is not transferable is the monarchical form. What is transferable is institutional interdependence, prudent and proportionate use of force, treasury discipline, strategic diplomacy and welfare-centred governance. FACT: Democratic applicability lies in principles of statecraft, not in reproducing kingship.

Objection and reply. CAUTION: A democratic order cannot borrow from monarchical realism without undermining liberty. ANALYSIS: The reply is **selective appropriation**: retain strategic realism, administrative discipline and welfare orientation while rejecting monarchical absolutism.

Verdict. ANALYSIS: Applicable in principle, not in form - and the caveat matters: prudential statecraft is not consent-based legitimacy, so welfare in Kautilya is a condition of durable rule rather than a right held by subjects.

Why this earns marks

Answer-writing focus: two-part stems are lost by answering only the first part well. Allocate roughly two-thirds to the contribution and one-third to a genuinely argued applicability verdict.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; four contributions at three lines each; applicability four; objection-reply two; verdict two.

- **Structure:** thesis -> four contributions -> selectivity rule -> objection and reply -> qualified verdict.
- **Doctrine:** *saptāṅga*, *daṇḍanīti*, *maṇḍala*, *śāḍgunya*, *yogakṣema*.
- **Evidence:** the seven limbs and six measures by name; title without treasury.
- **Distinction:** form against principle; prudential duty against consent-based right.
- **Criticism:** the caveat that welfare is a condition of rule rather than an enforceable claim.

Solved PYQ 8 · 2022 · Q2(a) · 20 marks

Question: What arguments does Bodin present to contend that sovereignty must be absolute, perpetual and undivided? Is Bodin's conception of sovereignty compatible with the social and political ideals of equality, justice and liberty? Critically discuss.

Demand decoding

Element	Requirement
Directive	Two-part stem ending in "Critically discuss" - arguments first, then a criterion-based compatibility verdict
Core issue	Whether an authority defined as having no human superior can secure three modern ideals
Scope boundary	Twenty marks: three arguments, three ideals tested separately, one graded verdict
Thinker thesis	Historically foundational, normatively problematic
Non-negotiables	Each adjective argued, not asserted; the three limits; the ideals used as a test , not expounded

Independent model answer

Thesis. ANALYSIS: Bodin's three arguments are internally coherent, but compatibility with equality, justice and liberty is **conditional at best**: his theory can deliver impartial law and public order while offering weak guarantees against the concentration of power.

Argument for absoluteness. FACT: Law requires a source not itself legally derivative from another earthly authority; the sovereign's pre-eminent mark is the power to make and unmake law for all subjects without a superior's consent. **ANALYSIS:** *Absolute* therefore denies a superior **law-maker**, not a superior **norm**.

Argument for perpetuity. FACT: Sovereignty attaches to the office rather than to a temporary magistrate or delegated official. **ANALYSIS:** A power that dies with its holder is a personal ascendancy; only one that survives its holder is a state capable of continuous closure.

Argument for undividedness. ANALYSIS: If two authorities are each final, conflict becomes insoluble and the civil disorder of the wars of religion returns. **FACT:** Division of governmental **functions** is permitted - advisory estates, subordinate courts - but division of sovereign **title** is not.

The limits that qualify all three. FACT: He is *legibus solutus* only of ordinary positive law, and remains bound by divine law, natural law and the fundamental laws of the realm (*leges imperii*); arbitrary confiscation of property is discussed as incompatible with his own framework.

Testing against equality. ANALYSIS: A single impartial law-giver can dissolve feudal and confessional privilege, which serves equality before the law; but nothing in the theory requires equal civic standing, and the sovereign is the judge of his own compliance.

Testing against justice. ANALYSIS: Divine and natural law supply a normative standard, so the sovereign is not morally empty; **FACT:** yet no institution is empowered to enforce that standard against him, so the limits are conceptually real and practically thin.

Testing against liberty. ANALYSIS: Order is a condition of liberty, and Bodin secures it; but an authority with no human superior within the commonwealth gives liberty no institutional guarantee, which is exactly Laski's objection that absolute sovereignty is politically dangerous.

Graded verdict. ANALYSIS: **Historically foundational, normatively problematic.** Bodin makes the modern state possible and modern constitutional protection necessary; the compatibility is partial, conditional and unenforced.

Why this earns marks

Answer-writing focus: the second half is where scripts collapse into "both are important". Test the three ideals **separately**, and let each test yield a different partial result; the verdict is then earned rather than announced.

Exam-length execution - 20 marks, about 330 to 400 words: thesis three lines; three arguments at three lines each; limits three; three tests at three lines each; verdict three.

- **Structure:** thesis -> three arguments -> the limits -> three separate tests -> graded verdict.

- **Doctrine:** absolute, perpetual, undivided; *legibus solutus*; *leges imperii*.
- **Evidence:** the law-making mark; advisory estates and subordinate courts; arbitrary confiscation.
- **Distinction:** superior law-maker against superior norm; functions against title.
- **Criticism:** unenforceable higher-law limits, conceded as the theory's permanent vulnerability.

Solved PYQ 9 · 2023 · Q2(a) · 20 marks

Question: Elucidate why the absolute nature of sovereignty was rejected by Laski.

Demand decoding

Element	Requirement
Directive	"Elucidate why" - the internal logic of the rejection, expounded rather than merely listed
Core issue	The three independent grounds and what each rules out
Scope boundary	Twenty marks: three grounds developed, targets named, positive proposal, one residual
Thinker thesis	Absolutism is false, dangerous and unrealistic - three claims of three kinds
Non-negotiables	Pluralist not anarchist; not decentralisation; the coordination debt

Independent model answer

Thesis. ANALYSIS: Laski rejects absolute sovereignty on three logically independent grounds - philosophical, political and sociological - and the independence is what makes the rejection difficult to answer.

Ground one - philosophically false. FACT: No human institution is entitled to unlimited moral obedience.

ANALYSIS: Obligation is generated wherever human purposes are pursued in common, so a claim that all obligation derives from one will is not merely severe but mistaken about the source of obligation itself.

Ground two - politically dangerous. FACT: Absolute sovereignty legitimises tyranny and suppresses liberty.

ANALYSIS: If the state is the sole final authority, dissenting associations, minority rights, local autonomies and moral conscience can all be overridden in the name of public supremacy; pluralism is therefore a doctrine of **liberty** as much as of sociology.

Ground three - sociologically unrealistic. FACT: Real societies distribute power among many groups and institutions. Individuals belong to family, church, union, guild, cooperative, profession and locality, and these bodies command real loyalty; associations are not permissions granted by sovereignty but **real sites of personality, cooperation and authority**.

The two targets. ANALYSIS: He attacks both the legal abstraction of Austin - the determinate superior whose command exhausts law - and the absolutist impulse inherited from Bodin.

The positive proposal. FACT: Sovereignty in the monistic sense should give way to a distributed structure of authority: modern society is functionally differentiated, so economic, cultural, educational, local and religious life cannot be governed by one centralised will. **FACT:** The state must **compete for allegiance** by protecting rights, securing welfare and enabling meaningful life; authority is functional and moral, not mystical.

Two controls. FACT: Laski is a **pluralist, not an anarchist**: the state retains coordinating and coercive capacities. **FACT:** His claim is **not administrative decentralisation** but a challenge to the idea that one final unlimited will exists at all. **ANALYSIS:** Note also the phase caution - early Laski called sovereignty a legal fiction; the mature Laski conceded its importance while denying omnipotence.

Objection, reply, residual. FACT: Objection: without a final sovereign, conflict between associations is insoluble. **ANALYSIS:** Reply: legal finality does not eliminate conflict but often suppresses legitimate diversity, and what is needed is a final **procedure**, not an unanswerable will. **ANALYSIS:** Residual: emergencies, defence and redistribution still require an integrating authority, and MacIver's residual coordinating role concedes it.

Verdict. ANALYSIS: Laski's corrective against absolutism is indispensable; a polity that can never speak with one voice cannot discharge the coordinating task that made sovereignty necessary in the first place.

Why this earns marks

Answer-writing focus: the stem says *why*, so the three grounds must be **developed** rather than listed, and the mark for critical control comes from conceding the coordination debt in the verdict.

Exam-length execution - 20 marks, about 330 to 400 words: thesis two lines; three grounds at four lines each; targets two; proposal four; controls three; objection-reply-residual three; verdict two.

- **Structure:** thesis -> three grounds -> targets -> positive proposal -> two controls -> objection, reply, residual -> verdict.
- **Doctrine:** pluralism; distributed authority; earned allegiance.
- **Evidence:** the association list; the two targets; MacIver's coordination role.
- **Distinction:** pluralist against anarchist; conceptual challenge against decentralisation.
- **Criticism:** the unpaid coordination debt, named in the verdict.

Solved PYQ 10 · 2024 · Q4(b) · 15 marks

Question: What insights does the Arthashastra offer with regard to the concept of sovereignty? Does it have any relevance in the modern times? Critically discuss.

Demand decoding

Element	Requirement
Directive	Two-part stem ending in "Critically discuss" - insights, then a graded relevance judgement
Core issue	Whether an ancient science of statecraft can inform a modern constitutional order
Scope boundary	Fifteen marks: four insights, then relevance argued through themes rather than transposition
Thinker thesis	It refuses the false choice between moralism and realism
Non-negotiables	All four insights, not just strategy; the anachronism control in the verdict

Independent model answer

Thesis. ANALYSIS: The *Arthaśāstra*'s central insight is that sovereignty is **systemic, coercive, strategic and welfare-conditioned at once**, and its modern relevance lies in that refusal of the false choice between moralism and realism.

Insight one - the state as organism. FACT: Seven interdependent limbs (*saptāṅga*): ruler (*svāmī*), ministers (*amātya*), territory with its people (*janapada*), fortified defence (*durga*), treasury (*kośa*), coercive force (*daṇḍa*), ally (*mitra*). **ANALYSIS:** Sovereignty is therefore not merely personal; a ruler without treasury or ministers holds title without effective authority.

Insight two - coercion as constitutive and calibrated. FACT: *Daṇḍanīti* makes enforcement a permanent structural feature of rule while making its proportion the test of good rule.

Insight three - external sovereignty as relational. FACT: The circle of states (*maṇḍala*) and the six-fold policy (*śāḍgunya*) treat alignment as positional and policy as responsive to relative power and interest.

Insight four - welfare as the ground of durability. FACT: Security and welfare (*yogakṣema*) tie the ruler's welfare to the people's; treasury, territory and administration are conditions of stable rule, not merely instruments of extraction.

Relevance - argued through themes. ANALYSIS: Modern relevance lies in institutional capacity, security, diplomacy and public welfare taken together: sovereignty involves administration, intelligence, fiscal strength, external balancing and legitimacy through welfare. **ANALYSIS:** The transferable elements are principles of statecraft; the untransferable element is the monarchical form.

Objection and reply. CAUTION: Ancient categories cannot speak to modern constitutional states. **ANALYSIS:** Direct transposition is indeed impossible, but conceptual adaptation is fruitful, and relevance is shown through themes rather than by pretending ancient monarchy equals modern democracy.

Critical verdict. ANALYSIS: Genuinely relevant, but with two limits stated: prudential statecraft is not consent-based legitimacy, and welfare here is a condition of durable rule rather than a right held by subjects. CAUTION: The realism is elastic enough to license much, which is why the welfare and dharma constraints must be read as integral rather than decorative.

Why this earns marks

Answer-writing focus: most scripts give the circle of states and stop. Four insights, in the order organism -> coercion -> strategy -> welfare, cover the doctrine and set up a relevance judgement that is argued rather than asserted.

Exam-length execution - 15 marks, about 250 to 330 words: thesis two lines; four insights at three lines each; relevance four; objection-reply two; verdict three.

- **Structure:** thesis -> four insights -> thematic relevance -> objection and reply -> critical verdict.
- **Doctrine:** *saptāṅga*, *daṇḍanīti*, *maṇḍala*, *śāḍgunya*, *yogakṣema*.
- **Evidence:** the seven limbs and six measures by name; treasury as a condition of rule.
- **Distinction:** conceptual adaptation against direct transposition.
- **Criticism:** elastic realism and the absence of consent-based legitimacy, both conceded.

Solved PYQ 11 · 2025 · Q2(c) · 15 marks

Question: 'There is no permanent friend or permanent enemy.' Discuss this statement in the light of Kautilya's view on Sovereignty.

Demand decoding

Element	Requirement
Directive	Quoted-line comment - locate the line in its doctrine before judging it
Core issue	Whether the conditionality of alliance follows from Kautilya's model
Scope boundary	Fifteen marks: provenance control first, then <i>maṇḍala</i> and <i>śāḍgunya</i> , then the internal counterweight
Thinker thesis	Alignment is positional, so permanence is conceptually unavailable
Non-negotiables	The line is prompt wording, not verified authorship; strategy balanced by welfare

Independent model answer

Provenance first. ANALYSIS: The printed line is the **examiner's framing**. Its exact wording has not been verified in the local *Arthaśāstra* synopsis or in the checked Shamasastri source passages, so it should not be presented as a Kautilyan quotation. What can be shown is that the verified doctrines make alliances conditional and policy responsive.

Thesis. ANALYSIS: On Kautilya's model, friendship and enmity are **positional rather than personal**, so the conditionality the line asserts follows from the structure of interstate relations and needs no quotation to establish it.

The circle of states. FACT: The *maṇḍala* framework locates friends and enemies **relationally** within a competitive and unstable states-system, in which position rather than sentiment fixes alignment.

The six-fold policy. FACT: *Śāḍgunya* supplies the gears: **sandhi** (peace or treaty), **vigraha** (hostility or war), **yāna** (marching or expedition), **āsana** (remaining poised), **saṁśraya** (seeking shelter or alliance) and **dvaiddhībhāva** (dual policy). ANALYSIS: Policy therefore changes with circumstance, relative power and interest - a thesis of **strategic flexibility**, not a verbatim maxim.

Why permanence is unavailable. ANALYSIS: If alignment is defined by relative position, then a state that gains or loses power changes position, and a change of position changes which measure is prudent. Conditionality falls out of the model rather than being asserted about it.

The internal counterweight. FACT: External flexibility is not amorality. Sovereignty is also bound internally by the seven limbs (*saptāṅga*), by calibrated coercion (*daṇḍanīti*) and by the duty to security and welfare (*yogakṣema*). ANALYSIS: Kautilya is realistic but not normless.

Objection and reply. FACT: Objection: such realism is cynical. ANALYSIS: Reply: strategic flexibility operates alongside the ruler's internal duty toward order and welfare, and misrule weakens sovereignty itself.

Verdict. ANALYSIS: The statement is a fair **interpretation** of Kautilya's external sovereignty and a poor summary of his theory as a whole: it captures the *maṇḍala* logic exactly and omits the welfare-bound, organismic account of internal authority that gives that logic its purpose.

Why this earns marks

Answer-writing focus: quoted-line stems are lost by treating the quotation as self-explanatory. Locate it in the doctrine, state what it does and does not assert, and only then judge it.

Exam-length execution - 15 marks, about 250 to 330 words: provenance two lines; thesis two; *maṇḍala* two; six measures four; permanence three; counterweight three; objection-reply two; verdict two.

- **Structure:** provenance control -> thesis -> circle of states -> six measures -> why permanence is unavailable -> internal counterweight -> verdict.
- **Doctrine:** *maṇḍala*; *śāḍgunya*; *saptāṅga*; *yogakṣema*.
- **Evidence:** the six measures by name; the relational definition of friend and enemy.
- **Distinction:** positional against personal alignment; interpretation against authorship.
- **Criticism:** the line's incompleteness as a summary of the whole theory, stated in the verdict.

Six original questions in the style of the paper - two each at 10, 15 and 20 marks - covering the parts of the clause that the 2018-2025 corpus has not yet examined directly: the legal/political distinction, the de jure and de facto pairs, the classical attributes and their qualifications, the internal repairs of Austin by Kelsen and Hart, the pluralist lineage behind Laski, and the four-way structure of the whole dispute. Every model answer is independent learner practice and is never an official key.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original 1 · 10 marks

Question: Distinguish legal from political sovereignty, and explain why the distinction matters for evaluating Austin.

Independent model answer

Thesis. FACT: The two answer different questions - who is **competent to make law**, and what power **shapes or compels** the law-maker - and the distinction matters because most objections to Austin are answers to the second offered against a thesis about the first.

Legal sovereignty. FACT: It names the authority recognised by law as competent to make law: the juristic source of validity, and Austin's preferred angle. His sovereign is a determinate human superior, habitually obeyed by the bulk of society and habitually obeying no one.

Political sovereignty. FACT: It names the actual power behind legal institutions - the force that can compel or shape the legal sovereign. Parties, public opinion, organised interests, military power, religion and economic classes belong here, and this is the standpoint from which Laski attacks.

Why they diverge. ANALYSIS: A constitution may vest law-making power in one body while something else determines what that body can actually do; the divergence is a general feature of political life rather than a constitutional defect.

Why it matters for Austin. ANALYSIS: An unlabelled objection commits a category error. Showing that a legislature is politically constrained does not refute a claim about legal competence; showing that power-conferring rules cannot be redescribed as commands does.

Verdict. ANALYSIS: Austin overstates the sufficiency of legal validity and pluralists overstate the sufficiency of political efficacy; a balanced answer keeps both questions open rather than declaring one of them the real one.

Why this earns marks

Answer-writing focus: two definitions earn little; two definitions plus the diagnosis of a category error earn the question.

- **Structure:** thesis -> legal -> political -> divergence -> consequence for Austin -> verdict.
- **Doctrine:** juristic source of valid law against the real locus of social power.
- **Evidence:** the determinate human superior; the list of political forces.
- **Distinction:** validity against efficacy.
- **Criticism:** the symmetrical overstatement of both camps, named in the verdict.

Original 2 · 10 marks

Question: Explain the five classical attributes of sovereignty, and show why each requires a qualification.

Independent model answer

Thesis. FACT: The five attributes are defensible only in qualified form; stated flat, each is refuted by the first counter-example a critic supplies.

Absoluteness. FACT: No superior human law-maker legally commands the sovereign within the political order. ANALYSIS: Qualification: legal non-subordination does not prove moral infallibility or practical omnipotence.

Permanence or continuity. FACT: Governments and office-holders change while sovereignty continues with the state. ANALYSIS: Qualification: permanence means continuity while the state remains independent, not literal eternity.

Universality. FACT: Sovereign jurisdiction extends in principle across persons and associations within the territory. ANALYSIS: Qualification: immunities and autonomous spheres may exist by constitutional or legal recognition.

Inalienability. FACT: Sovereignty cannot be transferred away without the old state losing that status. ANALYSIS: Qualification: delegation, devolution or treaty commitment is not automatically alienation.

Indivisibility. FACT: The classical theory requires one final legal source. ANALYSIS: Qualification: governmental competences may be distributed even where monists insist legal finality remains one.

Placement and verdict. FACT: Bodin supplies the defining pair *absolute and perpetual*; Austin supplies the sharpest determinate-superior formulation; the five-part list is a **consolidation** of that monist tradition rather than five claims uniquely invented by either. ANALYSIS: Qualified in this way, the list survives federal division and treaty commitment; unqualified, it does not.

Why this earns marks

Answer-writing focus: the qualification column is the answer. A candidate who writes only the five definitions has written a glossary.

- **Structure:** thesis -> five attributes each with its qualification -> placement -> verdict.
- **Doctrine:** the classical monist taxonomy of legal sovereignty.
- **Evidence:** Bodin's defining pair; Austin's sharpened list.
- **Distinction:** legal non-subordination against moral infallibility; delegation against alienation.
- **Criticism:** the vulnerability of the unqualified list, stated as the reason for qualifying it.

Original 3 · 15 marks

Question: Examine the claim that Kelsen and Hart refute Austin more effectively than Laski does.

Independent model answer

Thesis. ANALYSIS: The claim is largely correct but must be graded: Kelsen and Hart defeat Austin's **definition**, whereas Laski defeats its **application** - and only the first is a refutation in the strict sense.

Austin's position. FACT: Law is the command of a determinate human superior backed by sanction; sovereignty is determinate, absolute, indivisible, illimitable and inalienable.

Laski's external attack. FACT: The state is one association among many; absolute sovereignty is philosophically false, politically dangerous and sociologically unrealistic. ANALYSIS: This shows that no actual society matches the Austinian picture, but it does not show that the picture is internally incoherent, and Austin can reply that he is analysing legal validity rather than describing social power.

Kelsen's internal repair. FACT: Validity derives from a higher norm, never from a fact, terminating in a presupposed basic norm (*Grundnorm*) - *General Theory of Law and State*, first English edition **1945**. ANALYSIS: This dissolves the personal sovereign from within positivism and answers the succession and persistence problems that habit cannot explain.

Hart's internal repair. FACT: Law is a union of primary and secondary rules, with a rule of recognition existing as convergent official practice viewed from the internal point of view - *The Concept of Law*, **1961**. ANALYSIS: Nullity is not a sanction, and being obliged is not having an obligation; both strikes attack the definition rather than its fit.

Adjudication. ANALYSIS: Refutation of a definition is stronger than refutation of a description, so the claim holds. ANALYSIS: But Laski's attack survives the repairs: neither Kelsen nor Hart addresses the danger of unlimited authority or the plurality of allegiance, so the three are complementary rather than competitive.

Control. ANALYSIS: They must not be merged: Kelsen replaces the sovereign with a norm-hierarchy, Hart with an official practice, Laski with plural associations.

Verdict. ANALYSIS: Kelsen and Hart refute Austin **as a theory of law**; Laski refutes him **as a theory of political authority** - and a complete answer runs the internal critique first and the external critique second.

Why this earns marks

Answer-writing focus: "more effectively" demands a criterion of effectiveness. Supplying one - definition against application - converts an opinion into an argument.

- **Structure:** graded thesis -> Austin -> external attack -> two internal repairs -> adjudication -> control -> verdict.
- **Doctrine:** command theory; hierarchy of norms; primary and secondary rules; pluralism.
- **Evidence:** Kelsen 1945; Hart 1961; the nullity strike; the three grounds of rejection.
- **Distinction:** internal against external critique; definition against application.
- **Criticism:** the warning against merging three incompatible replacements.

Original 4 · 15 marks

Question: Assess the significance of the pluralist lineage - Figgis, Cole and MacIver - for Laski's rejection of monistic sovereignty.

Independent model answer

Thesis. ANALYSIS: The lineage strengthens Laski's rejection empirically and supplies the concession his own account most needs, but it must locate the school rather than replace the printed thinker.

Laski's position. FACT: The state is one association among many. Individuals belong to family, church, union, guild, cooperative, profession and locality, and these bodies command real loyalty; associations are not permissions granted by sovereignty.

Figgis. FACT: Churches and other real associations expose the danger of an absolute state allied with economic concentration. ANALYSIS: His significance is as the group-personality and anti-absorption precursor: he shows that associations have purposes of their own that the state did not create.

Cole. FACT: A forerunner of pluralism associated with functional or guild representation and socially organised group life. ANALYSIS: Significance: he converts plural loyalty into a proposal about representation. The boundary matters - the answer must not become a theory of guild socialism.

MacIver. FACT: Law and constitution, not a mysterious sovereign will, ground legitimate public force; the state **coordinates** associations without creating all their purposes. ANALYSIS: Significance: this is both the strongest sociological supplement to Laski and the honest statement of what pluralism still owes to monism.

Assessment. ANALYSIS: Figgis supplies the moral urgency, Cole the institutional imagination and MacIver the residual coordination role. ANALYSIS: The last is decisive: because someone must settle conflicts **between** associations, MacIver's coordination claim measures exactly how much of the monist case survives.

Control and verdict. FACT: Laski is the printed thinker and the marks follow him; the three names locate the school. ANALYSIS: The lineage therefore makes the rejection of monism harder to dismiss as one writer's preference, while making explicit that pluralism limits sovereignty rather than abolishing the function it names.

Why this earns marks

Answer-writing focus: the risk here is a biography parade. Give each name **one** supported contribution and **one** boundary, then assess the lineage as a whole.

- **Structure:** thesis -> Laski's position -> three names with contribution and boundary -> assessment -> control and verdict.
- **Doctrine:** associational autonomy; group personality; coordination without absolutism.
- **Evidence:** the association list; MacIver's law-and-constitution argument.
- **Distinction:** locating a school against replacing the printed thinker.
- **Criticism:** the residual coordination role, treated as the measure of what monism retains.

Original 5 · 20 marks

Question: "The concept of supreme legal authority survives every criticism examined; the image of a determinate personal sovereign does not." Critically examine this verdict with reference to Bodin, Austin, Laski and Kautilya.

Independent model answer

Thesis. ANALYSIS: The verdict is sound but requires two amendments: the surviving concept is **final procedure** rather than final will, and Kautilya shows that a duty-bound personal head can survive where an illimitable one cannot.

What the image asserts. FACT: Bodin's sovereign is the absolute and perpetual power of a commonwealth; Austin's is a determinate human superior, habitually obeyed by the bulk and obeying no one, whose authority is absolute, indivisible, illimitable and inalienable.

The internal criticisms. FACT: Austin cannot explain succession, persistence or power-conferring rules. **ANALYSIS:** Kelsen (*General Theory of Law and State*, English edition **1945**) replaces the commander with a hierarchy of norms terminating in a presupposed basic norm; Hart (*The Concept of Law*, **1961**) replaces him with a union of primary and secondary rules resting on a rule of recognition accepted from the internal point of view. **ANALYSIS:** Both remain positivists: the image dissolves, the concept of ultimate validity does not.

The external criticisms. FACT: Federalism distributes competence; international law binds without a world sovereign; custom precedes command; democracy makes authority derivative and answerable. **FACT:** Laski adds that absolutism is philosophically false, politically dangerous and sociologically unrealistic. **ANALYSIS:** Each attacks the personal image; none shows that a legal order can dispense with an ultimate criterion of validity.

What Bodin retains. ANALYSIS: Bodin survives better than Austin because his sovereign is already limited by divine law, natural law and the fundamental laws of the realm, and because perpetuity locates authority in an **office**. His weakness is enforcement, not conception.

What Kautilya adds. ANALYSIS: The seven-limbed state makes sovereignty systemic; calibrated coercion makes force proportionate; security and welfare make legitimacy conditional on outcomes. **ANALYSIS:** A head bound by dharma, counsel, treasury and welfare is not the illimitable superior the criticisms destroy, which is why Kautilya is the least damaged of the four.

The amendments. ANALYSIS: First, what survives is best described as a **final procedure** for closure rather than a final will, since Hart's rule of recognition and a constitutional amending procedure both perform closure without personal supremacy. **ANALYSIS:** Second, the three dissolutions must not be merged: a norm-hierarchy, an official practice and a plurality of associations are rivals, not allies.

Verdict. ANALYSIS: The quoted verdict holds. The image of a determinate personal sovereign fails on succession, on facilities, on federal competence, on international normativity and on democratic accountability; the concept of supreme legal authority survives, reconstituted as procedure, and Kautilya's duty-bound headship survives alongside it because it never claimed illimitability in the first place.

Why this earns marks

Answer-writing focus: examining a quoted verdict requires the candidate to **amend** rather than merely endorse. Two precise amendments are worth more than three paragraphs of agreement.

- **Structure:** graded thesis -> the image -> internal criticisms -> external criticisms -> what Bodin retains -> what Kautilya adds -> two amendments -> verdict.

- **Doctrine:** the five attributes; hierarchy of norms; rule of recognition; pluralism; *saptāṅga* and *yogakṣema*.
- **Evidence:** Kelsen 1945; Hart 1961; the *leges imperii*; the seven limbs.
- **Distinction:** image against concept; final will against final procedure.
- **Criticism:** the warning against merging the three dissolutions, and the enforcement gap in Bodin.

Original 6 · 20 marks

Question: Critically examine the claim that the four printed thinkers on sovereignty are answering four different questions rather than giving four answers to one.

Independent model answer

Thesis. ANALYSIS: The claim is largely true and analytically productive, but it must be qualified: the four questions overlap at one point - every position must say what makes closure possible - and it is that overlap which makes comparison legitimate.

The four questions. ANALYSIS: Bodin and Austin ask **who** is sovereign. Kelsen and Hart deny that this is the right question and ask **what makes a norm valid**. Laski denies that any single answer is possible and asks **how allegiance is actually distributed**. Kautilya asks what the holder of authority is **for**.

Bodin and Austin - the "who" question. FACT: Bodin answers: the commonwealth's supreme law-giving authority, absolute and perpetual, limited by divine law, natural law and the fundamental laws of the realm. **FACT:** Austin answers: a determinate human superior, habitually obeyed by the bulk of society, whose authority is illimitable within the legal order.

Kelsen and Hart - the validity question. ANALYSIS: Because "is" does not yield "ought", validity cannot rest on the fact of obedience; Kelsen derives it from a hierarchy of norms terminating in a presupposed basic norm (**1945**), and Hart from a rule of recognition existing as convergent official practice (**1961**).

Laski - the allegiance question. FACT: The state is one association among many and must compete for allegiance by protecting rights, securing welfare and enabling meaningful life; monistic sovereignty misdescribes society and licenses domination.

Kautilya - the purpose question. FACT: The ruler heads a seven-limbed state, governs through calibrated coercion, and is measured by security and welfare; authority is justified by what it delivers.

Why the reframing is productive. ANALYSIS: Read as four answers to one question, the positions look like a disagreement of degree about how much authority is too much. Read as four questions, each exposes a blind spot in the others: Austin cannot see facilities, Kelsen and Hart cannot see danger, Laski cannot see emergency closure, and Kautilya cannot see consent.

The qualification. ANALYSIS: The questions are not wholly independent. Every position must explain how a political community reaches closure, and each does: Bodin through an undivided title, Austin through a determinate superior, Kelsen through a presupposed apex, Hart through an accepted criterion, Laski through a final procedure, Kautilya through a duty-bound head. **ANALYSIS:** Comparison is therefore legitimate on that axis and illegitimate on axes the thinkers do not share.

Verdict. ANALYSIS: The claim should be accepted with that amendment: four questions, one shared problem. The corresponding examination discipline is to **fix the axes** - source, location, divisibility, legal and moral limits, organs of state and modern relevance - and to refuse comparison by biography or by chronology.

Why this earns marks

Answer-writing focus: a "critically examine" stem asking about a methodological claim is won by amending the claim precisely, not by illustrating it at length.

- **Structure:** qualified thesis -> the four questions -> each answered -> why the reframing helps -> the shared-problem qualification -> verdict with the axis discipline.
- **Doctrine:** all four printed positions plus the two internal repairs.
- **Evidence:** the *leges imperii*; the determinate superior; Kelsen 1945 and Hart 1961; the seven limbs.
- **Distinction:** four questions against four answers; shared closure problem against unshared axes.
- **Criticism:** the blind-spot audit, which prevents the reframing from becoming an excuse for not comparing.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Fence. Everything above this line is answer-complete for all eleven owned previous-year parts. This block exists for **one** added debate, **one** sharper objection with its reply, or **one** controlled comparison inside a 15- or 20-marker. It is enrichment, never a prerequisite. **ANALYSIS:** Do not let Schmitt, constituent power or global governance crowd out the four printed names, and do not confuse state capacity with philosophical sovereignty.

A1. Constituent power against constituted power CAUTION:

The core prerequisite for this block is the whole Basic session: Bodin, Austin, Laski and Kautilya; the internal/external, legal/political and de jure/de facto distinctions; and every 2018-2025 thinker-specific part including democracy, globalisation, calibrated coercion, *Arthaśāstra* relevance and the Austin-versus-Kautilya comparison.

- **The contending positions ANALYSIS:** One view locates ultimate authority in **the people who found the order** - the power that makes a constitution; the rival view locates it in **the legal institutions that operate within the order** - the powers a constitution makes.
- **Why it stays optional FACT:** The held corpus asks classical sovereignty and does not put this later constitutional-theory distinction directly in a stem.
- **The one place it earns marks ANALYSIS:** In a 20-marker on Austin and democracy, it sharpens Session 11 by naming what the Austinian relocation to "the constitution-making authority" actually appeals to - and why that appeal cannot be cashed out as a *determinate* superior.

A2. Monism against legal pluralism ANALYSIS:

- **The contending positions ANALYSIS:** Austin- and Bodin-style **finality of command** against a **pluralist or constitutional dispersal** of authority across associations and institutions.
- **Why it stays optional FACT:** The Basic block already covers Laski's rejection of absolutism in full, and Sessions 14-15 give the argument its three independent grounds.
- **The one place it earns marks ANALYSIS:** Where a stem asks whether shared authority is *coherent* rather than whether it is *desirable*, this framing separates the conceptual question from the normative one.

A3. Sovereignty under interdependence ANALYSIS:

- **The contending positions ANALYSIS:** "Globalisation weakens sovereignty" against the rival view that sovereignty **changes form** rather than disappearing.
- **Why it stays optional FACT:** It is useful for modern-relevance answers, but the classical thinker grid stays primary and Session 19 already supplies the four-mechanism analysis the 2020 part needs.
- **The boundary ANALYSIS:** Dated institutional or legal examples should be re-checked at answer time; this block prioritises philosophical structure over current-affairs stockpiling.

A4. Exception and emergency CAUTION:

- **The contending positions CAUTION:** A Schmitt-style emphasis on **decision in crisis** against a constitutionalist insistence on **norm-governed emergency power**.
- **Why it stays optional FACT:** It is a high-value evaluative add-on but is not required by the corpus owned here.
- **The one place it earns marks ANALYSIS:** It gives the sharpest possible form of the coordination debt named in Session 15 - the pluralist owes an account of who decides when the ordinary procedures cannot run.

A5. The strongest additional objection and reply ANALYSIS:

- **Objection.** Pluralist or dispersed sovereignty cannot explain **who finally decides in crisis**.
- **Reply.** The better answer is not to resurrect absolutism but to **distinguish coordination authority from unlimited moral supremacy**: modern constitutional orders require a final **procedure**, not an unanswerable sovereign will.
- **Why this is the best available upgrade ANALYSIS:** It converts the residual limit of Sessions 15 and 20 from a concession into an argument, and it is the single most reusable sentence in this block.

A6. Safe Indian deployment in a 15- or 20-marker ANALYSIS:

Use federal tension, constitutional supremacy, external autonomy in foreign policy, or regulatory questions about digital and territorial control **only as illustrations of divided yet coordinated authority**. Keep Bodin, Austin, Laski and Kautilya in the foreground, and retain every caution from Sessions 11 and 13: a judgment is a dated judicial decision rather than philosophical proof, no Indian institution is "the Austinian sovereign", and no named document is a *Grundnorm*.

A7. Promotion trigger and source trail FACT:

- **Promote this block into the core ANALYSIS:** only if a previous-year part asks directly about constituent power, legal pluralism, emergency sovereignty, or whether sovereignty is obsolete.
- **Credible source trail FACT:** Bodin, *Six Books of the Commonwealth*; Austin, *The Province of Jurisprudence Determined*; Laski, *A Grammar of Politics and Studies in the Problem of Sovereignty*; Kautilya, *Arthaśāstra*; H. L. A. Hart, *The Concept of Law*; Neil MacCormick, *Questioning Sovereignty*. Cited by author and title only, with no page, chapter, edition or invented quotation.

CONSOLIDATED REGISTER NOTES

Compressed recall for the whole clause. Not a second reading of the teaching: definitions, spines, matrices, traps, routes and closing lines only. Parts A-L carry the content; part M carries the complete ASCII master flow.

A. Say it exactly - the definition bank

Term	The sentence to write
Sovereignty	The supreme, final and authoritative power within a political community - a claim about finality , not about force FACT:
Bodin	Sovereignty is the absolute and perpetual power of a commonwealth ; its pre-eminent mark is the power to make and unmake law for all subjects without a superior's consent FACT:
Austin	The sovereign is a determinate human superior , habitually obeyed by the bulk of a given society and habitually obeying no one else FACT:
Laski	The state is one association among many ; absolute sovereignty is philosophically false, politically dangerous and sociologically unrealistic FACT:
Kautilya	Sovereignty centres on the ruler (<i>svāmī</i>) but the state is an organism of seven limbs (saptāṅga) oriented to security and welfare (<i>yogakṣema</i>) FACT:
Kelsen	Validity derives from a higher norm, never from a fact, terminating in a presupposed basic norm (Grundnorm) FACT:
Hart	Law is a union of primary and secondary rules , with a rule of recognition existing as convergent official practice viewed from the internal point of view FACT:

Statement bank - crisp openers. FACT: Bodin transforms sovereignty into the permanent and supreme law-giving power of the commonwealth. FACT: Austin sharpens sovereignty into a legal relation of command, obedience and sanction. FACT: Laski dissolves monistic sovereignty into a plural social field of overlapping loyalties. ANALYSIS: Kautilya embeds sovereignty in an organismic state whose headship is inseparable from welfare and strategy. ANALYSIS: The central question is not whether authority exists, but whether it can be absolute, indivisible and morally

unconditioned. ANALYSIS: Modern constitutionalism limits sovereignty without eliminating the need for final public authority. ANALYSIS: Globalisation challenges the isolation of sovereignty, not the existence of sovereign decision.

B. The taxonomy spine - open every answer with this

Pair	First term	Second term	Diagnostic use
Internal / external FACT:	supremacy within the state	independence in the society of states	globalisation; <i>maṇḍala</i>
Legal / political FACT:	competence to make law	the power that shapes the law-maker	Austin's angle against Laski's
De jure / de facto FACT:	lawful in title	actually obeyed	revolution, coups, unstable orders
Titular / actual FACT:	vested in an office or symbol	exercised by those who really govern	constitutional monarchy, cabinet rule
Popular / national FACT:/ANALYSIS:	the people as source of authority	collective self-determination	the democracy objection to Austin
Monist / pluralist FACT:	one final unlimited will	overlapping centres of authority	the whole Bodin-Austin against Laski axis

ANALYSIS: **The controlling move.** Fix the axis the stem tests **before** grading any thinker. Most objections to monism are *political-sovereignty* answers offered against a *legal-sovereignty* thesis, and labelling them is what prevents a category error.

C. The five classical attributes - never write them unqualified

Attribute	Claim	Qualification that saves it
Absoluteness FACT:	no superior human law-maker within	not moral infallibility or practical omnipotence
Permanence FACT:	continues with the state, not the office-holder	continuity while independent, not eternity
Universality FACT:	reaches persons and associations in the territory	recognised immunities may exist
Inalienability FACT:	cannot be given away without ceasing to be sovereign	delegation and treaty commitment are not alienation
Indivisibility FACT:	one final legal source	competences may still be distributed

FACT: **Placement:** Bodin supplies *absolute and perpetual*; Austin supplies the determinate-superior sharpening; the five-part list is a **consolidation** of the monist tradition.

D. Bodin in nine lines

1. Context: French wars of religion; rival churches, estates and feudal powers each claim finality. FACT:
2. Definition: the absolute and perpetual power of a commonwealth. FACT:
3. *Absolute* = no human superior within. FACT:
4. *Perpetual* = attached to the **office**, not the magistrate - this is the state-building move. FACT:
5. Pre-eminent mark: making and unmaking law for all subjects without a superior's consent. FACT:
6. Indivisible: functions divisible, **title** not. FACT:
7. Three limits: divine law, natural law, the fundamental laws of the realm (*leges imperii*). FACT:
8. Formula: *legibus solutus* of **ordinary positive law only**. FACT:
9. Verdict: historically foundational, normatively problematic; the limits are conceptually real and practically unenforced. ANALYSIS:

E. Austin built, then criticised

Built. FACT: Analytical jurisprudence -> determinate human superior, habitual obedience by the bulk, obedience to no one -> law as command backed by sanction -> five attributes (determinate, absolute, indivisible, illimitable, inalienable), each closing a gap in the chain of validity. ANALYSIS: Indivisibility is a **logical** feature of the scheme, stricter than political reality.

Criticised - group them, never list them. FACT:

Group	Criticism	Austinian move	The cost
Structural	Federalism distributes competence	relocate finality to the constitution-making authority	shifts rather than solves
Structural	International law binds with no world sovereign	deny that it is law in the strict sense	conceptual purity, lost reach
Structural	Custom precedes command	tacit adoption by the sovereign	judged artificial
Political	Democracy makes authority derivative	name a legislature as the superior	authority becomes revisable and answerable
Historical	Maine on Ranjit Singh	exceptional cases do not defeat a theory	the mismatch is wider than one case
Internal	Power-conferring rules; nullity is not a sanction	none available	forces reconstruction

ANALYSIS: **Democracy verdict:** yes in the narrow legal sense, no in the constitutional-political sense. FACT:

Jurisdiction control: the United Kingdom centres Parliament; India has parliamentary government under **constitutional supremacy**, with Article 368 and *Kesavananda Bharati* (Supreme Court judgment, **1973**) limiting the amending power through the basic-structure doctrine. ANALYSIS: A judgment is not philosophical proof.

F. The two internal repairs - Kelsen and Hart

	Kelsen FACT:	Hart FACT:
Work and year	<i>General Theory of Law and State</i> , first English edition 1945	<i>The Concept of Law</i> , 1961
Diagnosis	validity cannot rest on a fact; "is" does not yield "ought"	the command model is the gunman situation writ large
Structure	hierarchy of norms: order -> statute -> constitution -> presupposed apex	primary rules plus three secondary rules
Apex	basic norm (Grundnorm) , presupposed, not enacted	rule of recognition , a social fact in official practice
Key distinction	validity against efficacy	being obliged against having an obligation
Effect on sovereignty	sovereignty is an attribute of the normative order	ultimate authority is an accepted practice
Residual problem	efficacy re-enters through revolution	Dworkin's hard cases remain unresolved

ANALYSIS: **Hart's three defects and cures:** uncertainty -> rule of recognition; static character -> rules of change; inefficiency -> rules of adjudication. WRONG: **Never swap the dates.** Kelsen 1945, Hart 1961. If unsure, name the works in sequence without years.

G. Laski and the supported pluralist lineage

- **Thesis FACT:**. The state is one association among many - uniquely important, not the sole and morally unlimited source of authority. Associations are real sites of personality, cooperation and authority, not permissions granted by sovereignty.
- **Three grounds, three kinds FACT:**. Philosophically false (no institution deserves unlimited moral obedience); politically dangerous (legitimises tyranny, suppresses liberty); sociologically unrealistic (power is in fact distributed).
- **Positive proposal FACT:**. Authority divided and shared because society is functionally differentiated; the state must **compete for allegiance** by protecting rights, securing welfare and enabling meaningful life. Authority is functional and moral, not mystical.
- **Lineage FACT:**. **Figgis** - real associations and the danger of an absolute state allied with economic concentration. **Cole** - functional or guild representation. **MacIver** - law and constitution, not a mysterious sovereign will, ground legitimate public force; the state **coordinates** without creating all purposes.
- **Two controls FACT:**. Pluralist, **not** anarchist. A challenge to the concept of one unlimited will, **not** administrative decentralisation.
- **Phase caution FACT:**. Early Laski: sovereignty is a legal fiction. Mature Laski: important, not omnipotent.
- **Verdict ANALYSIS:**. Decisive as critique, incomplete as replacement; the **coordination debt** is unpaid.

H. The Kautilya kit

Element	Content	Owned PYQ
Saptāṅga FACT:	<i>svāmī, amātya, janapada, durga, kośa, daṇḍa, mitra</i> - sovereignty is systemic, not merely personal	2019 Q3(a), 2024 Q4(b)
The ruler FACT:	highest place, duty-bearing office; the state is not the king's private will	2021 Q3(c)
Daṇḍanīti FACT:	calibrated coercion: none brings disorder, excess brings resentment; <i>daṇḍa</i> is force, <i>nīti</i> the policy	2018 Q1(d)
Maṇḍala FACT:	the circle of states; alignment is positional, not personal	2025 Q2(c)
Śāḍguṇya FACT:	<i>sandhi, vighraha, yāna, āsana, saṁśraya, dvaidhībhāva</i>	2025 Q2(c)
Yogakṣema FACT:	security and welfare; legitimacy through welfare, <i>prajā-sukha</i>	2024 Q4(b), 2021 Q3(c)
Applicability ANALYSIS:	form not transferable, principles transferable - selective appropriation	2021 Q3(c), 2024 Q4(b)

ANALYSIS: 2025 provenance control. The printed line "There is no permanent friend or permanent enemy" is the **examiner's framing**, not verified Kautilyan wording. Answer through *maṇḍala* and *śāḍguṇya*. **ANALYSIS: Residual.** Prudential statecraft is not consent-based legitimacy; welfare is a condition of durable rule, not a right held by subjects.

I. Objection -> reply -> residual - the critical-answer engine

Doctrine	Objection	Reply	Residual to concede
Bodin FACT:	absolutism negates rights	juristic, not caprice; higher-law limits stand	no institution enforces those limits
Austin FACT:	not all laws are commands	none available	power-conferring rules force reconstruction
Austin FACT:	federations divide authority	relocate to the constitution-makers	the relocation costs determinacy
Kelsen ANALYSIS:	the basic norm is a fiction	a transcendental-logical condition, not a fact	efficacy re-enters through revolution
Hart ANALYSIS:	hard cases need principles	bounded discretion at the penumbra	the Dworkin dispute is live

Doctrine	Objection	Reply	Residual to concede
Laski FACT:	shared sovereignty is incoherent	the monist concept itself misdescribes	no decision procedure in emergency
Kautilya ANALYSIS:	realism is cynical	realistic but not normless; welfare binds	the checks are prudential, not enforceable
Globalisation CAUTION:	constraint means states are not sovereign	constraint is not extinction	severe conditionality erodes effective autonomy

J. Globalisation and the contemporary state

ANALYSIS: **Thesis:** modified, not abolished - pooled, negotiated and networked.

Mechanism	Consequence
Treaty commitment FACT:/ANALYSIS:	self-limitation; presupposes the capacity it constrains
Delegation ANALYSIS:	exercise moves outward, source and limits stay treaty-based
Pooling ANALYSIS:	finality shared in a field , not universally transferred
Material dependence ANALYSIS:	legal independence survives, effective autonomy declines

ANALYSIS: **Caution:** not every international organisation is supranational, and no supranational institution is automatically sovereign in Austin's sense. Ask which competence, by what instrument, with what exit rule, and whether consent is substantively equal.

K. Trap list - final pre-submission check

1. Austin's sovereign is a determinate person or body, **not** "the state" in the abstract. FACT:
2. Laski is a **pluralist**, not an anarchist. FACT:
3. Bodin is **not** lawless: divine law, natural law, *leges imperii*. FACT:
4. Kautilya is **not** Austinian absolutism: dharma, welfare, prudence, interdependence. FACT:
5. Kautilya is **not** only foreign policy: *saptāṅga*, *daṇḍanīti*, *yogakṣema*. FACT:
6. Sovereignty does not "disappear": **reconfigured, constrained, pooled, negotiated**. ANALYSIS:
7. Do not confuse **legal** and **political** sovereignty. FACT:
8. Bodin and Austin are not identical: higher-law limits against formal illimitability. FACT:
9. Pluralism is not mere decentralisation. FACT:
10. Do not turn examples into fabricated historical detail. FACT:
11. WRONG: Kelsen is *General Theory of Law and State*, **1945** - never 1961.
12. Hart **rejects** the command model; nullity is not a sanction. FACT:
13. The *Grundnorm* is not a moral standard. FACT:
14. Do not merge Kelsen, Hart and Laski into one critique. ANALYSIS:
15. Do not develop Dworkin here - name and route to **Individual and State**. ANALYSIS:
16. Do not omit **permanence** and **universality** from the classical attributes. FACT:
17. Popular sovereignty is not national sovereignty. ANALYSIS:
18. India is not parliamentary sovereignty, and its judiciary is not sovereign. FACT:
19. The 2025 printed maxim is prompt wording, not a verified quotation. ANALYSIS:

L. PYQ routing and the answer architecture

Year	Part	Marks	Demand	Route
2018	Q1(d)	10	Kautilya in the light of <i>danḍanīti</i>	Sessions 16-17
2018	Q2(b)	15	Laski as a satisfactory position	Sessions 14-15
2019	Q3(a)	20	How far Austin goes with Kautilya	Sessions 8-9, 16-18, 20
2020	Q1(d)	10	Importance of Bodin	Sessions 6-7
2020	Q4(b)	15	Sovereignty in times of globalisation	Session 19
2021	Q1(c)	10	Austin and democracy	Sessions 5, 11
2021	Q3(c)	15	Kautilya's contribution; democratic applicability	Sessions 16-18
2022	Q2(a)	20	Bodin's arguments; compatibility with the ideals	Sessions 6-7
2023	Q2(a)	20	Why Laski rejected the absolute nature	Sessions 14-15
2024	Q4(b)	15	<i>Arthaśāstra</i> insights; modern relevance	Sessions 16-18
2025	Q2(c)	15	"No permanent friend or permanent enemy"	Session 18

Directive decoder ANALYSIS: - *Explain / Elucidate*: statement -> attributes -> one distinction -> one worked example. *Discuss*: doctrine -> rival -> objection -> reply -> verdict. *Critically examine / evaluate*: two objections, each with reply and residual. *How far / To what extent*: a degree judgement with stated conditions. *Compare / Distinguish*: 4-5 fixed axes run in parallel, then adjudicate. *Comment on a quoted line*: source doctrine -> what the line asserts -> limit -> verdict. *Is X satisfactory?*: name the test -> apply -> concede the rival's strength.

Mark-weight architecture ANALYSIS: - **10 marks** (≈150-220 words): exact doctrine, numbered argument, one precision distinction, one evidence unit with its limitation, graded verdict; use **one** repair, fully worked. **15 marks** (≈250-330 words): frame the dispute, doctrine A, strongest rival, one comparison table on 3-4 axes, one worked objection-reply-residual, conditional verdict. **20 marks** (≈330-400 words): provisional thesis, concept map in two lines, doctrine in technical terms, presuppositions, **internal critique first** (Kelsen, Hart) then **external** (Laski, federalism, custom, international law), reply ending in a residual problem, one dated Indian illustration classified accurately, graded verdict.

Closing lines to adapt, never reproduce mechanically ANALYSIS: - *Form-survives*: "the concept of a supreme legal authority survives every criticism examined; the image of a determinate personal sovereign does not." *Internal-repair*: "Austin is not refuted from outside so much as rebuilt from inside." *Asymmetric*: "his analysis of legal form is unmatched; his account of political reality is not." *Function-over-form (Kautilya)*: "strong precisely because duty-bound - authority is justified by *yogakṣema*, not by the absence of a legal superior." *Pluralist-limit (Laski)*: "an indispensable corrective, yet a polity that can never speak with one voice cannot discharge the coordinating task that made sovereignty necessary." *Degree*: "illimitable in legal form, limited in political fact, negotiated in international practice."

Link-outs FACT: - [Individual and State] for authority, obligation, rights and Dworkin; [Forms of Government] for how monarchy, democracy and constitutionalism relocate actual sovereignty; [Social and Political Ideals] for the normative critique of absolutism; [Political Ideologies] for pluralism and liberalism; [Humanism, Secularism, Multiculturalism] for multiple loyalties beyond monistic state claims; [Hegel] for the comparison between ethical-statist views and sovereignty.

Sources FACT: - O. P. Gauba, *An Introduction to Political Theory*, searchable local PDF pp. 179-218 (popular sovereignty and the general will at pp. 189-193; Figgis p. 195; Cole p. 199; MacIver pp. 204-208); *Socio-Political Philosophy*, local compiled notes PDF pp. 55-67, no named author asserted; Rajeev Bhargava and Ashok Acharya, *Political Theory: An Introduction*; John Austin, *The Province of Jurisprudence Determined*; Jean Bodin, *Six Books of the Commonwealth*; Harold J. Laski, *A Grammar of Politics and Studies in the Problem of Sovereignty*; Kautilya, *Arthaśāstra* (Shamasastri / Kangle), with the Shamasastri translation used to verify the seven constituents, calibrated coercion and the six-fold policy; Hans Kelsen, *General Theory of Law and State*, first English edition **1945**, translated by Anders Wedberg; H. L. A. Hart, *The Concept of Law*, **1961**; *Kesavananda Bharati v. State of Kerala*, Supreme

Court judgment, 1973; the UK Parliament sovereignty page; the Constitution of India, especially Article 368; and the official *Kesavananda Bharati* judgment archive. ANALYSIS: The Kelsen and Hart module is a named-scholar reconstruction: it asserts no page, chapter, edition or verbatim wording, makes no empirical claim about any Indian government, party or period, and deliberately does not develop Dworkin.

M. COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

Nineteen authored panels covering the complete examinable spine. This text is saved unchanged as the standalone ASCII master artifact beside the graphical flowchart package, and the two copies are byte-identical.

ASCII MASTER FLOW - PANEL 1/19: The printed clause, the concept of final authority and the fence

SYLLABUS (verbatim) -> "Sovereignty : Austin, Bodin, Laski, Kautilya."

| four thinkers are printed, and only four

v

CENTRAL QUESTION -> every political order must be able to DECIDE FINALLY: to make binding rules, settle disputes, keep order and speak outward. Who or what decides?

|

v

SOVEREIGNTY = the SUPREME, FINAL and AUTHORITATIVE power within a political community

PRESUPPOSES an organised political community | ruler-ruled relation | ordinary vs HIGHEST authority

IS NOT mere force (a bandit coerces, he does not decide finally)
the government of the day (real but derived authority)

+-----+-----+-----+

v

WHERE?

who or what
holds final
authority?

|

v

FIVE PRESSURE POINTS THAT MAKE THE CONCEPT CONTROVERSIAL

liberty -> finality can crush the protected sphere
plurality -> churches, unions, universities command real loyalty
federalism -> competence is constitutionally split
morality -> a legally valid command may be monstrous
interdependence -> treaty, market and security pressure narrow real choice

|

v

THE SPECTRUM ABSOLUTE LEGAL SUPREMACY <-----> DISTRIBUTED, MORALLY
Bodin ... Austin Kautilya ... Laski CONDITIONED AUTHORITY

|

v

OWNERSHIP FENCE social contract, state of nature, rights, political obligation, Dworkin
-> Individual and State | forms of democracy -> Forms of Government | equality, justice,
liberty -> Social and Political Ideals | institutions and current disputes -> International
Relations | article-by-article doctrine -> Polity

BRIDGES ADMITTED Hobbes (absolutist foil) | Rousseau (popular-sovereignty counterpoint) |
Kelsen and Hart (the two INTERNAL repairs of Austin)

CORPUS SHARE -> 11 of 112 parts (2018:2 2019:1 2020:2 2021:2 2022:1 2023:1 2024:1 2025:1)

ASCII MASTER FLOW - PANEL 2/19: The taxonomy and the five classical attributes

FOUR PAIRS -- FIX THE AXIS BEFORE GRADING ANY THINKER

PAIR	FIRST TERM	SECOND TERM
INTERNAL /	supremacy over persons and	independence from outside control
EXTERNAL	associations INSIDE the state	in the society of states
LEGAL /	authority the law recognises	the real power that can compel or
POLITICAL	as COMPETENT to make law	SHAPE the law-maker
DE JURE /	lawful in TITLE and formal	actually OBEYED in practice,
DE FACTO	right	whatever the title
TITULAR /	vested formally in an OFFICE	effectively exercised by those who
ACTUAL	or symbol	really govern

|

v

POPULAR SOVEREIGNTY -> the people in their corporate capacity are the SOURCE of public authority; government is their AGENT. Rousseau: the GENERAL WILL is a claim about the COMMON GOOD, not the sum of private preferences.

NATIONAL SOVEREIGNTY -> a national community claims COLLECTIVE SELF-DETERMINATION.

CONTROL -> nation, people and state may not coincide; NO majority is thereby morally sovereign; the two expressions are NOT interchangeable.

|

v

FIVE CLASSICAL ATTRIBUTES -- EACH ONLY DEFENSIBLE QUALIFIED

ATTRIBUTE	EXAM-SAFE MEANING	REQUIRED QUALIFICATION
ABSOLUTENESS	no superior human LAW-MAKER commands it within	not moral infallibility or practical omnipotence
PERMANENCE / CONTINUITY	governments change; the state's authority continues	continuity while independent, NOT literal eternity
UNIVERSALITY	reaches persons and associations within the territory	recognised immunities and autonomous spheres may exist
INALIENABILITY	cannot be given away without ceasing to be sovereign	DELEGATION, devolution, treaty commitment are NOT alienation
INDIVISIBILITY	one final LEGAL SOURCE	COMPETENCES may still be distributed

|
v

PLACEMENT -> Bodin supplies ABSOLUTE + PERPETUAL. Austin supplies the sharpest DETERMINATE-SUPERIOR formulation. The five-part list is a CONSOLIDATION of the monist tradition, not five claims uniquely invented by either man.

BRIDGE FORWARD -> Austin's habit theory cannot explain SUCCESSION or PERSISTENCE, i.e. the PERMANENCE attribute. Kelsen and Hart repair that WITHOUT restoring a personal sovereign.

ASCII MASTER FLOW - PANEL 3/19: Bodin -- absolute, perpetual, undivided, and bound

CONTEXT -> 16th-century France; religious civil war; rival churches, estates and feudal powers each claim finality -> no procedure for closure -> the commonwealth disintegrates

|
v

DEFINITION -> SOVEREIGNTY IS THE ABSOLUTE AND PERPETUAL POWER OF A COMMONWEALTH

ABSOLUTE -> not subject to any HUMAN SUPERIOR within the commonwealth

PERPETUAL -> enduring, attached to the OFFICE, not to a temporary magistrate or delegated official

PRE-EMINENT MARK -> the power to MAKE and UNMAKE LAW for all subjects in general, without needing consent from a superior

PRESUPPOSITION -> law needs a source not itself legally derivative from another earthly authority

|
v

INDIVISIBILITY -> if two authorities are each FINAL, conflict is insoluble and civil disorder returns

PERMITTED -> division of GOVERNMENTAL FUNCTIONS (advisory estates, subordinate courts)

FORBIDDEN -> division of SOVEREIGN TITLE

|
v

THE THREE LIMITS -- ABOVE POSITIVE LAW, NOT ABOVE ALL LAW

DIVINE LAW cannot validly command what offends divine order

NATURAL LAW justice and right reason remain normative limits

LEGES IMPERII the fundamental constitutive laws of the realm structure the sovereign OFFICE

FORMULA -> LEGIBUS SOLUTUS ("freed from the laws") of ORDINARY POSITIVE LAW ONLY

WORKED CASE -> arbitrary confiscation of property is commonly discussed as incompatible with his own limiting framework

|
v

WHY HE MATTERS -> shifts thought from MEDIEVAL PLURAL and FEUDAL claims to a UNIFIED concept of state authority; supplies the vocabulary -- absolute, perpetual, undivided -- that AUSTIN radicalises and LASKI attacks

OBJECTION -> if sovereignty is absolute it negates rights and liberties

REPLY -> juristic absolutism, not caprice; higher-law limits remain

RESIDUAL -> the sovereign is also the judge of what those limits require; no institution enforces them -> conceptually real, practically thin

VERDICT -> HISTORICALLY FOUNDATIONAL, NORMATIVELY PROBLEMATIC

TRAP -> Bodin is NOT Hobbes. TRAP -> "perpetual" is NOT "eternal"; it means OFFICE.

ASCII MASTER FLOW - PANEL 4/19: Austin -- the determinate superior, command and sanction

PROJECT -> ANALYTICAL JURISPRUDENCE: define law and sovereignty with conceptual precision; separate what law IS from what law OUGHT TO BE

|
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DEFINITION -> A SOVEREIGN IS A DETERMINATE HUMAN SUPERIOR who

(1) is IDENTIFIABLE -- not vague or mystical

(2) receives HABITUAL OBEDIENCE from the BULK of a given society

(3) habitually OBEYS NO ONE else

CORRECTION -> the sovereign is NOT "the state" in the abstract. It is a DETERMINATE PERSON OR BODY; a legislature or monarch fits better than diffuse democratic opinion.

|
v

LAW = COMMAND + SANCTION

COMMAND -> an expression of DESIRE by a SUPERIOR
 SANCTION -> the EVIL or PAIN attached to NON-COMPLIANCE
 => law is a SPECIES OF IMPERATIVE inside a structure of superiority and obedience
 SEPARATED FROM -> morality, custom, divine law
 BEST FIT -> penal law WORST FIT -> enabling, permissive and procedural rules
 |
 v
 FIVE ATTRIBUTES -- D-A-I-I-I, AND WHY THE LIST IS FORCED
 DETERMINATE otherwise the ORIGIN of validity is unlocatable
 ABSOLUTE otherwise a superior law-maker exists above it
 INDIVISIBLE otherwise two rival origins conflict with no resolution
 ILLIMITABLE otherwise validity is pushed to a further source
 INALIENABLE otherwise finality is transferable and therefore not final
 => each attribute CLOSES A GAP in the chain of legal validity
 |
 v
 HONEST CONCESSION -> Austinian indivisibility is STRICTER than empirical political reality. It is a LOGICAL feature of the scheme, not an observation about states.
 |
 v
 THE INTERNAL DEFECT AUSTIN CANNOT ANSWER -> POWER-CONFERRING RULES.
 Rules for making a valid will, contract or marriage confer FACILITIES; a defective will is a NULLITY, and nullity is NOT a sanction. -> doorway to Kelsen and Hart.
 TRAP -> calling Austin's sovereign "the state". TRAP -> calling nullity a sanction.

ASCII MASTER FLOW - PANEL 5/19: The criticisms of Austin and the two-level democracy verdict
 THREE STRUCTURAL CRITICISMS -- ONE OBJECTION APPLIED THREE TIMES

CRITICISM	WHAT IT ATTACKS	AUSTINIAN RELOCATION	THE COST
FEDERALISM	indivisibility competence is constitutionally distributed	"the CONSTITUTION-MAKING authority is sovereign"	the constitution may itself embody shared or entrenched power -> shifts, not solves
INTERNATIONAL LAW	the SCOPE of "law" treaty, custom and institutions bind without a superior	"not truly law -- there is no world sovereign"	excludes norms states argue about in legal terms and enforce by reciprocity
CUSTOMARY LAW	the DIRECTION of authority; practice precedes command	"customs are TACITLY ADOPTED by the sovereign"	artificial: recognition and obedience PRECEDE enactment

|
 v
 MAINE -> Ranjit Singh: actual authority may be PERSONAL, UNSTABLE and SOCIALLY EMBEDDED.
 Austinian reply: exceptional cases do not defeat a general theory.
 Counter: the problem is the WIDER MISMATCH, not one odd case.
 |
 v
 DEMOCRACY -- THE TWO-LEVEL VERDICT (2021 Q1(c))
 YES, in a NARROW LEGAL sense a law-making body can always be named
 NO, in the CONSTITUTIONAL-POLITICAL sense .. democracy makes authority DERIVATIVE,
 REVISABLE and ANSWERABLE, which illimitability forbids
 SHARPEST FORM -> "the people" are indeterminate, changing and institutionally mediated
 -> either the sovereign is not the people, or the sovereign is not determinate
 |
 v
 JURISDICTION CONTROL -- PARLIAMENTARY SOVEREIGNTY IS NOT A UNIVERSAL DOCTRINE
 UNITED KINGDOM -> Parliament is the SUPREME LEGAL AUTHORITY; courts generally cannot
 overrule primary legislation; one Parliament cannot entrench against a future one
 INDIA -> the WRITTEN CONSTITUTION is supreme; Parliament exercises CONSTITUTIONALLY
 CONFERRED powers (Article 368); judicial review enforces limits; KESAVANANDA BHARATI
 (Supreme Court judgment, 1973) limits the amending power via the BASIC STRUCTURE
 DO NOT OVERCLAIM -> the UK order is not unconstrained in every practical sense, and
 India's judiciary is NOT "sovereign" merely because it reviews legislation
 STATUS CAUTION -> a judgment is a DATED JUDICIAL DECISION, never philosophical proof

ASCII MASTER FLOW - PANEL 6/19: Kelsen -- the hierarchy of norms and the basic norm, 1945
 THREE PROBLEMS AUSTIN CANNOT SOLVE FROM INSIDE HIS OWN SYSTEM

- (1) SUCCESSION why is the new sovereign's FIRST command law, before any habit of obedience has formed?
- (2) PERSISTENCE why does a centuries-old statute, made by a sovereign long dead and never habitually obeyed by anyone alive, remain valid?
- (3) POWER-CONFERRING ... rules of will, contract and marriage confer FACILITIES, not orders; a defective will is a NULLITY, not a punishment

=> each points the same way: legal authority is carried by RULES, not by HABITS or the PERSON of a commander
 |

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      v
THE PYRAMID -- VALIDITY DERIVES FROM A HIGHER NORM, NEVER FROM A FACT
      BASIC NORM (GRUNDNORM) -- presupposed, not enacted
          | authorises
      CONSTITUTION
          | authorises
      STATUTE
          | authorises
      ADMINISTRATIVE ORDER
          |
      v
THE FIVE-STEP ARGUMENT
  1 a norm's validity cannot derive from a FACT -- "is" does not yield "ought"
  2 therefore validity must derive from a FURTHER NORM
  3 an infinite regress would leave nothing valid
  4 therefore the chain TERMINATES in a norm PRESUPPOSED rather than derived
  5 law is a SELF-REFERRING HIERARCHY of validity, distinct from morality AND brute power
PRESUPPOSITION -> a PURE theory of law is possible: describe validity while excluding
  morality, sociology, politics and psychology
PROVENANCE -> General Theory of Law and State, first English edition 1945. NEVER 1961.

ASCII MASTER FLOW - PANEL 7/19: Kelsen -- the dissolution of the personal sovereign
EFFECT ON SOVEREIGNTY -> KELSEN DISSOLVES the Austinian sovereign. No determinate human
  superior stands above the law; the "sovereign" is the PERSONIFICATION of the order's
  HIGHEST NORM-CREATING COMPETENCE. Sovereignty belongs to the NORMATIVE ORDER.
      |
      v
OBJECTION -> the Grundnorm is a fiction doing Austin's work less honestly
REPLY -> it is not claimed as a FACT but as a TRANSCENDENTAL-LOGICAL CONDITION of treating
  anything as valid law; it confers VALIDITY, not moral obligation -> still positivist
OBJECTION -> revolution replaces a constitution with no authorising norm
REPLY -> when a new order is BY AND LARGE EFFECTIVE, jurists presuppose a NEW basic norm;
  efficacy is a CONDITION of validity, not its SOURCE
RESIDUAL -> this quietly readmits the fact of power the theory excluded -- CONCEDE IT
PROVENANCE -> General Theory of Law and State, first English edition 1945. NEVER 1961.

ASCII MASTER FLOW - PANEL 8/19: Hart -- primary and secondary rules, rule of recognition, 1961
PRIMARY RULES -> impose DUTIES on conduct: do not steal, do not assault, pay tax
      |
      v
A REGIME OF PRIMARY RULES ALONE SUFFERS THREE DEFECTS -- AND EACH HAS ITS CURE
DEFECT              CURE (SECONDARY RULE)      WHAT IT ANSWERS
-----
UNCERTAINTY         RULE OF RECOGNITION         which rules are law?
STATIC CHARACTER     RULES OF CHANGE             how is law created, amended, repealed?
INEFFICIENCY        RULES OF ADJUDICATION        who determines breach and remedy?
=> the UNION of primary with secondary rules is what distinguishes a LEGAL SYSTEM from
  a set of SOCIAL HABITS
      |
      v
THE APEX -> the RULE OF RECOGNITION is neither valid nor invalid. It EXISTS AS A SOCIAL
  FACT, in the CONVERGENT PRACTICE OF OFFICIALS who treat it as the common public standard
  FROM AN INTERNAL POINT OF VIEW.
      |
      v
INTERNAL vs EXTERNAL POINT OF VIEW
  EXTERNAL observer .... records REGULARITIES OF BEHAVIOUR
  INTERNAL participant . treats the rule as a REASON for conduct and a GROUND FOR
    CRITICISING deviation
=> Austin's HABIT captures only the external aspect, so it cannot distinguish a LEGAL
  OBLIGATION from a GUNMAN'S THREAT, or a RULE from a HABIT

ASCII MASTER FLOW - PANEL 9/19: Hart -- four strikes against Austin, and the Indian illustration
FOUR STRIKES AGAINST AUSTIN
AUSTIN'S CLAIM      HART'S OBJECTION
-----
law = command + sanction    ignores power-conferring rules; NULLITY is not a
                             sanction
sovereign habitually obeyed  habit cannot explain CONTINUITY on succession or
                             PERSISTENCE of old statutes
sovereign obeys no one      the law-maker is itself CONSTITUTED and LIMITED by
                             rules of change
obligation = being obliged   conflates BEING OBLIGED (gunman) with HAVING AN
                             OBLIGATION (internal point of view)
      |
      v

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HART AGAINST Kelsen -> an ultimate criterion is needed, but it is a SOCIAL FACT, not a presupposed norm standing outside the system

OBJECTION (Dworkin) -> hard cases are decided by PRINCIPLES that no pedigree test finds

REPLY -> bounded DISCRETION at the penumbra; a rich rule of recognition may admit principles -> DISPUTE UNRESOLVED; state it as LIVE and ROUTE Dworkin to Individual and State

INDIA (illustration only) -> a written supreme Constitution with an amendment procedure (rules of change) and a judicial hierarchy with writ jurisdiction (rules of adjudication) => COMPETENCE-DISTRIBUTED, RULE-GOVERNED authority. NEVER call any Indian institution "the sovereign", and NEVER attribute a Grundnorm to a named document.

ASCII MASTER FLOW - PANEL 10/19: Laski -- pluralism, the thesis and the supported lineage

STARTING-POINT -> human beings live in MANY ASSOCIATIONS: family, church, union, guild, cooperative, profession, locality -- and each commands REAL LOYALTY
=> the state cannot claim that ALL obligation derives from IT ALONE

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THESIS -> THE STATE IS ONE ASSOCIATION AMONG MANY, though a uniquely important one

DENIES -> that the state is the SOLE and morally UNLIMITED source of authority

DENIES -> that associations are mere PERMISSIONS granted by sovereignty

DOES NOT DENY -> the need for a central public authority, or its COORDINATING and COERCIVE capacities

CONTROL -> PLURALIST, NOT ANARCHIST; and NOT mere administrative decentralisation

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v

THE SUPPORTED LINEAGE -- LOCATE THE SCHOOL, DO NOT REPLACE LASKI

FIGGIS real associations expose the danger of an ABSOLUTE STATE allied with economic concentration -> group personality, anti-absorption

COLE forerunner associated with FUNCTIONAL / GUILD representation
-> boundary: do not turn the answer into guild socialism

MacIVER LAW and CONSTITUTION, not a mysterious sovereign WILL, ground legitimate public force; the state COORDINATES without creating all purposes
-> the strongest sociological supplement AND the residual coordination role

ASCII MASTER FLOW - PANEL 11/19: Laski -- the threefold rejection, earned allegiance, verdict

WHY ABSOLUTE SOVEREIGNTY IS REJECTED -- THREE GROUNDS OF THREE DIFFERENT KINDS

PHILOSOPHICALLY FALSE no human institution is entitled to UNLIMITED MORAL OBEDIENCE

POLITICALLY DANGEROUS it LEGITIMISES TYRANNY and SUPPRESSES LIBERTY

SOCIOLOGICALLY UNREALISTIC .. real societies DISTRIBUTE power among many groups
=> independence is the strength: answering one leaves the others standing

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POSITIVE PROPOSAL -> authority must be DIVIDED and SHARED because modern society is FUNCTIONALLY DIFFERENTIATED; the state must COMPETE FOR ALLEGIANCE by protecting rights, securing welfare and enabling meaningful life -> authority is FUNCTIONAL and MORAL, not MYSTICAL

|
v

OBJECTION -> without a final sovereign, conflict between associations is insoluble

REPLY -> legal finality does not eliminate conflict; it often SUPPRESSES legitimate diversity. Modern orders need a FINAL PROCEDURE, not an unanswerable WILL.

RESIDUAL -> emergencies, defence and redistribution still need an INTEGRATING authority; MacIver's coordination role concedes exactly this -- the COORDINATION DEBT

PHASE CAUTION -> EARLY Laski: sovereignty is a legal fiction. MATURE Laski: important for state power, but NOT omnipotent. "Laski abolishes sovereignty" is as wrong as "Laski accepts Austin."

VERDICT -> decisive as CRITIQUE, incomplete as REPLACEMENT

ASCII MASTER FLOW - PANEL 12/19: Kautilya I -- the seven-limbed state and calibrated coercion

THE STATE AS AN ORGANISM -- SAPTANGA / PRAKRTIS

SVAMI the ruler headship, direction, decision

AMATYA ministers and officials ... counsel, administration, execution

JANAPADA territory WITH its people . productive social base

DURGA fortified capital/defence . security and protection

KOSA treasury material basis of rule

DANDA coercive force, army enforcement, punishment, defence

MITRA ally external support in the interstate order

|
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THE ARGUMENT -> the ruler is the HEAD but cannot function without ministers, treasury, territory, force and allies -> SOVEREIGNTY IS SYSTEMIC, NOT MERELY PERSONAL

WORKED CASE -> a ruler without KOSA or AMATYA holds TITLE but not EFFECTIVE sovereignty

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THE RULER, EXACTLY -> highest place, but NOT Austinian unlimitedness. He governs through

COUNSEL, PRUDENCE, DISCIPLINE and REGARD FOR THE WELL-BEING OF SUBJECTS.
Rulership is a DUTY-BEARING OFFICE; the state is not the king's private will.

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DANDANITI -- CALIBRATED COERCION
NO DANDA society falls into DISORDER
CALIBRATED DANDA .. order preserved, subjects secure, rule durable
EXCESSIVE DANDA ... RESENTMENT and INSTABILITY
=> the ART of sovereignty lies in the middle column
DANDA = the force | NITI = the policy/science governing its use
NOT blind terror | NOT arbitrary cruelty | NOT private vengeance
STRUCTURAL POINT -> danda is a CONSTITUENT of the state, so coercive capacity is a
PERMANENT feature of rule, never an emergency supplement

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THE COMPARISON THAT PAYS (2019 Q3(a))
AUSTIN seeks the LEGAL SOURCE OF COMMAND -> analyses the FORM of authority
KAUTILYA explains the OPERATIONAL ANATOMY OF RULE -> prescribes its FUNCTION
=> they answer DIFFERENT QUESTIONS; saying so IS the comparison mark
OBJECTION -> centring the king makes him a premodern authoritarian
REPLY -> the seven limbs, welfare obligations and strategic constraints show an
INSTITUTIONAL and PURPOSIVE theory; MISRULE WEAKENS SOVEREIGNTY ITSELF
RESIDUAL -> the checks are PRUDENTIAL, not enforceable; no limb may remove a ruler
TRAP -> translating JANAPADA as "territory" alone drops its PEOPLE, and with them the
productive base that connects the limbs to the welfare argument

ASCII MASTER FLOW - PANEL 13/19: Kautilya II -- the circle of states and the six-fold policy
EXTERNAL SOVEREIGNTY -> the MANDALA (circle of states) locates friends and enemies
RELATIONALLY, by POSITION rather than sentiment, in a competitive and unstable world

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SADGUNYA -- THE SIX-FOLD POLICY
SANDHI making peace / treaty
VIGRAHA hostility / war
YANA marching / preparation / expedition
ASANA staying quiet / remaining poised
SAMSRAYA seeking shelter / alliance
DVAIDHIBHAVA dual policy / combination strategy
=> policy changes with CIRCUMSTANCE, RELATIVE POWER and INTEREST
THESIS SUPPORTED -> STRATEGIC FLEXIBILITY. NOT a verified verbatim maxim.

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v

WHY PERMANENCE IS CONCEPTUALLY UNAVAILABLE -> if alignment is fixed by relative POSITION,
a state that gains or loses power CHANGES POSITION, and a change of position changes
which measure is prudent -> CONDITIONALITY FALLS OUT OF THE MODEL

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2025 PROVENANCE CONTROL -> the paper PRINTS "There is no permanent friend or permanent
enemy." Treat it as the EXAMINER'S FRAMING. The wording is NOT verified in the local
Arthashastra synopsis or the checked Shamasastri passages. DO NOT call it a Kautilya
quotation. DO answer through the verified MANDALA and SADGUNYA doctrines.

ASCII MASTER FLOW - PANEL 14/19: Kautilya III -- welfare, democratic applicability, relevance
YOGAKSEMA -- SECURITY AND WELFARE, THE INTERNAL COUNTERPART
the ruler's welfare is TIED TO the people's; durability depends on PROSPERITY,
SECURITY and JUSTICE IN ADMINISTRATION -> moves Kautilya BEYOND pure force theory
treasury, territory and administration are CONDITIONS of stable rule, not merely
instruments of EXTRACTION
CONTRAST -> Austin's sovereign is legally unlimited and NOT normatively constituted by
public welfare; Kautilya's ruler is MEASURED BY WELFARE CONSEQUENCES

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DEMOCRACY AND MODERN RELEVANCE (2021 Q3(c), 2024 Q4(b))
NOT TRANSFERABLE -> the monarchical FORM
TRANSFERABLE institutional interdependence | prudent, proportionate use of force |
treasury discipline | strategic diplomacy | welfare-centred governance
THE RULE -> SELECTIVE APPROPRIATION; relevance is shown through THEMES, never by
pretending ancient monarchy equals modern democracy
OBJECTION -> such realism is cynical and amoral
REPLY -> realistic but NOT NORMLESS; flexibility operates alongside the internal duty to
order and welfare
RESIDUAL -> prudential statecraft is NOT consent-based legitimacy; welfare is a CONDITION
of durable rule, not a RIGHT held by subjects
TRAP -> reducing Kautilya to foreign policy loses four of his five owned PYQ parts

ASCII MASTER FLOW - PANEL 15/19: Globalisation -- four mechanisms of constraint and change

THESIS -> GLOBALISATION MODIFIES SOVEREIGNTY BUT DOES NOT ABOLISH IT. The issue is POOLED, NEGOTIATED and NETWORKED sovereignty, not its disappearance.

FOUR MECHANISMS -- KEEP THEM APART; THE DIFFERENTIATION IS THE ANSWER

MECHANISM	WHAT HAPPENS	SOVEREIGNTY CONSEQUENCE
TREATY COMMITMENT	a state accepts binding rules through its own recognised treaty-making capacity	SELF-LIMITATION; constrains future action WITHOUT creating a global Austinian sovereign
DELEGATION	an institution is authorised to perform a defined function	EXERCISE moves outward; legal SOURCE and LIMITS stay treaty-based
POOLING	a competence is exercised JOINTLY under common voting or bargaining rules	FINALITY becomes SHARED for the agreed field, not universally transferred
MATERIAL DEPENDENCE / CONDITIONALITY	finance, markets, technology or security asymmetry narrows feasible choices	LEGAL INDEPENDENCE may survive while EFFECTIVE AUTONOMY DECLINES

CAUTION -> not every international organisation is supranational, and no supranational institution is automatically sovereign in Austin's sense. ASK: which competence? by what instrument? with what exit or review rule? is consent SUBSTANTIVELY equal?

ASCII MASTER FLOW - PANEL 16/19: The master comparison grid and the four-way structure

THE MASTER GRID -- READ DOWN FOR A THINKER, ACROSS FOR A DEBATE

ISSUE	BODIN	AUSTIN	LASKI	KAUTILYA
WHERE LOCATED	commonwealth's supreme law-giving power	determinate human superior	no single unlimited locus -> plural	the svami as head within a seven-limbed state
ABSOLUTE?	yes vs positive law, with higher-law limits	yes, strict legal sense; formally unlimited	NO -- false AND dangerous	strong but bound by dharma, welfare and prudence
INDIVISIBLE?	yes	yes	no -- shared and distributed	organically coordinated
ASSOCIATIONS	secondary to sovereign unity	subordinate to command	real autonomy and loyalty	institutions and allies are LIMBS
MAIN ANXIETY	civil war	juristic clarity	liberty against absolutism	survival, order, prosperity, strategy
MAIN WEAKNESS	weak guard on concentration	unrealistic for democracy, federalism, custom, int. law	understates coordination	monarchical frame; elastic realism

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THE FOUR-WAY STRUCTURE THAT LOOKS LIKE PHILOSOPHY, NOT SUMMARY

BODIN and AUSTIN ask WHO is sovereign

KELSEN and HART deny the question and ask WHAT MAKES A NORM VALID

LASKI denies that any single answer is possible

KAUTILYA asks what the holder of authority is FOR

=> personal sovereign -> normative order -> official practice -> plural allegiance, with Kautilya's DUTY-BOUND variant

CONVERGENCE WITH DIVERGENCE -> Kelsen, Hart and Laski each dissolve the PERSONAL sovereign but replace him with a NORM-HIERARCHY, an OFFICIAL PRACTICE and a PLURALITY OF ASSOCIATIONS respectively. DO NOT MERGE THEM.

ASCII MASTER FLOW - PANEL 17/19: The nineteen standing traps -- final pre-submission check

NINETEEN STANDING TRAPS -- FINAL PRE-SUBMISSION CHECK

- 1 Austin's sovereign is NOT "the state" in the abstract
- 2 Laski is a PLURALIST, not an anarchist
- 3 Bodin is NOT lawless -- divine law, natural law, leges imperii
- 4 Kautilya is NOT Austinian absolutism -- dharma, welfare, prudence, interdependence
- 5 Kautilya is NOT only foreign policy -- saptanga, dandaniti, yogaksema
- 6 sovereignty does not "disappear" -- it is RECONFIGURED, constrained, pooled, negotiated
- 7 do not confuse LEGAL and POLITICAL sovereignty
- 8 Bodin and Austin are NOT identical -- higher-law limits vs formal illimitability
- 9 pluralism is NOT mere decentralisation
- 10 do not turn examples into fabricated historical detail
- 11 Kelsen = General Theory of Law and State, 1945. NEVER 1961.
- 12 Hart REJECTS the command model -- nullity is not a sanction
- 13 the Grundnorm is NOT a moral standard
- 14 do not MERGE Kelsen, Hart and Laski into one critique
- 15 do not develop DWORKIN here -- name and route to Individual and State
- 16 do not omit PERMANENCE and UNIVERSALITY from the classical attributes
- 17 popular sovereignty is NOT national sovereignty
- 18 India is NOT parliamentary sovereignty; the judiciary is NOT sovereign
- 19 the 2025 printed maxim is PROMPT WORDING, not a verified quotation

ASCII MASTER FLOW - PANEL 18/19: PYQ anchors and the answer spine

PYQ ANCHORS -- 11 OWNED PARTS, 2018-2025

2018 Q1(d) 10 .. Kautilya in the light of danda-neety -> PANEL 9
2018 Q2(b) 15 .. Laski as a satisfactory position -> PANEL 8
2019 Q3(a) 20 .. how far Austin goes with Kautilya -> PANELS 4, 9, 11
2020 Q1(d) 10 .. importance of Bodin -> PANEL 3
2020 Q4(b) 15 .. sovereignty in times of globalisation -> PANEL 11
2021 Q1(c) 10 .. Austin and democracy -> PANEL 5
2021 Q3(c) 15 .. Kautilya's contribution; applicable to democracy? -> PANELS 9, 10
2022 Q2(a) 20 .. Bodin's arguments; compatible with equality, justice, liberty? -> PANEL 3
2023 Q2(a) 20 .. why Laski rejected the absolute nature -> PANEL 8
2024 Q4(b) 15 .. Arthashastra insights; modern relevance -> PANELS 9, 10
2025 Q2(c) 15 .. "no permanent friend or enemy" -> PANEL 10
|
v

THE ANSWER SPINE -- SAME FIVE MOVES AT EVERY MARK WEIGHT

1 FIX THE AXIS the stem tests (internal/external, legal/political, monist/pluralist)
2 STATE THE DOCTRINE in the thinker's own vocabulary
3 RUN ONE COMPARISON on shared axes, never two sequential summaries
4 WORK ONE OBJECTION -> REPLY -> RESIDUAL PROBLEM
5 CLOSE WITH A GRADED VERDICT that concedes something to the losing side
10 marks -> ONE repair, fully worked. 15 -> one comparison table + one worked objection.
20 -> INTERNAL critique first (Kelsen, Hart), EXTERNAL critique second (Laski, federalism, custom, international law), then one dated Indian illustration.

ASCII MASTER FLOW - PANEL 19/19: Graded verdicts -- the closing lines to adapt

GRADED VERDICTS -- ADAPT, NEVER REPRODUCE MECHANICALLY

FORM-SURVIVES ... "the CONCEPT of a supreme legal authority survives every criticism
examined; the IMAGE of a determinate personal sovereign does not"
INTERNAL-REPAIR . "Austin is not refuted from outside so much as REBUILT FROM INSIDE"
ASYMMETRIC "his analysis of legal FORM is unmatched; his account of political
REALITY is not"
FUNCTION-OVER-FORM (Kautilya) "strong precisely because DUTY-BOUND: authority is
justified by yogaksema, not by the absence of a legal superior"
PLURALIST-LIMIT (Laski) "an indispensable corrective, yet a polity that can never speak
with one voice cannot discharge the COORDINATING task"
DEGREE "illimitable in legal FORM, limited in political FACT, negotiated in
international PRACTICE"